Sub-Grant Agreement Modification No. 8

Partners of the Americas, Inc.

and

Fundación para el Desarrollo de Antioquia. Antioquia por Colombia (Proantioquia)

This modification is made and entered into as of **June 26, 2024**, between Partners of the Americas, Inc. ("Partners"), which is incorporated under the laws of Washington DC and has its principal place of business at 1424 K Street NW, Washington, D.C. 20005, and Fundación para el Desarrollo de Antioquia. Antioquia por Colombia (Proantioquia) ("Sub-awardee").

I. BACKGROUND

On August 16, 2021, the parties entered into an agreement with regard to the Sub-awardee's technical assistance to Partners implementing the Juntos Aprendemos Project, supported by USAID. This multi-year subaward has a $2,133,979 funding ceiling and includes a first obligation for $447,655 estimated to cover the first year.

On September 23, 2022, modification #1 was signed, increasing the obligated amount by USD $237,367, from USD $447,655 to USD $685,022, estimated to cover four months of Proantioquia's spending under Juntos Aprendemos.

On January 25, 2023, modification #2 was signed, increasing the obligated amount by USD $76,500, from USD $685,022 to USD $761,522, estimated to cover 2.5 months of Proantioquia's spending under Juntos Aprendemos.

On April 26, 2023, modification #3 was signed, increasing the obligated amount by USD $50,000, from USD $761,522 to USD $811,522, estimated to cover two months of Proantioquia's spending under Juntos Aprendemos.

On May 29, 2023, modification #4 was signed, increasing the obligated amount by USD $200,510, from USD $811,522 to USD$1,012,032, estimated to cover four months of Proantioquia's spending under Juntos Aprendemos.

On September 11, 2023, modification #5 was signed with the purpose to:

- Modify ARTICLE 5. Period of Performance and Closeout Activities: Extend the period of performance and change the completion date of the sub agreement (no cost extension).
- Modify ARTICLE 6 and ANNEX B: Detailed Budget, realign the original awarded budget and include indirect costs.
- Modify ARTICLE 32. Project Coordination & Supervision: Update Project Coordination and supervision points of contact.
- Modify ANNEX A and Update the period of performance in the Program Description.
- Modify ANNEX C and Include Key Personnel. F. Modify ANNEX D and ANNEX E and Update report submission dates.

On November 8, 2023, modification #6 was signed with the purpose to:

- Modify ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget: Paragraph 6.2, with the purpose to increase the obligation of the subaward amount by USD $208,000 from USD $1,012,032, to USD $1,220,032. This obligation increase will provide sufficient funding for the subawardee to continue implementing activities outlined in the program description thru March 2024.
- Modify ARTICLE 8. Payments and Financial Reports: Paragraph 4, with the purpose to clarify the proper date to present advance payment request each month. Paragraph 14, with the purpose to include the text that each expense report shall contain, according with the form provided by POA.
- Modify ARTICLE 13. Title to and Care of Project Property: Paragraph 4, with the purpose to modify threshold cost conditions about project's final inventory list, to include all property and equipment with a current fair market value threshold of US$100.
- Modify ARTICLE 14. Substantial Involvement: Include numerals e) and f) on the approval activities in charge of POA, according with the program needs and main Cooperative Agreement signed between

POA and USAID.

- Modify ARTICLE 19. Assignment: Clarify the article to guarantee that the Subawardee understand that without prior written approval from POA may not make some decisions. F. Modify ARTICLE 31. Value Added Tax (VAT) Reporting: Paragraph 3, with the purpose to clarify that the sub-awardee is not the one who submits the reimbursement request to the DIAN, but POA.
- Delete in its entirety the current "ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES" and replace for the ANNEX A included in modification # 6, with the purpose to reflect programmatic changes, indicators according with the actual AMELP, and to include double column language.

On February 23, 2024, modification #7 was signed to:

- Modify ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget: Paragraph 6.2, increasing the subaward obligation amount by USD $216,668 from USD $1,220,032 to USD $1,436,700. This obligation increase will provide sufficient funding for the subawardee to continue implementing activities outlined in the program description thru September 2024.
- Modify "ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES" to clarify the indicators of Alliances and update targets per year.
- Modify "ANNEX G: OTHER MANDATORY PROVISIONS (USAID)" to assure that Fundacion Proantioquia has an identical copy of the standard provisions applicable for the Cooperative Agreement No. 7200AA21CA00003 signed between USAID and PARTNERS OF THE AMERICAS, according with the last update of ATTACHMENT C –STANDARD PROVISIONS of the mentioned award.

II. PURPOSE & JUSTIFICATION OF MODIFICATION 8

This Modification No. 8 is made to reflect the following:

A. Modify ARTICLE 4. Sub-Agreement Type: Increase the ceiling amount by USD$ 55,000 from USD $2,133,979 to USD $2,188,979, due to changes in the project structure.

B. Modify ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget:

- Paragraph 6.1, to increase the ceiling amount of the subaward by USD $55,000 from USD $2,133,979 to USD $2,188,979. This addition is due to changes in the project structure since Proantioquia will lead the Project's GESI strategy which requires the hiring of a GESI Professional and will support the Project's migration strategy thru the hiring of a Migration professional. These changes imply an increase in Personnel and Fringe budget's items; the new total is sufficient to ensure the operation and achieve successfully the goals approved in the work plan.
- Paragraph 6.3, to modify the Budget.

  6.3.4 Modify the approved Sub-Award budget by realigning the original awarded budget and increasing the total amount.

C. Modify "ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES", to update the targets defined for 2024 and the projection for 2025-2026.

D. Delete in its entirety "ANNEX B: DETAILED BUDGET" and replace with "ANNEX B: DETAILED BUDGET" included in this modification #8, to realign the budget according with the needs and goals of JA.

III. THE TEXT OF THE SUB-AGREEMENT IS MODIFIED AS FOLLOWS:

Under SCHEDULE OF SUB-AWARD:

A. ARTICLE 4. Sub-Agreement Type, under paragraph 1:

"This Sub-agreement is a Standard Cost Reimbursable Sub-Award, if and when the Sub-Agreement is fully funded through POA under USAID. The estimated amount up to the ceiling of ~~USD$2,133,979~~ USD $2,188,979, for a 60.5-month period is for the sole purpose of coordinating all aspects of the "Juntos Aprendemos" Project."

B. ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget:
Under paragraph 6.1:
"The total and the estimated total amount of this Sub-Award is up to ~~TWO MILLION, ONE HUNDRED THIRTY-THREE THOUSAND, NINE HUNDRED SEVENTY-NINE AMERICAN DOLLARS (USD 2,133,979)~~ TWO MILLION, ONE HUNDRED EIGHTY-EIGHT THOUSAND, NINE HUNDRED SEVENTY-NINE AMERICAN DOLLARS (USD 2,188,979) if the Sub-Award is fully funded. Amount of the Sub-Award is subject to the availability of funds provided by USAID. No cost will be paid above the total estimated cost. In the event of termination before expiration of the Period of Performance, in accordance with the terms of this Sub-Award, POA shall pay all allowable costs accrued by Sub-Awardee as of the date of termination, including non-cancellable obligations".

Under paragraph number 6.3:
"BUDGET. The following is the Sub-Award Budget:
6.3.4 Approved general budget: The Sub-Award Budget shall be approved by POA post approval by the Funder. The Sub-Award´s budget is based on the detailed budget that the Sub-Awardee submitted, and POA accepted for implementation of this activity. The approved Sub-Award budget is referred in the summary budget below":

	Categories Categorias	Amount Monto	Leverage Apalancamiento	Total
1.	Personnel Personal	~~910.223~~ 977.361	~~146.646~~ 193.113	~~1.056.869~~ 1.170.474
2.	Fringe Benefits Beneficios	~~440.906~~ 471.981	~~69.869~~ 61.320	~~510.775~~ 533.301
3.	Travel Viajes	~~281.230~~ 212.155	0	~~281.230~~ 212.155
5.	Supplies Suministros	~~34.203~~ 27.181	~~63.982~~ 63.982	~~98.185~~ 91.163
6.	Contractual Contractual	~~37.958~~ 44.732	0	~~37.958~~ 44.732
7.	Other Direct Costs Otros Costos Directos	~~317.556~~ 351.220	0	~~317.556~~ 351.220
8.	**Total Direct Costs** **Total Costos Directos**	**~~2.022.076~~** **2.084.631**	**~~280.496~~** **318.415**	**~~2.302.572~~** **2.403.047**
9.	Indirect Costs Costos Indirectos	**~~111.903~~** **104.348**	**20.310**	**~~132.213~~** **124.657**
10.	**Total Costs** **Total Costos**	**~~2.133.979~~** **2.188.979**	**~~300.807~~** **338.725**	**~~2.434.785~~** **2.527.704**

C. ANNEX A – PROGRAM DESCRIPTION AND OBJECTIVES, modify the objectives on pages 13 and 14 of Annex A to change the language of 2023 (past tense) and specify the targets for 2024 and projections for 2025-2026, as follows:

ANEXO A: DESCRIPCIÓN DEL PROGRAMA Y OBJETIVOS	ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES
Metas para 2023: "En 2023, Proantioquia trabajará en las nueve ciudades donde se implementa la Actividad (Bogotá, Medellín, Cali Cúcuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta, Riohacha), a través de tres subactividades. La siguiente tabla presenta los objetivos definidos para 2023":	Targets for 2023: "In 2023, Proantioquia will work in the nine cities where the Activity is being implemented (Bogota, Medellín, Cali Cucuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta, Riohacha), through three sub-activities. The following table presents the targets defined for 2023":

Sub-actividad	Alianzas	P-CC-156 (Fondos apalancados)	ES.1-6 (docentes capacitados)	ES.1-3 (alumnos en primaria)	ES.1-4 (alumnos en secundaria)	JA-04 (transferencia de conocimientos)
	Semestral	Trimestral	Anual	Anual	Anual	Trimestral
	Meta	Meta	Meta	Meta	Meta	Meta
Ser + Maestro			650	6.625	9.750	400
Directivos docentes	1					240
Impacto Colectivo						100
Juntos Aprendemos: gestión de alianzas y formación docente	1	$1.173.143.400*				

**This amount is the target until the end of the program.*

Metas para 2024, 2025 y 2026	Targets for 2024, 2025 and 2026
En 2024, Proantioquia trabajará en ocho ciudades (Cali, Medellín, Cúcuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta y Riohacha), a través de tres subactividades. La siguiente tabla presenta los objetivos definidos para 2024 y la proyección para 2025-2026:	In 2024, Proantioquia will work in eight cities (Cali, Medellín, Cucuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta y Riohacha), through three sub-activities. The following table presents the targets defined for 2024 and the projection for 2025-2026:

Metas Programa Juntos Aprendemos - PROANTIOQUIA

#	Código	Nombre del Indicador	Unidad	Metas PR 2024	Metas 2025-206 (proyección)
Indicadores Globales					
1	CBLD-9	Porcentaje de organizaciones apoyadas por JA con desempeño mejorado	Porcentaje de Organizaciones	-	-
2	P-APP	Número de alianzas público-privadas creadas por JA	Número de alianzas	7	1
3	P-CC-156	Valor de los recursos apalancados por JA	COP $	57.447.259	114.894.519
Objetivo 1: Calidad de la educación mejorada para niños y jóvenes en comunidades receptoras					
IR 1.1 Entornos de aprendizaje mejorados, seguros, inclusivos y sensibles a las necesidades de los estudiantes migrantes y retornados					
4	ES. 1-51	Número de ambientes de aprendizaje apoyados por JA que han mejorado su seguridad	Número de ambientes de aprendizaje	-	-
IR 1.2 Capacidad organizativa fortalecida (coordinación, planificación de contingencias, divulgación y políticas) de los gobiernos nacionales y locales para brindar una educación					
5	ES.1-59	Sistema educativo fortalecido a través del apoyo de JA	Binario si (1) / no (0)	-	-
IR 1.3 Conocimientos y habilidades de los maestros y directores fortalecidas para brindar una mejor instrucción en las habilidades fundamentales, incluidas la alfabetización, la					
6	ES.1-6	Número de educadores apoyados por JA que completan actividades de desarrollo profesional	Número de educadores	450	76
IR 1.4 Planes de estudios mejorados para una instrucción tradicional y alternativa de alta calidad, incluido el aprendizaje a distancia y la educación acelerada					
7	Supp-9	Porcentaje de estudiantes apoyados por JA con habilidades sociales y emocionales mejoradas	Porcentaje de alumnos	-	-
8	ES-1.53	Número de estudiantes en pre-primaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	-	622
9	ES.1-3	Número de estudiantes en primaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	7.875	2.074
10	ES.1-4	Número de estudiantes en secundaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	3.375	500
11	ES 1-48	Número de estudiantes apoyados por JA con un incremento de al menos un nivel de proeficiencia en lectura al final de grado segundo	Porcentaje de alumnos	-	-
Objetivo 2: Acceso incrementado a educación flexible para niños y jóvenes en comunidades receptoras					
IR 2.1 Acceso mejorado a oportunidades educativas apropiadas y seguras para niños y jóvenes					
12	JA-04	Número de personas apoyadas por JA, que participan en procesos de transferencia de conocimiento sobre el acceso a oportunidades educativas adecuadas y seguras para personas migrantes y retornadas.	Número de directores, educadores y autoridades educativas	-	1.340
IR 2.2 Acceso mejorado a modalidades educativas flexibles certificadas para niños y jóvenes					
13	JA-05	Número de alumnos apoyados por JA matriculados en modelos educativos flexibles	Número de alumnos	-	-
Objectivo 3: Fortalecimiento de la comunidad en oportunidades educativas					
IR 3.1 Participación incrementada de los miembros y organizaciones de la comunidad local, incluidas las organizaciones juveniles, en la toma de decisiones y la prestación de					
14	JA-06	Número de OSC y organizaciones de base (incluidas organizaciones de jóvenes y comunitarias) apoyadas por JA que participan en actividades educativas	Número de OSC y organizaciones de base	-	
15	ES.1-13	Número de asociaciones de padres y maestros o estructuras comunitarias de gobernanza escolar apoyadas por JA, que participan en educación primaria o secundaria	Número de asociaciones de padres o estructuras comunitarias de gobernanza	-	-
IR 3.2 Participación incrementada de las familias y los cuidadores para apoyar el aprendizaje de los estudiantes					
16	JA-07	Número de padres de familia/cuidadores apoyados por JA, que participan en asociaciones de padres de familia y/o talleres de crianza/escuelas de padres	Número de padres de familia/cuidadores	-	-

Los objetivos actualizados para cada año se incluirán en el Subacuerdo siguiendo la versión más reciente aprobada del Plan de Monitoreo, Evaluación y Aprendizaje de Actividades (AMELP).	The updated targets for each year will be included in the Sub-award following the most recent approved version of the Activity Monitoring, Evaluation and Learning Plan (AMELP).

A. ANNEX B– DETAILED BUDGET, delete it in its entirety and replace it for the following document:

Name of Subawardee: Pro Antioquia
USAID No. 7200AA21RFA00001

Line Items	Year 1			Year 2			Year 3			Year 4			Year 5			Year 6			Total	Total	Grand
	USAID	Leverage	Total	USAID	Leverage	Total	USAID	Leverage	Total	USAID	Leverage	Total	USAID	Leverage	Total	USAID	Leverage	Total	USAID	Leverage	Total
Personnel	31.490	15.054	46.545	176.791	16.693	193.485	198.142	41.131	239.273	221.343	45.210	266.553	251.111	47.471	298.581	98.484	27.553	126.037	977.361	193.113	1.170.474
Fringe Benefits	11.993	4.598	16.591	69.759	5.095	74.854	90.940	10.924	101.864	106.388	15.579	121.967	114.415	16.358	130.773	78.486	8.766	87.252	471.981	61.320	533.301
Travel	7.005	0	7.005	89.804	0	89.804	59.542	0	59.542	50.694	0	50.694	2.859	0	2.859	2.252	0	2.252	212.155	0	212.155
Supplies	7.039	1.471	8.510	9.776	10.095	19.871	1.101	20.478	21.579	4.376	11.976	16.352	4.889	12.934	17.823	0	7.028	7.028	27.181	63.982	91.163
Contractual	0	0	0	16.135	0	16.135	12.449	0	12.449	16.148	0	16.148	0	0	0	0	0	0	44.732	0	44.732
Other Direct Costs	20.331	0	20.331	180.882	0	180.882	89.026	0	89.026	38.271	0	38.271	18.395	0	18.395	4.316	0	4.316	351.220	0	351.220
Total Direct Costs	77.858	21.123	98.981	543.147	31.883	575.030	451.201	72.533	523.734	437.220	72.766	509.986	391.668	76.763	468.432	183.537	43.347	226.884	2.084.631	318.415	2.403.047
Indirect Costs	0	0	0	0	0	0	13.229	2.951	16.180	39.350	6.549	40.800	35.250	6.909	42.526	16.518	3.901	20.420	104.348	20.310	124.657
Total	77.858	21.123	98.981	543.147	31.883	575.030	464.430	75.484	539.914	476.570	79.314	550.786	426.919	83.672	510.958	200.055	47.249	247.304	2.188.979	338.725	2.527.704

Under Cover Page:

"Juntos Aprendemos

Between

Partners of the Americas
1424 K Street NW Suite 700 Washington DC 20005

And

Fundación para el Desarrollo de Antioquia. Antioquia por Colombia. (Proantioquia)
Carrera 43 A Nro. 1- 50. Torre 1, piso 12, Oficina 1252. Complejo San Fernando Plaza.
Medellín, Antioquia, Colombia.

Under Cooperative Agreement No. 7200AA21CA00003
Sub-Award Number: 800-Proantioquia
Sub-Award Type: Standard Cost Reimbursable Subaward
Límite de Sub-Acuerdo: ~~$2,133,979~~ $2,188,979
Cantidad Obligada: $1,436,700
Fecha Efectiva: 16 de agosto de 2021
Fecha de terminación de ejecución: 31 de agosto de 2026
Número de Identificación de Entidad Única: KTC8WGLV8485

Article 1. Subaward Data	
A. POA Sub-Award Number	800-Proantioquia
B. Sub-Award Project Title	Juntos Aprendemos

C. Legal Recipient Name, Address, Telephone, and general email	Fundación para el Desarrollo de Antioquia. Antioquia por Colombia (Proantioquia) Carrera 43 A No. 1- 50. Torre 1, piso 12. Complejo San Fernando Plaza, Medellín presidencia@proantioquia.org.co	
D. Recipient Universal Entity Identifier	KTC8WGLV8485	
E. Type of Recipient	Non U.S. Non Governmental Organization	
F. Sub-Awardee's Authorized Representative	Laura Gallego Moscoso lgallego@proantioquia.org.co	
G. POA Authorized Technical Representative	Gustavo Payán Chief of Party Phone: 3102373254 Email: gpayan@partners.net	
H. POA Authorized Administrative/Contractual Representative	Vanessa Ardila López Grants Manager Mobile Phone: 3208596806 Email: vardila@partners.net	
I. Period of Performance	08 / 16 / 2021	08 / 31 / 2026
J. Award Amount	~~$2,133,979~~ $2,188,979	Currency: USD
K. Cost Share	$0	Currency: USD
L. Cost Leverage	~~$300,806~~ $338,725	Currency: USD
M. Total Estimated Sub-Award Amount	~~$2,133,979~~ $2,188,979	Currency: USD
N. Obligated Amount	$1,436,700	
O. Indirect Cost Methodology	Not applicable	
P. Treatment of Program Income	Added to funds committed by POA and the recipient to the program and used to further eligible program objective.	
Article 2. Prime Award Information		
A. Prime Award Number	7200AA21CA00003	
B. Prime Award Name	Partners of the Americas, Inc.	

C. Prime Award Date	February 3, 2021
D. Prime Award Period of Performance	February 5, 2021 to December 31, 2026
E. Authorized Geographic Code	937
F. Awarding Entity	USAID
G. CDFA Number	98.001
H. R&D Award Identification	Not Applicable

All other terms and conditions of the Original Sub-Agreement and any subsequent modifications remain in effect.

The entire agreement is included below the signatures, in its entirety, with all modifications up to and including the modifications from this amendment. For any discrepancy between the below agreement and the modifications indicated above, the changes annotated above shall take precedence.

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of the 06 / 26 / 2024

Partners of the Americas

Ana Rubi

Ana Rubi
Director of Education

Fundación para el Desarrollo de Antioquia.
Antioquia por Colombia (Proantioquia)

María Bibiana Botero

Maria Bibiana Botero
Presidenta Ejecutiva

By the signature above, Sub-Awardee acknowledges and warrants that prior to signing, Sub-Awardee has read this Agreement in its entirety and was afforded reasonable time to consider the Agreement. Specifically, Sub-Awardee understands that this is a contractual Sub-Agreement relationship.

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

Juntos Aprendemos

Entre

Partners of the Americas
1424 K Street NW Suite 700
Washington DC 20005

Y

Fundación para el Desarrollo de Antioquia. Antioquia por Colombia. (ProAntioquia)
Carrera 43 A Nro. 1- 50. Torre 1, piso 12, Oficina 1252. Complejo San Fernando Plaza.
Medellín, Antioquia, Colombia.

Bajo Acuerdo Cooperativo No: 7200AA21CA00003

Numero de Sub-Acuerdo: 800-ProAntioquia

Tipo de Sub-Acuerdo: Convenio de Costos Reembolsables de Gastos

Límite de Sub-Acuerdo: $2,188,979

Cantidad Obligada: $1,436,700

Fecha Efectiva: 16 de agosto de 2021

Fecha de terminación de ejecución: 31 de agosto de 2026

Número de Identificación de Entidad Única: KTC8WGLV8485

Juntos Aprendemos

Between

Partners of the Americas
1424 K Street NW Suite 700
Washington DC 20005

And

Fundación para el Desarrollo de Antioquia. Antioquia por Colombia. (ProAntioquia)
Carrera 43 A Nro. 1- 50. Torre 1, piso 12, Oficina 1252. Complejo San Fernando Plaza.
Medellín, Antioquia, Colombia.

Under Cooperative Agreement No. 7200AA21CA00003

Sub-Award Number: 800- ProAntioquia

Sub-Award Type: Standard Cost Reimbursable Subaward

Sub-Award Ceiling: $2,188,979

Obligated Sub-Award Amount: $1,436,700

Start Date: August 16, 2021

End Date: August 31, 2026

Unique Entity Identifier (UEI) Number: KTC8WGLV8485

SUB-ACUERDO ESTÁNDAR DE COSTOS REEMBOLSABLES

No. 800-Proantioquia

Partners of the Americas, Inc.
y
ProAntioquia

GENERALIDADES E INTRODUCCIÓN

Este Sub-Acuerdo se concierta por y entre Partners of the Americas, Inc., con dirección en 1424 K Street NW, Suite 700, Washington, DC 20005, en lo sucesivo denominados "POA" y **Proantioquia**, con domicilio en Carrera 43 A Nro. 1- 50. Torre 1, piso 12, Oficina 1252. Complejo San Fernando Plaza; Medellín, Colombia, en lo sucesivo denominado "Sub- Adjudicatario". Ambos juntos en lo sucesivo denominados "las Partes".

Introducción
Se ha concedido a POA el Proyecto Juntos Aprendemos para aumentar el acceso a una educación de calidad para niños y adolescentes, de 3 a 17 años de edad, centrándose en preprimaria, primaria y secundaria, en áreas afectadas por la migración CFDA: 98.001.

El Sub-adjudicatario ha sido identificado, a través del proceso de la propuesta por tener ciertas capacidades administrativas y técnicas necesarias para apoyar a POA en la implementación del acuerdo, y POA ha determinado que es en su mejor interés obtener asistencia del Sub-adjudicatario para el desempeño global del trabajo establecido en el acuerdo suscrito con la Agencia de los Estados Unidos para el Desarrollo Internacional (USAID).

El Sub- adjudicatario, actuando como receptor independiente y no como agente o socio de POA, está dispuesto, capaz y calificado para realizar dichos trabajos/servicios en los términos que se establecen a continuación y en base a un plan de trabajo anual que se desarrollará conjuntamente entre las partes (y los otros socios implementadores y a ser aprobado por USAID) en las fechas determinadas por el director del Proyecto (en inglés "Chief of Party", Abrev. "COP") de Juntos Aprendemos.

Este Sub-Acuerdo incorpora todas las reglas y políticas relevantes de USAID y del gobierno de los Estados Unidos referidas y en cualquier disposición de Sub-Acuerdo vigente en la Fecha de Entrada en Vigor. El Sub-adjudicatario quedará automáticamente obligado por

STANDARD COST REIMBURSABLE SUBAWARD

No. 800-Proantioquia

Partners of the Americas, Inc.
And
ProAntioquia

GENERAL DESCRIPTION AND INTRODUCTION

This Sub-Agreement is entered into by and between Partners of the Americas, Inc., located at 1424 K Street NW, Suite 700, Washington, DC 20005, hereinafter referred to as “POA” and **Proantioquia**, located at Carrera 43 A Nro. 1- 50. Torre 1, piso 12, Oficina 1252. Complejo San Fernando Plaza; Medellín, Colombia, hereinafter referred to as “Sub-Awardee”. Both together hereinafter referred to as “the Parties.”

Introduction
POA has been granted The Juntos Aprendemos Project to increase access to quality education for children and adolescents, ages 3 to 17 focusing on pre-primary, primary and secondary, in areas impacted by migration CFDA: 98.001.

The Sub-Awardee has been identified through the proposal process as having certain required administrative and technical capabilities necessary to support POA’s implementation of the agreement, and POA has determined that it is in their best interest to obtain assistance from Sub-Awardee for the performance of the work/services set forth in the grant agreement with U.S. Agency for International Development (USAID).

The Sub-Awardee, acting as an independent recipient and not as an agent or partner of POA, is willing, able and qualified to perform said work/services upon the terms hereafter provided and based on an annual work plan to be jointly developed by the parties (and the other core implementing partners and to be approved by USAID) according with the schedule determined by the Juntos Aprendemos´ Chief of Party (COP).

This Sub-Agreement incorporates all relevant USAID and U.S. government-wide rules and policies referred to and in any Sub-Award provision in force on the Effective Date. Sub-Awardee shall be automatically bound by any modifications issued by POA to such rules and policies

cualquier modificación emitida por POA a dichas reglas y políticas adoptadas en la fecha efectiva de la firma de la misma, y en la medida en que, dichas modificaciones sean aplicables a POA en virtud del Acuerdo Cooperativo.

Las disposiciones de este Sub-Acuerdo se leerán juntas y se aplicarán de manera coherente. En caso de ambigüedad o aparente conflicto o inconsistencia, el Sub-adjudicatario deberá notificar y obtener orientación de POA antes de proceder. Si el Sub- adjudicatario o no lo hace, estará sujeto a la interpretación de POA.

En consideración de los convenios, acuerdos, representaciones, garantías, términos y disposiciones aquí contenidos, cuya recepción y suficiencia se reconocen por el presente, las partes acuerdan lo siguiente:

POA y el Sub- adjudicatario aceptan los términos de este Sub-Acuerdo de conformidad con los siguientes Anexos:

1. Página Principal
2. Generalidades del acuerdo e introducción
3. Cronograma del Sub-Acuerdo
4. Anexo A – Descripción y objetivos del programa
5. Anexo B – Presupuesto detallado
6. Anexo C – Personal Clave y Términos de Referencia (si corresponde)
7. Anexo D – Cronograma de ejecución programática e informes
8. Anexo E - Fechas de Presentación de Informes
9. Anexo F – Disposiciones Estándar de POA
10. Anexo G: Disposiciones Estándar Obligatorias de USAID para Organizaciones no gubernamentales no basadas en los E.E.U.U. y disposiciones especiales
11. Anexo H - Plan de Marcado y Etiquetado

adopted at the Effective Date of the modification, and to the extent that, such modifications are applicable to POA under the Cooperative Agreement.

The provisions of this Sub-Award shall be read together and applied in a consistent manner. In the event of ambiguity or apparent conflict or inconsistency, Sub-Awardee shall notify and obtain guidance from POA before proceeding. If Sub-Awardee fails to do so, it shall be bound by POA's interpretation.

In consideration of the covenants, agreements, representations, warranties, terms, and provisions herein contained, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

POA and the Sub-Awardee agree to the terms of this Sub-Agreement according with the following Annexes:

1. Cover page
2. General description and introduction
3. Schedule of Sub-Award
4. Annex A – Program Description and Objectives
5. Annex B – Detailed Budget
6. Annex C – Key Personnel and Terms of Reference (if applicable)
7. Annex D – Programmatic Implementation Schedule, Requirements and Reports.
8. Annex E – Report Submission Dates
9. Annex F - POA Standard Provisions.
10. Annex G: USAID Mandatory Standard Provisions for Non-US Non-Governmental Organizations and Special Provisions
11. Annex H – Branding and Marking Plan

CRONOGRAMA DEL SUB-ACUERDO

CLÁUSULA PRIMERA. Relación Jurídica entre las partes y otros.

Este convenio está financiado total o parcialmente con fondos de USAID. Sin embargo, ni USAID ni ninguno de sus departamentos, agencias o empleados son o serán parte de este acuerdo o de cualquier sub- acuerdo de nivel inferior. Este acuerdo no establece ningún vínculo entre USAID y el Sub- adjudicatario. El Sub-adjudicatario respetará y no causará debilitar la confidencialidad del acuerdo entre USAID y POA.

El Sub- adjudicatario no tiene relación alguna con USAID bajo los términos de este convenio. No obstante, otras cláusulas de este convenio el Sub- adjudicatario no tendrá el derecho de presentar reclamaciones a USAID y USAID no asumirá responsabilidad alguna por daños a terceros en solicitudes en contra de POA.

CLÁUSULA SEGUNDA. Propósito del Sub-Acuerdo

El propósito de este Sub-Acuerdo es brindar apoyo para el programa descrito en el Anexo A de este acuerdo titulado “Descripción y Objetivos del Programa”.

CLÁUSULA TERCERA. Cumplimiento de las leyes federales de EE. UU. Y las disposiciones estándar obligatorias.

El Sub-Acuerdo refleja todos los requisitos aplicables del acuerdo Principal. Las disposiciones estándar pertinentes se enumeran en el Anexo G, con las adaptaciones indicadas allí y en otras partes del texto del Sub-Acuerdo. Todas las normas aplicables del Gobierno federal de los Estados Unidos y del Donante a las que se hace referencia en cualquier disposición del presente están en vigor en la Fecha efectiva y están incorporadas.

Se requiere que el Sub- adjudicatario complete y devuelva con el Sub-Acuerdo firmado las certificaciones y enviadas por separado.

En el caso de que se determine que existe un conflicto de intención o interpretación entre cualquier sección de este Sub-Acuerdo y cualquier sección de los documentos incorporados, el orden de precedencia será:

SCHEDULE OF SUB-AWARD

ARTICLE 1. Privity between parties and third parties.

This agreement is funded in whole or in part with funds from USAID. However, neither USAID nor any of its departments, agencies, or employees is or will be a party to this agreement or any lower-tier Sub-Agreement. No privity between the USAID and the Sub-awardee is established by this agreement. The Sub-Awardee shall respect and will not cause to undermine the privity of the agreement between USAID and POA.

Sub-awardee has no relationship with USAID under the terms of this award. Notwithstanding any other term of this award, Sub-awardee have no right to submit claims directly to USAID and USAID assumes no liability for any third-party claims against POA.

ARTICLE 2. Purpose of the Sub-Agreement

The purpose of this Sub-Agreement is to provide support for the program described in Annex A of this agreement entitled "Program Description and Objectives."

ARTICLE 3. Compliance with U.S. Federal Laws and Mandatory Standard Provisions.

The Agreement reflects all applicable Prime Award requirements. Pertinent Standard Provisions are listed in Attachment G, with adaptations indicated there and elsewhere in the Agreement text. All applicable Donor and U.S. Federal government rules referred to in any provision hereof are in force on the Start Date and are incorporated.

The Sub-Awardee is required to complete and return with the signed Sub-Award Agreement the applicable certifications to be sent separately.

In the event that it is determined that there exists a conflict of intent or interpretation between any sections of this Sub-Award and any section of the incorporated documents, the order of precedence shall be:

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1. El Cronograma del Sub-acuerdo incluyendo los Anexos A, B, C, D, E, y H.
2. Las disposiciones estándar de USAID para Organizaciones no gubernamentales y no estadounidenses.
3. 2 CFR 200.
4. El Manual de subvenciones de Juntos Aprendemos.
5. Las Disposiciones estándar de POA.
6. Finalmente, cualquier documento adicional enumerado anteriormente.

CLÁUSULA CUARTA. Tipo de Sub-Acuerdo

Este es un Sub-Acuerdo Estándar de Costos Reembolsables siempre y cuando el Sub-Acuerdo esté totalmente financiado a través de POA bajo USAID, y el valor estimado será hasta el tope de USD$2,188,979, por un período de 60.5 meses, con el único propósito de coordinar todos los aspectos del Proyecto "Juntos Aprendemos".

Este Sub-Acuerdo puede ser modificado o ampliado por mutuo acuerdo de las dos partes. POA hará cualquier enmienda o modificación por escrito pero POA NO le pagará al Sub- adjudicatario ninguna cantidad superior a la cantidad obligada y especificada en la cláusula quinta del Sub-Acuerdo, a menos que POA lo autorice por escrito.

CLÁUSULA QUINTA. Período de Ejecución y cierre.

La fecha de vigor de este Acuerdo es **16 de agosto de 2021** y la fecha estimada de finalización de ejecución de actividades será el **31 de agosto de 2026**, ("Periodo de Ejecución"). Sin embargo, todas las actividades técnicas finalizarán el **31 de mayo de 2026**, mientras que actividades administrativas y de cierre terminarán el **31 de agosto de 2026**.

Los servicios se completarán y serán enviados a POA en conformidad con la línea de tiempo especificada en el cronograma de ejecución programática, los requisitos y los informes (anexo D), los planes de trabajo anuales aprobados o según lo acordado por escrito por las Partes. El no proponer y completar el trabajo de acuerdo con un cronograma razonable puede considerarse incumplimiento de los términos y condiciones del acuerdo.
Las actividades financiadas con fondos de este Sub-Acuerdo no comenzarán antes de la fecha de inicio y deberán completarse a más tardar en la fecha de finalización, a menos que POA apruebe por escrito la

1. The Schedule of Sub-award including Annexes A, B, C, D, E, and H.
2. The USAID Standard provisions for Non-US Nongovernmental Organizations.
3. 2 CFR 200.
4. Juntos Aprendemos Subaward Manual.
5. The Standard Provisions of POA.
6. Finally, any additional documents listed above.

ARTICLE 4. Sub-Agreement Type

This Sub-agreement is a Standard Cost Reimbursable Sub-Award, if and when the Sub-Agreement is fully funded through POA under USAID. The estimated amount up to the ceiling of USD $2,188,979, for a 60.5-month period is for the sole purpose of coordinating all aspects of the "Juntos Aprendemos" Project.

This Sub- Agreement may be modified or extended by mutual agreement of the two parties. Any amendment or modification will be made in writing by POA but the Sub-awardee will not be paid any amount greater than the obligated Sub-award amount specified in Article 5, unless POA authorized in writing.

ARTICLE 5. Period of Performance and closeout activities.

The start date of this Agreement is **August 16, 2021**, and the estimated completion date is August 31, 2026 ("Period of Performance"). However, all technical activities will end **May 31, 2026**, while administrative and closeout activities will end **August 31, 2026**.

The services shall be completed and delivered to POA in accordance with the schedule specified in the Programmatic Implementation Schedule, Requirements and Reports (Annex D), approved annual work plans, or as otherwise agreed to in writing by the Parties. Failure to propose and complete work according to a reasonable schedule may be deemed failure to comply with the terms and conditions of the award.

Activities financed with funds from this Sub-award shall not commence prior to the start date and must be completed no later than the completion date, unless

prórroga antes de la fecha de finalización de la Sub-Acuerdo.

CLÁUSULA 6. Monto de la Subvención, Costo Estimado, Costo Obligado y Presupuesto aprobado

6.1. El monto total y monto total estimado de este Sub-Acuerdo es hasta la suma de **DOS MILLONES, CIENTO OCHENTA Y OCHO MIL, NOVECIENTOS SETENTA Y NUEVE DÓLARES AMERICANOS (USD 2,188,979)** siempre y cuando el Sub-Acuerdo esté totalmente financiado. El monto del Sub-Acuerdo está sujeto a la disponibilidad de fondos proporcionados por USAID. No se pagará ningún costo por encima del costo total estimado. En caso de rescisión antes del vencimiento del Período de Ejecución, de acuerdo con los términos de este Acuerdo, POA pagará todos los costos permitidos acumulados por el Sub-adjudicatario a la fecha de rescisión, incluidas las obligaciones no cancelables.

6.2. La cantidad por la presente obligada a este Sub-Acuerdo es de **UN MILLÓN CUATROCIENTOS TREINTA Y SEIS MIL SETECIENTOS DÓLARES AMERICANOS (USD $1,436,700)**. Esta es la cantidad total disponible para el Sub- adjudicatariopara la implementación del programa descrito en el Anexo A. Se asignarán fondos adicionales si hay y cuando haya fondos adicionales disponibles.

a. El Sub- adjudicatario no excederá y POA no está obligado a pagar cantidades mayores que esta cantidad obligada.
b. El Sub- adjudicatario deberá notificar a POA por escrito siempre que tenga motivos para creer que los gastos en los que espera incurrir en virtud de este Sub-Acuerdo en los próximos 60 días, cuando se sumen a todos los gastos incurridos anteriormente, superarán el 70% de la Cantidad total obligatoria o la cantidad estimada del Sub-Acuerdo especificado en la Cláusula Quinta o modificada posteriormente.
c. El Sub-Acuerdo se financiará en cuotas, incluyendo el cumplimiento de determinadas condiciones y plazos de presentación de informes, que se enumeran en el Anexo D, Cronograma de ejecución programática, Requisitos e informes.
d. Cualquier dinero no gastado al final del proyecto debe reembolsarse a POA.
e. El detalle del costo total estimado se ha proporcionado en el presupuesto de este Sub-Acuerdo y se adjunta en el Anexo B "Presupuesto Detallado".

6.3. PRESUPUESTO. El siguiente es el presupuesto del Sub-Acuerdo.

POA provides approval for extension in writing prior to the specified sub-award completion date.

ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget

6.1. The total and the estimated total amount of this Award is up to **TWO MILLION, ONE HUNDRED EIGHTY-EIGHT THOUSAND, NINE HUNDRED SEVENTY-NINE AMERICAN DOLLARS (USD 2,188,979)** if and when the Sub-Award is fully funded. Amount of the award is subject to the availability of funds provided by USAID. No cost will be paid above the total estimated cost. In the event of termination before expiration of the Period of Performance, in accordance with the terms of this Agreement, POA shall pay all allowable costs accrued by Sub-Awardee as of the date of termination, including non-cancellable obligations.

6.2. The amount hereby obligated to this Sub-Award is **ONE MILLION FOUR HUNDRED THIRTY-SIX THOUSAND SEVEN HUNDRED AMERICAN DOLLARS (USD $1,436,700).** This is the total amount available to the Sub-Awardee for implementation of the program described in Annex A. Incremental funding will be allocated if and when additional funding becomes available.

a. The Sub-Awardee shall not exceed and POA is not obligated to pay amounts greater than this obligated amount.
b. The Sub-Awardee should notify POA in writing whenever it has reason to believe that the costs it expects to incur under this sub-award in the next 60 days, when added to all costs previously incurred, will exceed 70% of the Total Obligated Amount and/or Estimated Sub-award Amount specified in Article 5 or as modified thereafter.
c. This Sub-Agreement will be funded in installments, including meeting certain conditions and reporting deadlines, listed in Annex D, Programmatic Implementation Schedule, Requirements and Reports.
d. Any unspent money at the end of the project should be reimbursed to POA.
e. The detail of the total estimated cost has been provided in the budget of this Sub-Agreement and as attached in Annex B "Detailed Budget".

6.3. BUDGET. The following is the Sub-Award Budget.

1. Las revisiones de este presupuesto se realizarán de acuerdo con las Disposiciones de Acuerdos de USAID, los requisitos presupuestarios y 2 CFR 200.308.
2. El Sub- adjudicatario debe informar las desviaciones del presupuesto. Se requiere la aprobación previa de POA para autorizar al Sub-Adjudicatario que reasigne fondos bajo la partida presupuestaria del Sub-Acuerdo. Siempre que se espere que la cantidad de fondos federales autorizados en este Sub- Acuerdo exceda los requisitos del proyecto, como se describe en la propuesta aprobada en más de diez por ciento (10%) del monto total por categoría del Sub-Acuerdo, el Sub- adjudicatario notificará de inmediato al Gerente de Subvenciones POA. En todos los casos de movimiento entre rubros, POA deberá ser informado.
3. El Sub-Adjudicatario presentará al Gerente de Subvenciones de POA para su aprobación previa el presupuesto y narrativo propuesto para cualquier acuerdo monetario con un flujo de responsabilidad programática hacia un Sub-Adjudicatario de segundo nivel.
4. Presupuesto general aprobado: El presupuesto del Sub-Acuerdo se basa en el presupuesto detallado que el Sub-Adjudicatario presentó y que POA aceptó para la ejecución de esta actividad. El presupuesto aprobado de la subvención se menciona en el resumen del presupuesto que figura a continuación:

1. Revisions to this budget shall be made in accordance with USAID Award Provisions, Budget requirements and 2 CFR 200.308.

2. Sub-Awardee is required to report deviations from the budget. POA's prior approval is required to authorize the Sub-Awardee to reassign funds under the Sub-Agreement budget line item. Whenever the amount of Federal funds authorized in this Sub- Agreement is expected to exceed the requirements of the project, as outlined in the approved proposal by ten (10) percent of the budget line categories, the Sub- Awardee will promptly notify the POA Grants Manager. In any case all changes between budget categories must to be informed to POA.
3. The Sub-Awardee shall submit to the PARTNERS Grants Manager for prior approval the proposed budget and budget narrative for any monetary agreement with a flow down of programmatic responsibility to a second-tier Sub-awardee.
4. Approved general budget: The Sub-Agreement budget shall be approved by POA post approval by the Funder. The subawards budget is based on the detailed budget that the sub-awardee submitted, and POA accepted for implementation of this activity. The approved subward budget is referred in the summary budget below:

	Categories **Categorias**	**Amount** **Monto**	**Leverage** **Apalancamiento**	**Total**
1.	Personnel Personal	$977,361	$193,113	$1,170,474
2.	Fringe Benefits Beneficios	$471,981	$61,320	$533,301
3.	Travel Viajes	$212,155	$0	$212,155
5.	Supplies Suministros	$27,181	$63,982	$91,163
6.	Contractual Contractual	$44,732	$0	$44,732
7.	Other Direct Costs Otros Costos Directos	$351,220	$0	$351,220
8.	**Total Direct Costs** **Total Costos Directos**	**$2,084,631**	**$318,415**	**$2,403,047**
9.	Indirect Costs Costos Indirectos	$104,348	$20,310	$124,657
10.	**Total Costs** **Total Costos**	**$2,188,979**	**$338,725**	**$2,527,704**

CLÁUSULA 7. Costos Admisibles

7.1. Principios de costos para todo el gobierno.
La admisibilidad de los costos incurridos por el Sub-adjudicatario y cualquier tipo de costo de los contratistas se determinarán de acuerdo con los principios de costos federales aplicables a la organización. POA requiere la documentación de respaldo completa, incluyendo los recibos de todos los gastos superiores a USD$25, que debe proporcionar el Sub-Adjudicatario para justificar los costos de todo tipo de gastos según lo aprobado en el presupuesto.

7.2. Norma general.

El Sub- adjudicatario puede usar fondos bajo el acuerdo, incluidos los fondos de USAID y cualquier costo compartido requerido o contribuciones de contrapartida, solo para:

a. los costos permitidos incurridos por los destinatarios, los subreceptores o los contratistas de tipo-costo; y
b. tarifas o ganancias razonables para los contratistas de tipo-costo, pero ninguna tarifa o ganancia (u otro incremento por encima de los costos permitidos) para el destinatario o cualquier subreceptor.

Todos los costos que se carguen a Sub-Acuerdo se evaluarán y aprobarán de conformidad con los Principios de Costos de la Subparte E del 2 CFR 200

Consulte las Circulares OMB para obtener una lista de los costos visite la dirección del sitio web en: https://www.ecfr.gov/cgi-bin/text-idx?SID=5716a444c9b48d5a385290103fe78b37&mc=tr%20ue&node=pt2.1.200&rgn=div5

El Sub- adjudicatario solo puede cobrar a POA los costos permitidos incurridos durante el período de ejecución de este acuerdo. Todos los costos incurridos por el Sub- adjudicatario antes de la fecha de inicio de este acuerdo no están autorizados y están bajo el riesgo propio del destinatario.
El Sub- adjudicatario reembolsará sin demora a POA todos y cada uno de los costos que POA desembolse al Sub- donatario pero que posteriormente sea rechazado por POA, USAID o un auditor designado.

CLÁUSULA 8. Pagos y Reportes Financieros.

ARTICLE 7. Allowable Costs

7.1. Government-wide cost principles.
The allowability of costs incurred by the Sub- Awardee, and any cost type contractors will be determined in accordance with the Federal cost principles applicable to the organization. POA requires full support documentation, including receipts for all expenses over $25 USD, to be provided by the Sub-Awardee to justify costs for all type of expenses as approved in the budget.

7.2. General rule.

The Sub-Awardee may use funds under the award, including the USAID funds and any required cost sharing or matching contributions, only for:

a. allowable costs incurred by the recipients, any sub-recipients, or cost-type contractors; and
b. reasonable fees or profit to cost-type contractors but not any fee or profit (or other increment above allowable costs) to the recipient or any sub-recipients.

All costs to be charged to the Sub-award will be evaluated and approved in accordance with 2 CFR 200 Subpart E Cost Principles.

Refer to the OMB Circulars to obtain listing of allowable costs, or visit website address: https://www.ecfr.gov/cgi-bin/text-idx?SID=5716a444c9b48d5a385290103fe78b37&mc=tr%20ue&node=pt2.1.200&rgn=div5

Sub-Awardee may charge to POA only allowable costs incurred during the period of performance of this award. All costs incurred by Sub-Awardee before the start date of this award are not authorized and are at the recipient's risk.

Sub-Awardee shall promptly reimburse POA for any and all costs that are disbursed to Sub- Awardee by POA but are subsequently disallowed by POA, USAID, or any designated auditor.

ARTICLE 8. Payments and Financial Reports.

El Sub- adjudicatario puede recibir un primer pago por adelantado por los costos estimados para dos meses de operación, que no puede exceder el monto obligado del acuerdo.

El Sub- adjudicatario acepta asegurarse de que todos los fondos proporcionados se gasten para el propósito y de acuerdo con los términos y condiciones de este Sub-Acuerdo.

El Sub- adjudicatario puede ser pagado por adelantado, siempre que se cumplan los siguientes requisitos:

1. Deben cumplir con los requisitos del ADS636 Anticipos Financiados por el Programa.
2. El Sub- adjudicatario debe mantener sistemas de administración financiera que cumplan con los estándares tanto para la rendición de cuentas como para el control de los fondos.
3. El Sub- adjudicatario debe mantener procedimientos escritos que reducen el tiempo que transcurre entre la transferencia de fondos y su desembolso por parte del Sub- donatario.
4. El Sub- adjudicatario estará autorizado a presentar solicitudes de anticipos y reembolsos mensualmente.
5. Los anticipos se limitarán a los montos mínimos necesarios y se programarán para que estén de acuerdo con los requisitos de efectivo reales e inmediatos del Sub- adjudicatario para llevar a cabo el propósito del programa o proyecto aprobado.
6. El momento y el monto de los anticipos en efectivo serán lo más cercano posible desde el punto de vista administrativo a los desembolsos reales del Sub- adjudicatario.

Las solicitudes siguientes de anticipo deben remitirse electrónicamente al Gerente de Subvenciones a más tardar el décimo (10°) día hábil del mes.

Todos los anticipos en efectivo al Sub-Adjudicatario se limitarán a la cantidad mínima necesaria y se programarán de acuerdo con las necesidades reales e inmediatas de efectivo del Sub-Adjudicatario para llevar a cabo el propósito del programa o proyecto aprobado.

Liquidación de anticipos periódicos. El Sub-adjudicatario debe enviar copias de los recibos más el informe de gastos detallado (o la Factura, sujeto a entidades con fines de lucro) electrónicamente al Gerente de Subvenciones el o antes del quinto (5°) día hábil de cada mes.

The Sub-Awardee may receive a first advance payment for estimated costs for two months of execution, which cannot exceed obligated award amount.

The Sub-Awardee agrees to ensure that all funds provided are expended for the purpose and in accordance with the terms and conditions of this Sub-Agreement.

Sub-Awardee may be paid in advance, provided the following requirements are met:

1. They must meet the requirements of the ADS636 Program Funded Advances.
2. The Sub-awardee must maintain financial managements systems that meet the standards for both fund accountability and control.
3. The Sub-awardee must maintain written procedures that minimize the time elapsing between the transfer of funds and their disbursement by the subawardee.
4. The Sub-awardee will be authorized to submit requests for advances and reimbursements monthly.
5. The advances will be limited to the minimum amounts needed and be timed to be in accordance with the actual, immediate cash requirements of the Sub-awardee in carrying out the purpose of the approved program or project.
6. The timing and amount of cash advances shall be as close as is administratively feasible to the actual disbursements by the Sub-awardee.

Further requests for advance payment must be submitted electronically to POA Grants Manager no later than the tenth (10th) business day of each month.

All cash advances to the Sub-Awardee will be limited to the minimum amount needed and will be timed to be in accordance with the sub-recipient's actual, immediate needs for cash to carry out the purpose of the approved program or project.

Liquidation of periodic advance. The Sub-Awardee must submit copies of receipts plus the detailed expense report (or the Invoice, subject to for-profit entities) electronically to Grants Manager on or before the fifth (5th) business day of each month.

Para presentar el informe de todos los ingresos y gastos, POA requerirá una tasa de cambio a base de un promedio mensual. También se debe presentar el cálculo de esta tasa de cambio a la POA con el informe financiero mensual.

To report all revenues and expenditures, POA will require a monthly average exchange rate. Proof of exchange rate must be submitted to POA with the monthly financial report.

Se puede proporcionar evidencia de la taza de intercambio durante el período en OANDA: http://www.oanda.com/. Luego, la tasa se aplica a todos los gastos del mes, independientemente del día exacto del gasto. Anualmente, en diciembre, el POA permitirá calcular una ganancia / pérdida sobre estas tasas de intercambio.

Evidence of the exchange rate during the period can be provided from OANDA: http://www.oanda.com/. The rate is then applied to every expense in the month regardless of the exact day of expenditure. Annually, in December POA will allow for a gain/loss on exchange rate to be calculated.

Cuando expire este Sub-Acuerdo, el Sub- adjudicatario debe devolver inmediatamente todos los fondos no gastados que POA le haya adelantado, a menos que esos fondos adelantados ya se hayan gastado o comprometido en una transacción jurídicamente vinculante durante el período de este Sub-Acuerdo o se requieran para gastos de cierre aprobados.

When this sub-award expires, the sub-awardee must immediately return all unexpended funds that POA has advanced to the sub-awardee, unless such advanced funds have already been spent or committed in a legally binding transaction during the period of this sub-award or are required for approved closeout costs.

Una vez recibidos, los comprobantes de gastos del Sub-adjudicatario serán revisados para su aprobación y certificación por POA dentro de 10 días hábiles. El Sub-adjudicatario será adelantado por los servicios dirigidos por POA de acuerdo con su práctica comercial normal, y después de que la liquidación del adelanto del mes anterior se haya acabado por completo. POA adelantará los costos estimados proyectados del Sub- adjudicatario dentro de los 30 días posteriores a la recepción del informe de gastos del mes anterior (o una Factura) del Sub- adjudicatario.

Once received, the Sub-Awardee expense submissions will be reviewed for approval and certification by POA within 10 business days. The Sub-Awardee will be advanced for services directed by POA in accordance with its normal business practice, and after the liquidation of the previous month's advance is fully completed. POA will advance the Sub-Awardee's estimated projected costs within 30 days of receiving the previous month's expense report (or an Invoice) from the Sub-Awardee.

Todos los pagos realizados por POA al Sub-adjudicatario están sujetos a una auditoría por POA y USAID. El Sub- adjudicatario acepta reembolsar sin demora a POA cualquier pago con cargo a este convenio que sea suspendido o rechazado. En caso de informes financieros sobre adelantos delictivos, POA reserva el derecho de dejar de proporcionar solicitudes de adelantos posteriores.

All payments made by POA to the Sub-Awardee are subject to an audit by POA and USAID. The Sub-Awardee agrees to refund promptly to POA any payment charged to this sub-agreement that is suspended or disallowed. In case of delinquent financial reporting on advances, POA reserves the right to stop providing subsequent advance requests.

POA proporcionará orientación sobre los términos de la información financiera. Como mínimo mensualmente, el Sub- adjudicatario enviará el formulario de Solicitud de Efectivo junto con el formulario de Informe Financiero y el Informe Detallado de Gastos. La orientación será proporcionada por el gerente de subvenciones y otros miembros relevantes de POA.

POA will provide guidance to the terms of financial reporting. As minimum on a monthly basis the Sub-Awardee will submit the Cash Request form along with the Financial Report form and Detailed Expense report. The guidance will be provided by the POA's Grants Manager other members of the project team from POA.

Si no se aprueba el adelanto, POA reembolsará al Sub-adjudicatario mensualmente. El Sub- adjudicatariodebe presentar un informe de gastos mensual (o la Factura) junto con copias de todos los recibos y otra

If an advance is not approved, POA will reimburse Sub-Awardee on a monthly basis. The Sub-Awardee must submit a monthly expense report (or the Invoice) along with copies of all the receipts and other supporting

documentación de respaldo según lo solicite el CFO de POA. POA procesará las solicitudes de reembolso dentro de los treinta (30) días posteriores a la recepción de las solicitudes.

CERTIFICACIÓN DE GASTOS

Cada informe de gastos deberá contener la siguiente certificación, firmada por el funcionario autorizado del Sub- adjudicatario:
"*El abajo firmante certifica (1) que el informe fiscal y los anexos se han preparado a partir de los libros y registros del Subadjudicatario de acuerdo con los términos de este Sub-Acuerdo, y a mi leal saber y entender, son correctos, que la suma reclamada en virtud de este contrato es adecuada y que todos los costos corresponden al desarrollo del Sub-Acuerdo (Salvo que se informe por escrito que se ha acumulado o pagado o se pagará actualmente al Sub-Acuerdo a su vencimiento en el curso ordinario de los negocios.)*
2. Que el trabajo reflejado por los costos arriba indicados se ha ejecutado, que las cantidades y montos involucrados son consistentes con los requisitos de la Subadjudicación.
3. Que se han obtenido todas las aprobaciones requeridas y el reembolso apropiado a Partners of the Americas será previa solicitud en caso de desestimación de costos no reembolsables bajo el término de este Sub-Acuerdo.
4. Al firmar este informe, certifico que los gastos contenidos en el presente informe para el mes de MES/AAAA equivalentes a US $0,00 fueron incurridos por la entidad, y están relacionados con las actividades realizadas por el proyecto. Certifico a mi leal saber y entender que el informe es verdadero, completo y preciso, y que los gastos y desembolsos son para los propósitos y objetivos establecidos en los términos y condiciones del Acuerdo de USAID. Soy consciente de que cualquier información falsa, ficticia o fraudulenta, o la omisión de cualquier hecho material, puede someterme a sanciones penales, civiles o administrativas por fraude, declaraciones falsas, reclamaciones falsas o de otro tipo. Entiendo que, si los gastos contenidos en este documento son cuestionados o no aprobados por Partners CFO o por USAID, brindaré plena cooperación a todas las partes involucradas para completar dicha revisión, auditoría o investigación.

Por (Firma):
NOMBRE:
TITULO:

documentation as requested by POA CFO. POA will process requests for reimbursement within thirty (30) days of receiving the requests.

EXPENSE CERTIFICATION

Each expense report shall contain the following certification, signed by the authorized official of the Sub-Awardee:

"1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the Subawardee in accordance with the terms of this Subaward, and to the best of my knowledge and belief, that they are correct, that the sum claimed under this contract is proper and that all the costs of the Subaward performance (except as herewith reported in writing has been accrued or paid or will be paid currently to the Subaward when due in the ordinary course of business.)
2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the Subaward.
3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not reimbursable under the term of this Subaward.
4. By signing this report, I certify that the expenses contained in the present report for month of Month/YYYY equivalent to US dollars US $0,00 were incurred by the entity and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USAID Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USAID, I will provide full cooperation to all the involved parties to complete such review, audit, or investigation.

BY (Signature):
NAME:
TITLE:

CLÁUSULA 9. Documentación de Respaldo

El informe de gastos original (o una Factura) deberá estar en el formato aprobado por POA. El informe de gastos debe tener el número de acuerdo. El Sub-adjudicatario conservará los originales de la siguiente documentación de respaldo que POA pueda revisar según sea necesario:

a. Las copias de las hojas de tiempo de todo el personal que se facture en el período cubierto por la factura, o cualquier otro registro que refleje con precisión el trabajo realizado en virtud de este acuerdo, estarán disponibles a pedido.
b. Carpeta contractual que contenga contratos de trabajo, contratos de consultoría, acuerdos, órdenes de servicio, y en general todos los documentos que soporten gastos con cargo al Sub-Acuerdo, deberán estar disponibles a pedido.

c. Todos los demás costos reembolsables directos superiores a USD $25, incluyendo viajes, transporte, prestaciones, comunicaciones, reproducción, reuniones, capacitaciones, entre otras, deben estar respaldados por facturas, cuentas, o recibos detallados.
d. Copias de los recibos/facturas derivadas de los numerales a, b y c se deben enviar mensualmente.

POA hará una reducción por cualquier rechazo o endeudamiento por parte del Sub- Adjudicatario aplicando el producto de la Factura primero a dichas deducciones y luego a cualquier saldo no liquidado del adelanto, si lo hubiera, restante bajo este Sub-Acuerdo.

ARTICLE 9. Backup Documentation

The original expense report (or an Invoice) shall be in the format approved by POA. The expense report must have agreement number on it. The Sub- Awardee shall retain original documents of the following backup documentation that POA may review as required:

a. Copies of Timesheets for all staff being billed in the period covered by the Invoice, or any other records that accurately reflect the work performed under this agreement, will be made available upon request.
b. Files that support work contracts, short-term technical assistance (STTAs), contracts, agreements, purchase orders, and in general all the documentation that support any kind expenses under the approved budget will be made available upon request.
c. All other direct reimbursable costs greater than USD $25 including travel, transportation, allowances, communications, reproduction, meetings, trainings, among others, must be supported by itemized bills, invoices, or receipts.
d. Copies of receipts/invoices emanating from numerals a, b and c need to be submitted on a monthly basis.

POA will make a reduction for any disallowance or indebtedness by the Sub-Awardee by applying the proceeds of the Invoice first to such deductions and next to any unliquidated balance of advance, if any, remaining under this Sub- Agreement.

Retención de registros

El Sub- adjudicatario debe mantener registros financieros y de programas relacionados con esta subadjudicación de conformidad con el artículo 2 CFR 200.333 y durante un período de tres años a partir de la fecha de cierre del Acuerdo de Cooperativo, o más si así lo dicta la legislación local. POA, el organismo federal adjudicador, los inspectores generales, el Contralor General de los Estados Unidos o cualquiera de sus representantes autorizados, tienen derecho a acceder a todos los documentos, papeles u otros registros del subdonatario que sean pertinentes para la subadjudicación federal, a fin de realizar auditorías, exámenes, extractos y transcripciones. El derecho también incluye el acceso oportuno y razonable al personal de la subadjudicación a los efectos de la entrevista y la discusión relacionados con esos documentos. Los derechos de acceso en esta sección no se limitan al período de retención requerido, sino que duran mientras se conserven los registros.

Records Retention

The sub-awardee must maintain financial and program records that pertain to this Sub-award in accordance with 2 CFR 200.333 and for a period of three years from the end date of the prime Cooperative Agreement or more if dictated by local law. POA, the Federal awarding agency, Inspectors General, the Comptroller General of the United States, or any of their authorized representatives, have the right of access to any documents, papers, or other records of the sub-awardee which are pertinent to the Federal sub-award, to make audits, examinations, excerpts, and transcripts. The right also includes timely and reasonable access to the sub-award's personnel for the purpose of interview and discussion related to such documents. The rights of access in this section are not limited to the required retention period but last as long as the records are retained.

Auditorías anuales

Las auditorías anuales de la subadjudicación deben llevarse a cabo de conformidad con los requisitos de auditoría de la subparte F del artículo 2 CFR 200 y las disposiciones estándar obligatorias de los anexos F y G de este sub-acuerdo. Si el sub donatario no está obligado a informar a la Federal Audit Clearinghouse (Cámara Federal de Compensación de Auditoría), debe poner a disposición de POA una copia de su auditoría anual dentro de los 30 días naturales siguientes a la recepción del informe o informes del auditor, o nueve meses después de la finalización del período de auditoría, lo que ocurra primero. La auditoría debe contener todos los elementos especificados en el paquete de información del 2 CFR 200.512 (c). Los sub donatarios deben asegurarse de que sus respectivas partes del paquete de información no incluyan información protegida de identificación personal.

Annual Audits

The sub-award's annual audits must be conducted in accordance with the 2 CFR 200 Subpart F Audit Requirements and the Standard Mandatory Provisions included on Annexes F and G of this subaward. If the sub-awardee is not required to report on the Federal Audit Clearinghouse, the sub-awardee must make a copy available to POA of its annual audit within the earlier of 30 calendar days after receipt of the auditor's report(s), or nine months after the end of the audit period. The audit should contain all the elements specified in the reporting package in 2 CFR 200.512 (c). sub-awardees must ensure that their respective parts of the reporting package do not include protected personally identifiable information.

CLÁUSULA 10. Ingresos del Programa

Los ingresos del programa generados a partir de las actividades cubiertas bajo este acuerdo se utilizarán de la siguiente manera: Se agregarán a los fondos comprometidos por POA y el destinatario del programa, y se utilizarán para promover el objetivo del programa elegible.

El Sub- adjudicatario debe poner a disposición de POA una declaración de auditoría cada año.

ARTICLE 10. Program Income

Program income generated out of the activities covered under this agreement shall be used in the following manner: Added to funds committed by POA and the recipient to the program, and used to further eligible program objective.

Sub-Awardee must make an audit statement available to POA every year.

CLÁUSULA 11. Procedimientos de Pago Final y Procedimientos de Cierre del Sub-Acuerdo

El informe financiero final del Sub- adjudicatario deberá ser presentado inmediatamente después de la finalización del período de ejecución y el logro de los resultados especificados en este Sub-Acuerdo, pero en ningún caso serán entregados después de cuarenta y cinco (45) días. El pago final no se desembolsará hasta que se presenten todos los requisitos y el Gerente de Subvenciones de POA lo aprueben.Procedimientos de Cierre incluyen:

a. Completar todos los informes y documentos programáticos requeridos según la descripción y los objetivos del programa;
b. Presentar de todos los informes y documentos financieros requeridos, incluyendo la conciliación de todas las discrepancias de costos o gastos, el pronto pago de los costos permitidos al Sub-adjudicatario, recaudación inmediata de cualquier

ARTICLE 11. Final Payment and Sub-Agreement Closeout Procedures

Sub-Awardee final financial report shall be submitted promptly following completion of the period of performance and the attainment of results specified under this Sub-agreement, but in no event later than forty-five (45) days. Final payment will not be disbursed until all requirements are submitted and approved by POA´s Grant Manager.

Closeout requirements include:

a. Completion of all required programmatic reports and documents per the Program Description and Objectives;
b. Submission of all required Financial Reports and documents, including the reconciliation of all cost or expenditure discrepancies, prompt payment of allowable costs to the Sub-Awardee, immediate

fondo no gastado o gastos no autorizados por POA; y la de-obligación de los fondos excedentes por parte de POA, entre otras.

c. Lista de inventario final para artículos con un valor justo de mercado actual de USD$100 o más;
d. Plan de disposición para todos los artículos con un valor justo de mercado actual de $5,000 o más; y
e. Carta de liquidación del Sub-Acuerdo firmada.
f. Determinar el plan de retención documental aplicable y el tiempo de retención (normalmente tres años después de la remisión del informe final)

El plan de cierre, incluido el cronograma y el plan de disposición se remitirá al menos 120 días antes del cierre del Sub-Acuerdo, es decir el 3 de mayo de 2026.

CLÁUSULA 12. Informes y Evaluación

El Sub- adjudicatario deberá enviar versiones electrónicas de los entregables o productos descritos en el Anexo D al Gerente de Subvenciones de POA en las fechas especificadas en el Anexo.

CLÁUSULA 13. Título y Cuidado de la Propiedad del Proyecto

Para los efectos del presente artículo, por bienes se entiende el equipamiento, los suministros, los bienes inmuebles y los bienes intangibles, cada uno de ellos definido individualmente a continuación, financiados en virtud de esta subvención o suministrados por POA. Por equipamiento se entienden los bienes personales tangibles no fungibles que tienen una vida útil de más de un año y un costo de adquisición de 5.000 dólares o más por unidad. Sin embargo, de conformidad con la política del Sub- adjudicatario, pueden establecerse límites más bajos.

El título de todo el equipo adquirido en virtud de este Sub-Acuerdo será conferido a POA al finalizar la subvención. “Equipo” significa un artículo de propiedad personal tangible y no fungible que tiene una vida útil de más de un año y un costo de adquisición de $5,000 o más.

Anualmente, el Sub- adjudicatario deberá presentar un detalle de inventario de todo el equipo comprado bajo la subvención que incluirá una descripción del bien, costo y fecha de adquisición, número de serie, condición y ubicación del artículo, así como cualquier

collection of any unexpended funds or disallowed costs by POA, de-obligation of excess funds by POA, among others.

c. Determine Final inventory list for items with a current fair market-value of USD $100 or more;
d. Built the disposition Plan for all items with a current fair market value of $5,000 or more; and
e. Signed Sub-Agreement close-out letter.
f. Ensure that Sub-Awardee are aware of the documentation they must maintain and for how long (typically three years after submission of the final report).

However, closeout plan, including the schedule and activities related with, will be submitted at least 120 days prior to the end date, that is on May 3, 2026.

ARTICLE 12. Reporting and Evaluation

Sub-Awardee shall submit electronic versions of the deliverables or outputs outlined in Annex D to the POA´s Grants Manager by the dates specified in the Annex.

ARTICLE 13. Title to and Care of Project Property

For the purposes of this article, property means equipment, supplies, real property, and intangible property, each defined individually below, financed under this Subaward or furnished by POA. Equipment means tangible nonexpendable personal property having a useful life of more than one year, and an acquisition cost of $5,000 or more per unit. However, consistent with the Sub-awardee's policy, lower limits may be established.

Title to all equipment acquired under this sub-award shall vest with POA upon completion of the subaward. “Equipment” means an article of nonexpendable, tangible personal property having a useful life of more than one year and an acquisition cost $5,000 or more.

Annually, the Sub-awardee shall submit an inventory detail of all equipment purchased under the subaward which shall include a description of the good, acquisition cost and date, serial number, condition, and location of the item as well as any inventory number used by the Sub-awardee to identify the item.

número de inventario utilizado por el Sub- adjudicatario para identificar el artículo.

Antes de los 120 días al cierre del Sub-Acuerdo, el Sub-adjudicatario debe presentar una lista de inventario final – bienes y equipamiento – junto con una solicitud de disposición para todos los artículos con un valor justo de mercado actual de $100 o más. POA revisará dicha solicitud y proporcionará las instrucciones finales de disposición de inventario al Sub- adjudicatario. Todos los informes y solicitudes de inventario deben enviarse al gerente de subvenciones de POA.

La disposición final de los bienes en custodia del Sub-adjudicatario que no son organizaciones estadounidenses se hará de conformidad con la disposición estándar obligatoria titulada *"Titularidad y uso de la propiedad"* para aquellos en custodia.

El Sub- adjudicatario es responsable del cuidado, el mantenimiento y la seguridad del equipamiento o la propiedad adquirida en virtud de esta Sub-Acuerdo. El Sub- adjudicatario debe reportar inmediatamente a POA el robo, pérdida o daño de los equipos o bienes financiados por el Sub-Acuerdo.

Propiedad del Trabajo: El Sub- adjudicatario puede tener derechos de autor de cualquier obra que esté sujeta a derechos de autor y que haya sido desarrollada, o para la que se haya adquirido la propiedad, en virtud de este SubAcuerdo. USAID se reserva un derecho libre de regalías, no exclusivo e irrevocable de reproducir, publicar o utilizar la obra para fines federales, y de autorizar a otros a hacerlo. En todo caso, los derechos de propiedad intelectual sobre cualquier obra, creación, información, conocimiento, tecnología, invención, metodología, producción, patente, entre otros, desarrollados o adquiridos por las partes antes de la firma del presente sub-acuerdo y puesto a disposición del proyecto, le continuarán perteneciendo a la parte propietaria o creadora del mismo. De igual forma, sobre los productos y creaciones desarrollados durante el presente acuerdo se dará el crédito a todos los participantes del mismo (POA, USAID y Sub- adjudicatario). Además, los derechos de propiedad intelectual surgidos en el desarrollo del presente acuerdo pertenecerán a POA, y el Sub- adjudicatario conservará el derecho de uso sobre los mismos.

CLÁUSULA 14. Involucramiento Substancial

Las siguientes disposiciones constituyen la participación de POA en las actividades del Sub-adjudicatario para asegurar que se cumplan los

120 days before the completion date, the Sub-awardee must submit a final inventory list along with a disposition request for all items – property and equipment – with a current fair market value of $100 or more. POA will review such request and provide final inventory dispositions instructions to the Sub-awardee. All inventory reports and requests should be submitted to POA Grants Manager

Final disposition of property in the custody of sub-award that are NON-US organizations shall be in accordance with the Mandatory Standard Provision entitled *"Title to and Use of Property*" for those in the custody of sub-recipients that are non-U.S. organizations.

The Sub-recipient is responsible for the care, maintenance, and security of the equipment or property purchased under this Subaward. The sub-recipient is required to immediately report theft, loss, or damage to Subaward-funded equipment or property to POA.

Property of the Work: The Sub-Awardee may copyright any work that is subject to copyright and was developed, or for which ownership was purchased, under this SubAward. USAID reserves a royalty-free, nonexclusive, and irrevocable right to reproduce, publish, or otherwise use the work for Federal purposes, and to authorize others to do so. However, intellectual property rights over any work, creation, information, knowledge, technology, invention, methodology, production, patent, among others, developed or acquired by the parties prior to the signing of this subagreement and made available for the project, will continue to belong to the party that owns or creates it. Likewise, credit for products and creations developed during this agreement will be given to all participants of the agreement (POA, USAID and Sub-awardee). In addition, the intellectual property rights arising in the development of this agreement will belong to POA, and the Sub-Awardee will retain the right to use them.

ARTICLE 14. Substantial Involvement

The following provisions constitute POA's involvement in the Sub-Awardee's activities to assure that program requirements are met and that mutual program objectives are achieved.

requisitos del programa y que se logren los objetivos mutuos del programa. POA será responsable por:

a. Aprobación de la planificación de todas las actividades;
b. Aprobación de planes de trabajo anuales
c. Aprobación y cambios de personal clave;
d. Aprobación de esquemas y borradores de informes.
e. Aprobación de Consultorías, contratos, y órdenes de compra superiores a USD $10.000
f. Aprobación de Compra de equipos superiores a USD $5.000 (costo unitario de cada equipo)
g. Aprobación de una redirección programática. En este contexto, la redirección puede ocurrir debido a la interrelación con otras actividades patrocinadas por el gobierno de los EE.UU. u otros donantes y para garantizar la coordinación y la complementariedad, evitar la duplicación de esfuerzos y / o apoyar las consideraciones de política exterior de EE. UU.
h. Aprobación de publicaciones impresas o electrónicas
i. Aprobación del Plan de Apalancamiento

POA shall be responsible for:

a. Approval of all activities' planning;
b. Approval of annual work plans
c. Approval and changes of key personnel;
d. Approval of report outlines and report drafts.
e. All consultancies, contracts, and purchase orders over 10,000 USD
f. Equipment purchases over 5,000 USD (unitary cost per equipment)
g. Approval for programmatic redirection. In this context, redirection may occur due to interrelationship with other Activities sponsored by the U.S. Government or other donors and to ensure coordination and complementary, avoid duplication of efforts, and/or support U.S. foreign policy considerations.
h. Approval of print or electronic publications
i. Approval of Leverage Plan

CLÁUSULA 15. Coordinación de Proyecto

POA designará a un miembro del personal como Gerente de Programa para este acuerdo. Esta persona servirá como enlace diario entre POA y el Sub-adjudicatario. El Gerente del Programa de POA (o representante designado) está autorizado para emitir instrucciones técnicas bajo el Sub-Acuerdo en nombre de POA. El Gerente del Programa POA (o representante designado) será responsable de proporcionar la concurrencia para los salarios propuestos del personal del proyecto del sub adjudicatario antes de las ofertas de empleo para garantizar la coherencia en términos de compensación en todos los socios del proyecto. Dichas instrucciones pueden incluir instrucciones para el Sub-adjudicatario que brinden detalles para respaldar la finalización del Alcance de Trabajo o Descripción de Programa.

El Sub-adjudicatario designará un Coordinador de Seguimiento. Esta persona servirá como enlace diario entre POA, el Sub-adjudicatario y las Organizaciones Sub-Adjudicatarias de Segundo Nivel.

ARTICLE 15. Project Coordination

POA will designate a staff member as Program Manager for this agreement. This person will serve as the day-to-day liaison between POA and the Sub-Awardee. The POA Program Manager (or designated representative) is authorized to issue technical directions under the Sub-Award on behalf of POA. The POA Program Manager (or designated representative) will be responsible for providing concurrence for proposed salaries of subawardee's project personnel prior to employment offers to ensure compensation consistency across all project partners. Such directions may include instructions to Sub-Awardee that provide details to support the completion of the Statement of Work.

The Sub-Awardee will designate a Follow-On Coordinator. This person will serve as the day-to- day liaison between POA, Sub-Awardee, and the Second Tier Sub-Awardees.

CLÁUSULA 16. Personal Clave

El personal clave del Sub-adjudicatario para este acuerdo se describe en el Anexo C. Los Términos de Referencia específicos del Personal Clave (si corresponde) se incluyen en el Anexo C. La lista de personal clave puede ser enmendada mediante una modificación por escrito a este Sub-Acuerdo, y aprobación de USAID (si es necesario), para agregar o eliminar personal según corresponda.

ARTICLE 16. Key Personnel

The Sub-Awardee key personnel to this agreement are outlined in Annex C. Key Personnel specific Terms of Reference (if applicable) are included in Annex C. The list of key personnel may be amended by a written modification to this sub-award, and USAID approval (if necessary), to either add or delete personnel as appropriate.

CLÁUSULA 17. Cronograma de Implementación Programática, Requisitos e Informes

El Sub-adjudicatario es responsable de la supervisión de toda la implementación del proyecto de acuerdo con el cronograma, los requisitos y los informes. Los programas, requisitos e informes se describen en el anexo D.

ARTICLE 17. Programmatic Implementation Schedule, Requirements and Reports

The Sub-Awardee is responsible for the oversight of all Project implementation according to the schedule, requirements and reports. The Schedules, Requirements, and Reports are outlined in Annex D.

CLÁUSULA 18. Cambios al Sub-Acuerdo

Cualquier cambio propuesto al Sub-Acuerdo se presentará por escrito y será aprobado y ejecutado por las Partes de este Sub-Acuerdo antes de que pueda comenzar la ejecución del trabajo involucrado en el cambio.

Los términos y condiciones de este Sub-Acuerdo, incluidas todas las disposiciones normativas obligatorias y requeridas aplicables incorporadas, solo podrán ser modificados por escrito y firmados por la parte autorizada en nombre de POA, en el caso de una enmienda unilateral, y tanto por la parte autorizada de POA como por el Sub-adjudicatario, en el caso de una enmienda bilateral.

ARTICLE 18. Changes to Sub-Agreement

Any proposed changes to the sub-award will be submitted in writing and will be approved by, and executed by, the parties to this sub-award before performance of work involved in the change may begin.

The terms and conditions of this sub-award, including all incorporated Mandatory and Required as Applicable Standard Provisions, may only be modified by in writing and signed by the authorized party on behalf of POA in the case of a unilateral amendment and by both the authorized POA Party and the sub-awardee in the case of a bilateral amendment.

CLÁUSULA 19. Cesión

El Sub-adjudicatario no podrá:

- Ceder sus derechos propios emanados de este subacuerdo.
- Celebrar ninguna Sub-Adjudicación de Segundo Nivel de cualquier valor.
- Adjudicar consultorías, contratos, y/u órdenes de compra superiores a USD $10.000.
- Comprar equipos superiores a USD $5.000 (costo unitario de cada equipo) sin la aprobación previa por escrito de POA.
- Cambiar el personal clave asignado a esta subadjudicación

ARTICLE 19. Assignment

Without prior written approval from POA, The Sub-Awardee may not

- Assign its own rights derived from this subaward.
- Award any second tier Sub-Award of any amount.
- Award any consulting services contract, other contracts and/or purchase order
- Purchase equipment over USD $5,000 (unitary cost per equipment)
- Change assigned key personnel

CLÁUSULA 20. Demoras

Siempre que el Sub-Adjudicatario sepa o razonablemente debería saber que cualquier condición real o potencial está retrasando o amenaza con retrasar la ejecución oportuna del trabajo, el Sub-Adjudicatario deberá notificarlo por escrito a POA, incluyendo toda la información relevante al respecto.

ARTICLE 20. Delays

Whenever the Sub-Awardee knows or reasonably should know that any actual or potential condition is delaying or threatens to delay the timely performance of the work, the Sub-Awardee shall give POA written notice thereof, including all relevant information with respect thereto.

CLÁUSULA 21. Conflictos de Intereses Organizacionales

a. El Sub-adjudicatario garantiza que, según el mayor de los conocimientos del Sub- adjudicatario, no existen hechos o circunstancias relevantes que puedan dar lugar a un conflicto de intereses organizacional, o que el Sub- adjudicatario ha revelado toda la información relevante.

b. El Sub- adjudicatario acepta que si se descubre un conflicto de intereses organizacional real o potencial después de la concesión de este Sub-Acuerdo, el Sub- adjudicatario hará una divulgación completa por escrito al Director Financiero (CFO) de POA. La divulgación incluirá una descripción de las acciones que el Sub-adjudicatario ha tomado o se propone tomar, después de consultar con el Gerente del Programa del Sub-Acuerdo de POA, para evitar, mitigar o neutralizar el conflicto real o potencial.

c. POA puede rescindir este Sub- acuerdo por conveniencia, en su totalidad o en parte, si considera que dicha rescisión es necesaria para evitar un conflicto de intereses organizacional. Si el Sub- adjudicatario tenía conocimiento de un posible conflicto de intereses organizacional antes de la concesión o descubrió un conflicto real o potencial después de la concesión y no divulgó o tergiversó información relevante al CFO de POA, POA puede rescindir el Sub-Acuerdo por incumplimiento, o usar cualquier otro recurso que pueda permitir la ley o este Subcontrato.

d. El Sub- adjudicatario acuerda además insertar en cualquier Sub-Acuerdo de nivel inferior o acuerdo de consultoría a continuación, disposiciones que se ajustarán sustancialmente al lenguaje de esta cláusula, incluido este párrafo (d).

ARTICLE 21. Organizational Conflicts of Interest

a. The Sub-Awardee warrants that, to the best of Sub-Awardees knowledge and belief, there are no relevant facts or circumstances which could give rise to an organizational conflict of interest, or that the Sub-Awardee has disclosed all such relevant information.

b. The Sub-Awardee agrees that if an actual or potential organizational conflict of interest is discovered after the grant of this Sub- agreement that the Sub-Awardee will make a full disclosure in writing to POA's Chief Financial Officer (CFO). Disclosure shall include a description of actions which the Sub-Awardee has taken or proposes to take, after consultation with POA/JA COP, to avoid, mitigate, or neutralize the actual or potential conflict.

c. POA may terminate this Sub- agreement for convenience, in whole or in part, if it deems such termination necessary to avoid an organizational conflict of interest. If Sub-Awardee was aware of a potential organizational conflict of interest prior to grant or discovered an actual or potential conflict after grant and did not disclose or misrepresented relevant information to POA's CFO, POA may terminate the Sub-Agreement for default, or pursue such other remedies as may be permitted by law or this Sub-agreement.

d. The Sub-Awardee further agrees to insert in any lower-tier Sub-agreement or consultant agreement hereunder, provisions which shall conform substantially to the language of this clause, including this paragraph (d).

CLÁUSULA 22. Validez y Exoneración Exención

La invalidez total o parcial de cualquier disposición de este Sub-Acuerdo no afectará la validez de otras disposiciones. Una exoneración a un incumplimiento de

ARTICLE 22. Validity and Waiver

The invalidity in whole or in part of any provision of this Sub-agreement shall not affect the validity of other provisions. A waiver of a breach of any provision of

cualquier disposición de este Sub-Acuerdo no constituirá una exoneración a cualquier incumplimiento posterior de esa disposición o un incumplimiento de cualquier otra disposición de este Sub-Acuerdo. El hecho de que POA no haga cumplir en cualquier momento o de vez en cuando cualquier disposición de este Sub-Acuerdo no se interpretará como una exoneración al mismo.

this Sub-agreement shall not constitute a waiver of any subsequent breach of that provision or a breach of any other provision of this Sub- agreement. The failure of POA to enforce at any time or from time to time any provision of this Sub-agreement shall not be construed as a waiver thereof.

CLÁUSULA 23. Leyes aplicables

En la medida en que este Sub-Acuerdo no se rija por la ley federal de E.E.U.U. y las regulaciones requeridas por la misma, o incorporadas por referencia, este Sub- acuerdo se entenderá de interpretará únicamente de acuerdo con las leyes del Distrito de Columbia.

ARTICLE 23. Applicable Laws

Insofar as this Sub-agreement is not governed by the US Government Federal law and the regulations required thereby, or incorporated by reference, this Sub-agreement shall be construed and interpreted solely in accordance with the laws of the District of Columbia.

CLÁUSULA 24. Alcance del Sub-Acuerdo

Este Sub-Acuerdo, junto con los anexos adjuntos, las modificaciones debidamente ejecutadas y los documentos incorporados expresamente por referencia, representan el acuerdo completo entre las partes y reemplazan todas las declaraciones o acuerdos anteriores escritos u orales. Se puede negociar una extensión de este acuerdo con base en los fondos disponibles y el acuerdo de cada una de las dos partes y la aprobación de USAID, si es necesario.

ARTICLE 24. Scope of Sub-agreement

This Sub-agreement, along with attached exhibits, properly executed modifications, and documents expressly incorporated by reference, represent the entire agreement between the parties and supersede all prior written or oral statements or agreements. An extension of this agreement may be negotiated based on available funding and the agreement of each of the two parties and USAID approval, if necessary.

CLÁUSULA 25. Apalancamiento

Las actividades y financiamiento relacionadas con esta Sub-Adjudicación están estructuradas para promover el apalancamiento de recursos de otras fuentes de Organizaciones Sin Ánimo de Lucro No estadounidenses o del sector privado ya sea en forma de subvenciones o como financiación paralela de actividades similares hasta el logro de actividades comunes.

El apalancamiento deberá satisfacer los siguientes criterios:

1. Naturaleza y origen
2. Propuesta de valor e impacto del desarrollo
3. Mensurabilidad (cuantificación)
4. Composición
5. Razonabilidad
6. Justificación de necesidad bajo proyecto

Las partes desarrollarán el plan de apalancamiento conforme el alcance de trabajo de Juntos Aprendemos con el propósito de promover y considerar el interés primordial.

ARTICLE 25. Leverage

Activities and funding related with this Sub-Award are structured to encourage leveraged funding from other NON-USG resources or private sector, either as matching grants or as parallel funding of similar activities that support achievement of common results.

Leverage must satisfy the following criteria:

1. Nature and Origin
2. Value proposition and development impact
3. Measurability
4. Composition
5. Reasonability
6. Justification of need under project

Parties will develop a leverage plan according to the SOW of Juntos Aprendemos with the purpose to promote and count their core interest.

CLÁUSULA 26. Resolución de Conflictos

Los conflictos entre cualquiera de los Anexos de este Sub-Acuerdo se resolverán aplicando el siguiente orden descendente de precedencia:

a. Anexo G: Disposiciones Estándar Obligatorias de USAID y se requiere USAID como disposiciones aplicables
b. Anexo F: Disposiciones Estándar de PoA
c. Anexo A: Descripción del programa

CLÁUSULA 27. Suspensión

El Sub-Acuerdo puede suspenderse total o parcialmente, en cualquier momento o de vez en cuando:

1. de mutuo acuerdo;
2. por decisión de POA en respuesta a la terminación, suspensión u otra limitación de USAID del financiamiento de POA; o
3. por incumplimiento o incumplimiento sustancial del Sub- adjudicatario de los requisitos del Sub-Acuerdo.

En cada caso, se emitirá un aviso por escrito indicando la fecha de vigor de la acción del periodo correctivo/suspendido y qué fondos, si los hubiera, estarán disponibles para respaldar los gastos después de dicha fecha.

El Período Correctivo/suspendido se efectuará mediante notificación por escrito al Sub- adjudicatario, en la que se identificará la base de la posible terminación, la(s) razón(es), por lo tanto, la fecha de vigor de la acción, una declaración que identifique qué parte (o toda) del resto del Plazo del Sub-Acuerdo o las actividades del programa sujetas a una posible terminación, y los procedimientos y estándares, según corresponda, para los costos de reducción y presentación de las facturas finales. El aviso entrará en vigor en la fecha indicada en el aviso, o en la fecha en que se entregue el aviso al Sub-Adjudicatario, lo que ocurra más tarde.

El Sub- adjudicatario tendrá treinta (30) días para corregir todos los problemas identificados en el aviso; si no cumple con el plazo, POA puede rescindir el Sub-Acuerdo en su totalidad o en parte con vigor en dicha fecha.

CLÁUSULA 28. Terminación

Además de los requisitos del Anexo F, las Disposiciones Estándar de POA, el Sub- adjudicatario también se adherirá a las siguientes disposiciones sobre Terminación y Suspensión:

ARTICLE 26. Resolution of Conflicts

Conflicts between any of the Attachments of this sub-award shall be resolved by applying the following descending order of precedence:

a. Annex G: USAID Mandatory Standard Provisions and USAID Required as Applicable Provisions
b. Annex F: PoA Standard Provisions
c. Annex A: Program Description

ARTICLE 27. Suspension

The Sub-Agreement may be suspended in whole or in part, at any time or from time to time:

1. by mutual agreement;
2. by POA decision in response to USAID termination, suspension, or other limitation of POA's funding; or
3. for Sub-Awardee's default or substantial non-compliance with the requirements of the Sub-Agreement.

In each case, written notice will be issued stating the effective date of the Corrective/suspended Period and what funds, if any, will be available to support expenditures after such date.

The Corrective/suspended period shall be effected by written notice to the Sub-Awardee, which notice shall identify the basis for possible termination, the reason(s), therefore, the effective date of the action, a statement identifying which part (or all) of the remainder of the Sub-Agreement Term or the program activities subject to possible termination, and procedures and standards, as appropriate, for phasedown costs and submission of final invoices. The notice shall be effective on the date stated in the notice, or the date the notice is delivered to Sub- Awardee, whichever is later.

The Sub-Awardee shall have thirty (30) days to correct all issues as identified in the notice, failing such deadline POA may terminate the Sub- Agreement in whole or part effective on such date.

ARTICLE 28. Termination

In addition to the requirements in Annex F, POA Standard Provisions, the Sub-Awardee shall also adhere to the following provisions on Termination and Suspension:

1. POA puede rescindir unilateralmente este Sub-Acuerdo en cualquier momento, en su totalidad o en parte, por cualquiera de las siguientes razones:
   a. incumplimiento material del Sub-adjudicatario; o
   b. la insolvencia financiera, la quiebra, la cesión a favor de los acreedores o un estado similar o comparable del Sub- adjudicatario; o
   c. la terminación o no financiación de todo o parte del Acuerdo Principal; o
   d. Terminación por Conveniencia: cualquiera de las partes puede rescindir esta subvención por conveniencia con treinta (30) días de notificación por escrito a la otra parte.

2. Las Partes podrán acordar mutuamente dar por terminado el Sub-Acuerdo en cualquier momento, en su totalidad o en parte, en los términos y condiciones que se acuerden entre ellas.

3. La rescisión se efectuará mediante notificación por escrito a la Parte rescindida, en la cual se identificará la base de la rescisión, el motivo o los motivos, la fecha de vigor de la acción, una declaración que identifique qué parte (o la totalidad) del resto de se termina el Plazo del Sub-Acuerdo o las actividades del programa, y los procedimientos y estándares, según corresponda, para los costos de eliminación y presentación de facturas finales.

4. La terminación será efectiva en la fecha indicada en el aviso.

5. Si en cualquier momento USAID determina que la continuación de todo o parte del financiamiento para un programa debe suspenderse o terminarse porque dicha asistencia no sería de interés nacional de los Estados Unidos o violaría una ley aplicable, entonces USAID puede directamente o a través POA, después de notificar al Sub- adjudicatario, suspender o rescindir esta adjudicación en su totalidad o en parte y prohibir al Sub- adjudicatario incurrir en obligaciones adicionales con cargo a este Sub-Acuerdo que no sean los costos especificados en la notificación de suspensión durante el período de suspensión. Si la situación que ocasionó la suspensión continúa durante 60 días o más, entonces USAID, directamente o a través POA, puede rescindir este Sub-Acuerdo mediante notificación por escrito al Sub-adjudicatario y cancelar la parte de este sub-acuerdo que no se haya comprometido irrevocablemente con terceros.

1. POA may unilaterally terminate this Sub-Agreement at any time, in whole or in part, for either of the following reasons:
   a. material Sub-Awardee's noncompliance; or
   b. the Sub-Awardee's financial insolvency, bankruptcy, assignment in favor of creditors, or similar or comparable status; or
   c. the termination or non-funding of all or part of the Prime Award; or
   d. Termination for Convenience - Either party may terminate this Sub-award for convenience upon thirty (30) days prior written notice to the other party.

2. The Parties may mutually agree to terminate the Sub-Agreement at any time, in whole or in part, upon such terms and conditions as may be agreed between them.

3. Termination shall be effected by written notice to the terminated Party, which notice shall identify the basis for termination, the reason(s) therefore, the effective date of the action, a statement identifying which part (or all) of the remainder of the Sub- Agreement Term or the program activities is terminated, and procedures and standards, as appropriate, for phasedown costs and submission of final invoices.

4. The termination shall be effective on the date stated in the notice.

5. If at any time USAID determines that continuation of all or part of the funding for a program should be suspended or terminated because such assistance would not be in the national interest of the United States or would be in violation of an applicable law, then USAID may directly or through POA, following notice to the Sub-Awardee, suspend or terminate this award in whole or part and prohibit the Sub-Awardee from incurring additional obligations chargeable to this award other than those costs specified in the notice of suspension during the period of suspension. If the situation causing the suspension continues for 60 days or more, then USAID, directly or through POA, may terminate this award on written notice to the Sub- Awardee and cancel that portion of this award which has not been irrevocably committed to third parties.

6. POA y USAID reservan el derecho de rescindir este Sub-Acuerdo o tomar otras medidas apropiadas si se determina que el Sub-adjudicatario o una persona clave del Sub-adjudicatario ha violado alguna de las Disposiciones Estándar de USAID.

7. Procedimientos de Terminación y Suspensión. Al recibir y de acuerdo con un aviso de terminación como se especifica anteriormente, el Sub-adjudicatario tomará medidas inmediatas para minimizar todos los gastos financiados por esta adjudicación. A menos que se indique lo contrario en el aviso de terminación, o según se apruebe caso por caso, POA no estará obligado a reembolsar al Sub- adjudicatario los gastos incurridos después de la fecha de vigor de la terminación o suspensión. El Sub- adjudicatario deberá, con la debida consideración a la economía, efectuar una eliminación rápida pero ordenada de las actividades del programa y los esfuerzos de implementación (incluidos, entre otros, los subcontratos y sub- acuerdos de segundo nivel). Sin perjuicio de la rescisión, la obligación de POA de reembolsar los costos de rescisión en virtud de este artículo estará sujeta en todos los aspectos a la financiación de USAID y, si es necesario, a la aprobación de USAID.

8. *Recursos por no cumplimiento.* Si un Sub-adjudicatario no cumple sustancialmente con los términos y condiciones de este Sub-Acuerdo, ya sea que se establezcan en un estatuto federal, regulación, garantía, aplicación o notificación del Sub-Acuerdo, POA puede imponer cualquiera de las siguientes acciones, como apropiado en las circunstancias:
    a. Retener temporalmente los pagos en efectivo hasta que el Sub- adjudicatario corrija la deficiencia o una acción de ejecución más severa por parte de POA;
    b. No permitir todo o parte del costo de la actividad o acción que no cumple;
    c. Suspender o rescindir total o parcialmente el Sub-Acuerdo actual.;
    d. Tomar otros recursos que puedan estar legalmente disponibles;

9. *Efectos de la suspensión y la rescisión*. Los costos de las obligaciones incurridas durante una suspensión o después de la terminación del Sub-Acuerdo no son admisibles a menos que POA le autorice expresamente en el aviso de suspensión o

6. POA and USAID reserve the right to terminate this Sub-Award or take other appropriate measures if the Sub-Awardee or a key individual of the Sub-Awardee is found to have violated any of USAID's Standard Provisions.

7. Termination and Suspension Procedures. Upon receipt of and in accordance with a termination notice as specified above, the Sub-Awardee shall take immediate action to minimize all expenditures financed by this award. Unless otherwise stated in the termination notice, or as otherwise approved on a case by case basis, POA shall not be obligated to reimburse the Sub-Awardee for any expenses incurred after the termination or suspension effective date. The Sub-Awardee shall, with due regard to economy, effect an expeditious but orderly phasedown of program activities and implementation efforts (including, without limitation, subcontracts and second-tier sub-awards). Notwithstanding termination, POA's obligation to reimburse termination costs under this article shall in all respects be subject to USAID funding and, if required, USAID approval.

8. *Remedies for Noncompliance.* If a Sub-Awardee materially fails to comply with the terms and conditions of this Sub-Agreement, whether stated in a Federal statute, regulation, assurance, application, or notice of Sub-Agreement, POA may impose any of the following actions, as appropriate in the circumstances:
    a. Temporarily withhold cash payments pending correction of the deficiency by the Sub-Awardee or more severe enforcement action by POA;
    b. Disallow all or part of the cost of the activity or action not in compliance;
    c. Wholly or partly suspend or terminate the current Sub-Agreement;
    d. Take other remedies that may be legally available;

9. *Effects of suspension and termination*. Costs of obligations incurred during a suspension or after termination of the Sub-Agreement are not allowable unless POA expressly authorizes them in the notice of suspension or termination or

terminación o posteriormente. Otros costos durante la suspensión o después de la terminación que sean necesarios y no razonablemente evitables son permitidos si:

a. Los costos resultan de las obligaciones en las que se incurrió adecuadamente antes de la fecha de vigor de la suspensión o terminación, no se anticipan a la misma y, en el caso de una terminación, no son cancelables, y los costos serían admisibles si el Sub-Acuerdo fuera no suspendido o expirado normalmente al final del período de financiación en el que la terminación surte efecto.

10. El destinatario proporcionará a POA una copia electrónica de cualquier Trabajo Intelectual que se publique y una lista de cualquier Trabajo Intelectual que no se publique. Cualquier obra protegida por derechos de autor se indicará como tal. Además, el Beneficiario debe enviar el Trabajo Intelectual, ya sea publicado o no, al Development Experience Clearinghouse (dec.usaid.gov).

CLÁUSULA 29. Provisiones Generales

En la medida que sea aplicable al presente de acuerdo con las regulaciones de USAID que rigen el acuerdo principal de POA, las Disposiciones Estándar de POA (Anexo F) se incorporan en este Sub-Acuerdo por esta referencia con la misma fuerza y efecto que se establece en longitud aquí.

Las partes han hecho que este Sub-Acuerdo sea debidamente firmado y ejecutado efectivo en la fecha arriba escrita.

CLÁUSULA 30. Autorización Previa de Gastos

Se requiere autorización escrita previa de POA (de acuerdo con la delegación de autoridad correspondiente para cada caso) para:

- Consultorías, contratos, y órdenes de compra superiores a 10.000 USD
- Todos los Sub-Acuerdos de segundo nivel
- Compra de equipos superiores a 5.000 USD (costo unitario de cada equipo)

Si el Sub-adjudicatario no solicita autorización previa los costos serán desaprobados y no se reembolsará al Sub- adjudicatario.

subsequently. Other costs during suspension or after termination which are necessary and not reasonably avoidable are allowable if:

a. The costs result from obligations which were properly incurred before the effective date of suspension or termination, are not in anticipation of it, and in the case of a termination, are non-cancelable, and the costs would be allowable if the Sub- Agreement were not suspended or expired normally at the end of the funding period in which the termination takes effect.

10. The recipient shall provide POA with one electronic copy of any Intellectual Work that is published, and a list of any Intellectual Work that is not published. Any copyrighted work shall be indicated as such. In addition, the Recipient must submit the Intellectual Work, whether published or not, to the Development Experience Clearinghouse (dec.usaid.gov).

ARTICLE 29. General Provisions

To the extent applicable hereto in accordance with the regulations of USAID governing POA's prime agreement, the POA Standard Provisions (Annex F) are incorporated in this Sub-agreement by this reference with the same force and effect as though set forth at length herein.

The parties hereto have caused this Sub-agreement to be duly signed and executed effective the date above written.

ARTICLE 30. Prior Approval of Expenses

Prior written approval from POA (in accordance with the corresponding delegation of authority for each case) is required for the following items:

- All consultancies, contracts, and purchase orders over 10,000 USD
- All second-tier subawards
- Equipment purchases over 5,000 USD (unitary cost per equipment)

If prior written approval is not received by the Sub-Awardee, the costs will be disallowed and not reimbursed to the Sub-Awardee.

To request prior approval, Sub-Awardee will submit the written request including the following:

Para solicitar autorización previa, el Sub-Adjudicatario enviará la solicitud por escrito incluyendo a lo siguiente:

- Paquete de adquisición completo de acuerdo con las políticas de adquisición del Sub- adjudicatario y cumplimiento con los estándares de adquisición de USAID.

Si el paquete de adquisición no está completo, o no está en cumplimiento con la póliza de USAID, POA negará la solicitud hasta que todo documento requerido podrá ser proveído.

- Full procurement package in accordance with Sub-Awardee procurement policy and compliance with USAID procurement standards.

If the procurement package is not complete, or not in accordance with USAID, then POA will deny the request until the proper supporting documentation can be provided.

CLÁUSULA 31: Reportes sobre Impuestos Sobre Valor (IVA)

Para marzo 15 de cada año el Sub- adjudicatario debe entregar un informe sobre el IVA pagado a POA utilizando el formato proveído por POA.

El Sub- adjudicatario reportará el monto total del IVA e impuesto de aduana (pero no impuestos a las ventas y servicios) pagado al gobierno local en adquisiciones valorados superiores a $500 USD por transacción de suministros, materiales, bienes, o equipos, durante los 12 meses terminando en el 30 de setiembre del año anterior que se adquieren con fondos de este Sub-Acuerdo. Para el propósito de informes sobre el IVA el año fiscal será del 1 de octubre al 30 de setiembre. El reporte debe incluir todo reembolso del IVA que ha recibido el Sub-Adjudicatario durante el año fiscal anterior sin importar el IVA fue cobrado. Este reporte es obligatorio incluso si no se ha pagado impuestos durante el periodo de reporte.

El Sub- adjudicatariodebe hacer todo lo posible y en buena fe para obtener la exención del IVA con una carta que será proporcionada por POA. En caso de que no se otorgue la exención del IVA, el sub- adjudicatario debe mantener todos los registros de los gastos y presentar una solicitud de reembolso ante POA, para que POA presente una solicitud consolidada a USAID.

ARTICLE 31: Value Added Tax (VAT) Reporting

By March 15th of each calendar year the subawardee must submit a VAT report to POA on the template provided by POA.

The subawardee will report the total amount of value-added taxes and customs duties (but not sales taxes) assessed by the host government on purchases in excess of $500 USD per transaction on supplies, materials, goods or equipment, during the 12 months ending on September 30th of the prior year, which are acquired using funds from this subaward. For the purpose of VAT reporting the fiscal year will be October 1st to September 30th. The report must also include all reimbursements of VAT the subawardee has received during the prior fiscal year regardless of when the foreign tax was assessed. This report is required even if no taxes were paid during the reporting period.

The subawardee should make every effort in good faith to obtain the VAT exemption with a letter that will be provided by POA. In the event the VAT exemption is not granted, the subawardee must keep all records of the expenditures and submit a reimbursement request with POA, so that POA submits a consolidated request to USAID.

CLÁUSULA 32. Coordinación y supervisión del proyecto

POA ha designado a los siguientes como administradores del programa y puntos de contacto para este acuerdo. Este equipo servirá como enlace diario entre POA y el Sub- adjudicatario.
Dirija la notificación por escrito a:

Partners of the Americas
1424 K Street NW, Suite 700
Washington, DC 20005

ARTICLE 32. Project Coordination & Supervision

POA has designed the following as the Program Managers and points of contact for this agreement. This team will serve as the day-to-day liaison between Partners the subrecipient.

Address written notice to:

Partners of the Americas
1424 K Street NW, Suite 700
Washington, DC 20005

Para asuntos relacionados con contratos:
Vanessa Ardila López
Gerente de Subvenciones
Teléfono móvil: 320 8596806
Correo electrónico: vardila@partners.net

For contract-related matters:
Vanessa Ardila López
Grants Manager
Phone: 320 8596806
Email: vardila@partners.net

Para asuntos relacionados con el Proyecto (incluido el seguimiento y la evaluación):
Gustavo Payán
Director de Proyecto
Teléfono móvil: (310) 237-3254
Correo electrónico: gpayan@partners.net

For programmatic (including Monitoring and Evaluation)-related matters:
Gustavo Payán
Chief of Party or his designee
Phone: 310-237-3254
Email: gpayan@partners.net

CLÁUSULA 33. Servicios y Equipos de Telecomunicaciones

Se le prohíbe al Sub- adjudicatario procurar o utilizar equipos o servicios de telecomunicaciones o vigilancia de Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, Dahua Technology Company o cualquier subsidiario o afiliado de estas compañías con fondos del Sub-Acuerdo. Además, POA se reserva el derecho de prohibir equipos o servicios de entidades no mencionados anteriormente. Cualquier gasto para servicios y equipos de telecomunicaciones prohibidos serán desaprobados y la responsabilidad del Sub- adjudicatario.

ARTICLE 33. Telecommunications Services and Equipment

The Sub-Awardee is prohibited from procuring or using video surveillance and telecommunications equipment or services sold by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, Dahua Technology Company or any subsidiary or affiliate of such entities with funds from the Sub-Award. POA also reserves the right to prohibit equipment and services from companies not indicated above. Any costs for prohibited telecommunications services and equipment will be disallowed and the responsibility of the Sub-Awardee.

CLÁUSULA 34. Código geográfico

El código geográfico autorizado es el 937.

ARTICLE 34. Geographic Code

The authorized geographic code is 937.

CLÁUSULA 35. Marcado y etiquetado

El sub-adjudicatario se ajustará al plan de marcación y etiquetado previsto por POA. Cualquier modificación o desviación del Plan por parte del sub-adjudicatario de la subvención debe ser aprobada por POA.
POA proporcionará al sub-adjudicatario una copia del plan de marcación y etiquetado después de que el plan haya sido aprobado por la USAID. El detalle y la aprobación de marcado y etiquetado se adjunta en esta subadjudicación en el Anexo H.

ARTICLE 35. Branding and Marking

The Sub-recipient shall conform to the Branding and Marking Plan provided by POA. Any modification or deviation by the Grant sub-recipient from the Plan must be approved by POA.
POA will provide the Sub-recipient with a copy of the Branding and Marking Plan after the plan has been approved by USAID. The detailed and approved Branding and Marking is appended in Annex H of this sub-Sub-award.

CLÁUSULA 36. Uso obligatorio del Manual de Sub-Acuerdos de POA

ARTICLE 36. MANDATORY USE OF POA´S SUB-AWARDS MANUAL

El Sub- adjudicatario debe adherirse al Manual de Subvenciones de Juntos Aprendemos para gestionar los requisitos financieros y programáticos de todas las subvenciones de segundo nivel financiadas por este sub-acuerdo. Es responsabilidad del Sub- adjudicatario comprender y cumplir con las políticas y procedimientos aquí descritos y solicitar aclaraciones al POA según sea necesario.

Las políticas y procedimientos contenidos en el Manual de Subvenciones Juntos Aprendemos están sujetos a modificaciones de POA. El manual se revisará y actualizará según sea necesario para reflejar cambios o nuevas políticas y procedimientos.

The Sub-Awardee must adhere to the Juntos Aprendemos Subaward Manual to manage the financial and programmatic requirements for all second-tier subawards funded by this sub-agreement. It is the responsibility of the Sub-Awardee to understand and comply with the policies and procedures herein and to request clarification from POA as needed.

Policies and procedures contained in the Juntos Aprendemos Subaward Manual are subject to modifications from POA. The manual will be reviewed and updated as needed to reflect changes or new policies and procedures.

END OF THE SUB-AWARD SCHEDULE

FIN DEL CRONOGRAMA DEL SUB-ACUERDO

ANEXO A: DESCRIPCIÓN DEL PROGRAMA Y OBJETIVOS	ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES
Contexto La crisis migratoria que Colombia ha estado enfrentando desde 2015 ha sobrecargado el sistema educativo dado el aumento permanente en el flujo de la población migrante venezolana. En 2018, el sistema educativo matriculó a 34.000 estudiantes venezolanos y para 2020 ya había matriculado a más de 356.000. El sistema abrumado ha contribuido a crear un entorno propicio para la discriminación y el aumento de la tensión en las comunidades, incluida la xenofobia. Al mismo tiempo, cuando la pandemia de COVID-19 golpeó al país, el gobierno nacional suspendió las clases presenciales que afectaron a más de 10 millones de estudiantes a quienes se les ofrecieron soluciones digitales sin necesariamente tener acceso a dispositivos de comunicación o conexión a Internet. Los maestros y las escuelas no estaban preparados para manejar un sistema de educación virtual, ni tenían las habilidades necesarias para brindar la atención requerida a los estudiantes. Así, las brechas de calidad y acceso que ya estaban presentes en el país se han ido ampliando y creando más inequidades. A nivel escolar y de aula, el acceso a modelos de aprendizaje alternativos, activos y flexibles que satisfagan las necesidades de los estudiantes es limitado, y en los niveles de sistema y política es una coordinación inadecuada entre el Ministerio de Educación y las Secretarías de Educación. Esta falta de coordinación a todos los niveles impide una respuesta unificada. Como resultado, las políticas y normas se desarrollan a nivel nacional con una capacidad limitada a nivel local para adaptarse y contextualizar oportunamente de acuerdo con las necesidades locales.	**Context** The migratory crisis that Colombia has been facing since 2015 has overstretched the education system given the permanent increase in the flow of the Venezuelan migrant population. In 2018, the education system enrolled 34,000 Venezuelan students and by 2020 it had already enrolled over 356,000. The overwhelmed system has contributed to create an environment conducive to discrimination and increased tension in the communities, including xenophobia. At the same time, when the COVID-19 pandemic hit the country, the national government suspended in-person classes impacting over 10 million students who were offered digital solutions without necessarily having access to communication devices or internet connection. Teachers and schools were not prepared to handle a virtual education system, nor had the necessary skills to provide the required attention to the students. Thus, the quality and access gaps that were already present in the country have been widening and creating more inequities. At the school and classroom levels, there is limited access to alternative, active, and flexible learning models that meet students' needs, and at the system and policy levels inadequate coordination between the Ministry of Education and the Secretariats of Education. This lack of coordination at all levels prevents a unified response. As a result, policies and norms are developed at the national level with limited capacity at the local level to timely adapt and contextualize according to local needs.
Antecedentes Juntos Aprendemos ("JA" o la actividad) es el resultado de un proceso de co-creación que reunió a un equipo multidisciplinario y multisectorial de organizaciones con el objetivo de desarrollar una serie de intervenciones para	**Background** Juntos Aprendemos ("JA" or the activity) is the result of a co-creation process that brought together a multidisciplinary and multisectoral team of organizations with the goal of developing a series of interventions to

abordar las necesidades educativas de las comunidades e involucrar a los actores en todos los niveles. La propuesta resultante tenía tres pilares técnicos clave: desarrollo de capacidades impulsado por la demanda, flexibilidad y colaboración efectiva entre sectores. La estrategia del proyecto se basa en el desarrollo de capacidades locales a través de una red sólida y bien coordinada de organizaciones que están intrínsecamente comprometidas a nivel de base. Estas organizaciones asociadas tienen experiencia en el fortalecimiento del sistema educativo colombiano en las comunidades receptoras objetivo, al tiempo que promueven la equidad y la inclusión. Los socios principales de Juntos Aprendemos son Parque Explora, Fundación Carvajal y Proantioquia. En esencia, Juntos Aprendemos será impulsado por organizaciones colombianas que identificarán e implementarán soluciones para el máximo impacto a largo plazo. Juntos Aprendemos pide un enfoque integral y el esfuerzo concertado de todas las partes interesadas, incluidas las familias, los maestros, las escuelas, las organizaciones de la sociedad civil (OSC), los sectores público y privado. La estrategia del proyecto responde a este desafío, causado por una afluencia migratoria sin precedentes y una pandemia en curso, y proporciona un camino para construir la autosuficiencia local y proporcionar una educación de calidad con mayor participación, retención y rendimiento para todos los niños. Para aprovechar la amplia experiencia local que se encuentra en las regiones urbanas objetivo, tanto los Socios Principales como los Socios de Recursos Técnicos podrán involucrar y obtener apoyo técnico y programático de organizaciones de base que ya operan en comunidades receptoras. A través de la colaboración y la planificación, Juntos Aprendemos aprovechará las fortalezas de estas organizaciones locales y construirá relaciones que perduren más allá de la vida del programa.	address the educational needs of communities and engage actors at all levels. The resulting proposal had three key technical pillars: demand driven capacity development, flexibility, and effective collaboration across sectors. The project's strategy is founded on local capacity building through a strong and well-coordinated network of organizations that are intrinsically engaged at the grassroots level. These partner organizations have experience strengthening the Colombian education system in target receptor communities while promoting equity and inclusion. The Core Partners of Juntos Aprendemos are Parque Explora, Fundación Carvajal, and Proantioquia. At its core, Juntos Aprendemos will be driven by Colombian organizations that will identify and implement solutions for maximum long-term impact. Juntos Aprendemos calls for a comprehensive approach and the concerted effort of all stakeholders, including families, teachers, schools, civil society organizations (CSOs), public and private sectors. The project strategy responds to this challenge, caused by an unprecedented migration influx and an ongoing pandemic, and provides a path for building local self-reliance and providing quality education with greater participation, retention, and performance for all children. To tap into the extensive local expertise found in the target urban regions, both Core Partners and Technical Resource Partners will be able to engage and source technical and programmatic support from grassroots organizations already operating in receptor communities. Through collaboration and planning, Juntos Aprendemos will leverage the strengths of these local organizations and build relationships that endure beyond the life of the program.
Enfoque Dadas las necesidades educativas de las poblaciones en condiciones de vulnerabilidad y exclusión en Colombia, el objetivo de Juntos Aprendemos ("JA" o la actividad) es aumentar la capacidad del sistema educativo colombiano para brindar educación de calidad sostenible e inclusiva en áreas impactadas por la migración, comenzando el 5 de febrero de 2021 y terminando el 31 de diciembre de 2026.	**Approach** Given the educational needs of populations in conditions of vulnerability and exclusion in Colombia, Juntos Aprendemos' (JA or "the activity") goal is to increase the capacity of the Colombian education system to provide sustainable and inclusive quality education in areas impacted by migration, starting on February 5, 2021, and ending on December 31, 2026.

Para ello, se han definido tres objetivos: 1) mejorar la calidad de la educación de los niños y adolescentes de las comunidades receptoras; 2) Mayor acceso a una educación de calidad para niños y adolescentes en comunidades receptoras; y 3) fortalecimiento de la participación de la comunidad en las oportunidades educativas.

Juntos Aprendemos se dirigirá a áreas urbanas que abarcan comunidades receptoras con grandes poblaciones migrantes asentadas y oportunidades de integración socioeconómica: Bogotá, Medellín, Cali, Cúcuta, Barranquilla, Cartagena, Santa Marta, Riohacha y Bucaramanga, y trabajará con los niveles de escolaridad preescolar (edades 3-5), primaria (edades 6-12) y secundaria (edades 12-17).

Las lineas de base iniciales se llevarán a cabo a nivel municipal y escolar y se realizarán durante la fase inicial de trabajo con cada cohorte de escuelas. Como socio principal, Proantioquia, junto con PoA y los otros socios principales, identificarán las evaluaciones existentes para luego decidir cuáles se implementarán como parte de la línea de base y qué nuevas evaluaciones deberán ser creadas por POA o los socios principales. Estas evaluaciones de referencia también ayudarán a definir qué rutas e intervenciones semi estandarizadas se implementarán.

Juntos Aprendemos implementará intervenciones específicas en 400 escuelas y centros educativos objetivo. Estas 400 escuelas y centros educativos objetivo se alcanzarán a través de un enfoque gradual con tres cohortes de tamaño creciente. Este enfoque de cohorte gradual permitirá que PoA, los socios principales y otros socios técnicos de implementación aprendan y se adapten. Como socio principal, Proantioquia, junto con PoA y los otros socios principales, identificará intervenciones inmediatas para establecer rápidamente una relación con las escuelas objetivo, generar confianza y enfocarse en áreas prioritarias de amplio enfoque. Esto permitirá a la Proantioquia y otros socios implementar posteriormente la implementación completa de las intervenciones. Las rutas semi estandarizadas se crearán conjuntamente a través de un proceso de colaboración para establecer una agenda común, prioridades y criterios para la selección de

In order to do so, three objectives have been defined: 1) improved quality of education for children and adolescents in receptor communities; 2) Increased access to quality education for children and adolescents in receptor communities; and 3) strengthened community engagement in educational opportunities.

Juntos Aprendemos will target urban areas which encompass receptor communities with large, settled migrant populations and opportunities for socio-economic integration: Bogotá, Medellín, Cali, Cúcuta, Barranquilla, Cartagena, Santa Marta, Riohacha, and Bucaramanga, and will work with pre-primary (ages 3-5), primary (ages 6-12) and secondary education (ages 12-17) levels of schooling.

Initial baseline assessments will be conducted at the municipal and school level and will be done during the initial phase of work with each Cohort of schools. As a core partner, Proantioquia, together with PoA and the other Core Partners, will identify existing assessments to later decide which will be implemented as part of the baseline, and which new assessments will need to be created by POA or Core Partners. These baseline assessments will also help define which semi standardized routes and interventions will be implemented.

Juntos Aprendemos will implement targeted interventions in 400 target schools and educational centers. These 400 target schools and education centers will be reached through a phased approach with three Cohorts of increasing size. This phased in Cohort approach will allow PoA, Core Partners, and other technical implementing partners to learn and adapt. As a core partner, Proantioquia, together with PoA and the other Core Partners will identify immediate interventions to quickly establish relationship with the target schools, build trust, and target broad based priority areas. This will allow Proantioquia and other partners to subsequently roll out the full implementation of the interventions. The semi standardized routes will be jointly created through a collaborative process to set a common agenda, priorities and set criteria for the selection of the partner schools. The toolbox of interventions will include possible

escuelas asociadas. La caja de herramientas de las intervenciones incluirá posibles intervenciones desarrolladas por Proantioquia, así como otros socios principales y de recursos técnicos. A través de la Estrategia "wide and thin", Juntos Aprendemos llegará al menos a 200 escuelas durante el año escolar 2022 con un conjunto de actividades específicas y enfocadas que abordan los desafíos apremiantes que enfrenta el sistema educativo. Al trabajar en colaboración con los Socios principales y otros socios, Juntos Aprendemos espera ver una campaña sólida que ayude a unir las instituciones gubernamentales y las 200 escuelas y comunidades a las que se llegará a través de la campaña. Proantioquia ayudará a incorporar a otros aliados del sector a esta estrategia "wide and thin". Juntos Aprendemos utilizará un enfoque de *Impacto Colectivo* para lograr el objetivo de la actividad y convocará a secretarías de educación, oficinas locales, escuelas, OSCs y otras partes interesadas poco después de su lanzamiento para construir una comprensión común de los problemas que afectan el sistema educativo en cada área objetivo. Nuestro equipo desarrollará una agenda común, identificará medidas e indicadores de éxito conjuntos, y acordará actividades que contribuyan a alcanzar las metas.	interventions developed by Proantioquia as well as other core and Technical Resource Partners. Through a "wide and thin" strategy, Juntos Aprendemos will reach at least 200 schools during the 2022 school year with a targeted and focused set of activities that tackle pressing challenges facing the education system. By working collaboratively with Core Partners and other stakeholders, Juntos Aprendemos expects to see a robust campaign that helps bridge government institutions and the 200 schools and communities that will be reached through the campaign. Proantioquia will assist in bringing other sector allies into this "wide and thin" strategy. Juntos Aprendemos will use a Collective Impact approach to achieve the activity's goal and will convene SEs, schools, CSOs, and other stakeholders soon after its launch to build a common understanding of the problems impacting the education system in each target area. The team will develop a common agenda, identify joint measures and indicators of success, and agree on activities that contribute to reaching activity goals.
Socios principales La estrategia de la actividad se basa en el desarrollo de capacidades locales a través de una red sólida y bien coordinada de organizaciones que están intrínsecamente comprometidas a nivel de base y con las autoridades educativas locales, regionales y nacionales. Estas organizaciones asociadas tienen experiencia en el fortalecimiento del sistema educativo colombiano en las comunidades receptoras objetivo, al tiempo que promueven la equidad y la inclusión. En esencia, Juntos Aprendemos será impulsado por organizaciones colombianas que identificarán e implementarán soluciones para el máximo impacto a largo plazo. POA ofrece amplia experiencia para implementar la estrategia de Juntos Aprendemos. Los socios principales y de recursos técnicos trabajarán en colaboración para implementar actividades. Los socios técnicos se involucrarán a través del Fondo de Subvenciones Estratégicas (SGF), que facilitará la participación y la	**Core Partners** The activity's strategy is founded on local capacity building through a strong and well-coordinated network of organizations that are intrinsically engaged at the grassroots level and with local, regional and national education authorities. These partner organizations have experience strengthening the Colombian education system in target receptor communities while promoting equity and inclusion. At its core, Juntos Aprendemos will be driven by Colombian organizations that will identify and implement solutions for maximum long-term impact. POA offers extensive expertise and rich experience to implement Juntos Aprendemos' strategy. Core and Technical Resource Partners will work collaboratively to implement activities. Technical Resource Partners will be engaged through the Strategic Grants Fund (SGF), which

innovación de los socios a demanda y maximizará los recursos financieros. Todos los socios trabajarán juntos para fortalecer la capacidad técnica y organizativa en todo el equipo y con las partes interesadas locales.	will facilitate on-demand partner engagement and innovation and maximize financial resources. All partners will work together to strengthen technical and organizational capacity across the team and with local stakeholders.
Proantioquia Proantioquia tiene experiencia en en la implementación de iniciativas de desarrollo de alto impacto y el fortalecimiento de la calidad de la educación en Antioquia a través de alianzas y enfoques innovadores. Están intrínsecamente comprometidos a nivel de base y tienen experiencia en fortalecer el sistema educativo colombiano en las comunidades receptoras objetivo al tiempo que promueven la equidad y la inclusión. Proantioquia identificará e implementará soluciones para lograr el máximo impacto a largo plazo. Proantioquia tiene su sede en Medellín y una presencia bien establecida en toda Antioquia. Además, Proantioquia tiene experiencia trabajando en otras ciudades de Colombia, incluidas las ciudades objetivo de la actividad de Cali, Bucaramanga, Bogotá y Barranquilla. Con reconocida experiencia regional, Proantioquia también determinará cómo, dónde y con qué metodologías llegará a otras áreas geográficas de intervención. Esto requerirá trabajar con POA, los socios principales y socios de recursos técnicos para encontrar áreas de coincidencia y optimizar las estrategias de intervención, ya sea a través de intervención directa, capacitación de capacitadores, desarrollo de capacidades de otros socios u otras herramientas.	**Proantioquia** Proantioquia has expertise in implementing high-impact development initiatives and strengthening education quality in Antioquia through alliances and innovative approaches. They are intrinsically engaged at the grassroots level and have experience strengthening the Colombian education system in target receptor communities while promoting equity and inclusion. Proantioquia will identify and implement solutions for maximum long-term impact. Proantioquia is based out of Medellín, with a well-established presence throughout Antioquia. Additionally, Proantioquia has experience working in other cities throughout Colombia, including the activity target cities of Cali, Bucaramanga, Bogotá, and Barranquilla. With recognized regional expertise, Proantioquia will also determine how, where, and with what methodologies they will reach other geographical intervention areas. This will require working with POA, Core Partners, and technical resource partners to find areas of overlap and optimize intervention strategies either through direct intervention, training of trainers, capacity building of other partners, or other tools.
Personal Proantioquia propondrá un director de Alianzas, quien será responsable de liderar la participación de las partes interesadas con instituciones públicas y privadas relevantes, así como de agilizar las asociaciones entre el proyecto y las partes interesadas clave para la implementación exitosa de las actividades. El director de Alianzas apoyará al COP en la gestión diaria de las relaciones con el gobierno, entidades, sector privado, ONG y partes interesadas más amplias en las comunidades receptoras. El director es considerado personal clave, lo que significa que el candidato propuesto deberá ser aprobado por POA y USAID. Proantioquia	**Personnel** Proantioquia will propose a Partnerships and Alliances Director who will be responsible for leading stakeholder engagement with relevant public and private institutions, as well as streamlining partnerships between the project and key stakeholders for the successful implementation of activities. The Partnerships and Alliances Director will support the COP in the daily management of relationships with government, entities, private sector, NGOs, and broader stakeholders in receptor communities. The Director is considered key personnel, which means that the proposed candidate will have to be approved by POA and USAID. Proantioquia will hire additional staff to

contratará personal adicional para apoyar al director y a JA en el diseño, implementación y seguimiento de las actividades del proyecto. Además del director de Alianzas y Alianzas, Proantioquia contará con un gerente de programa que estará a cargo de coordinar los componentes pedagógicos y metodológicos, la implementación de subactividades, la ejecución financiera y los asuntos relacionados con el seguimiento y evaluación. Este Program Manager contará con el apoyo de un equipo de profesionales encargados de los procesos de capacitación, logística, administrativos y de seguimiento.	support the Director and JA in the design, implementation, and monitoring of project activities. In addition to the Partnerships and Alliances Director, Proantioquia will have a program manager who will be in charge of coordinating the pedagogical and methodological components, the implementation of sub-activities, financial execution, and matters related to monitoring and evaluation. This Program Manager will have the support of a team of professionals in charge of the training, logistics, administrative and monitoring processes.
Actividades Como socio principal, Proantioquia, junto con POA y los otros socios principales identificarán evidencia de programas de instrucción exitosos que satisfagan las necesidades de los niños y adolescentes migrantes (IR 1.4). Estos serán evaluados y, si son efectivos, replicados y ampliados en estrecha colaboración con las partes interesadas en la educación en cada región. Proantioquia tendrá un papel destacado en las actividades de formación docente, así como en el desarrollo de planes de formación para docentes y directores de escuelas. Dentro del conjunto de herramientas de metodologías que Proantioquia puede implementar se encuentra Ser+Maestro. La exitosa estrategia de Proantioquia tiene varios componentes clave: un enfoque en la capacitación docente y las políticas públicas, presencia nacional a través de programas educativos, materiales de capacitación con énfasis en la inclusión, alianzas intersectoriales entre los sectores público y privado, incluida la academia. Ser + Maestro entiende el clima escolar como la percepción que la comunidad educativa tiene del contexto escolar e incluye las siguientes dimensiones: 1. la relación entre profesores y alumnos; 2. justicia y claridad en las reglas; 3. la seguridad y la percepción de seguridad; 4. la relevancia de los entornos y materiales de aprendizaje utilizados. Estas dimensiones no sólo son percibidas, sino esencialmente experimentadas por profesores, estudiantes y directivos. Ser + Maestro se desarrolla con talleres, actividades presenciales, materiales de autoformación y reflexiones contextuales. Directivos Docentes es una subactividad para directores y coordinadores, quienes fortalecerán sus habilidades de	**Activities** As a Core Partner, Proantioquia, together with POA and the other Core Partners will identify evidence of successful instructional programs that meet the needs of migrant children and adolescents (IR 1.4). These will be assessed and, if effective, replicated and expanded in close collaboration with educational stakeholders in each region. Proantioquia will play a leading role in teacher training activities as well as in the development of training plans for teachers and school principals. Among the toolbox of methodologies that Proantioquia may implement is Ser+Maestro. Proantioquia's successful strategy have several key components: a focus on teacher training and public policy, national presence through educational programs, training materials with an emphasis on inclusion, intersectoral partnerships across public and private sectors, including academia. Ser + Maestro understands the school climate as the perception that the educational community has of the school context and includes the following dimensions: 1. the relationship between teachers and students; 2. justice and clarity in the rules; 3. the security and perception of security; 4. the relevance of the learning environments and materials used. These dimensions are not only perceived, but essentially experienced by teachers, students and managers. Ser + Maestro is developed with workshops, classroom activities, self-training materials and contextual reflections. Directivos Docentes is a subactivity for principals and coordinators, who will strengthen their leadership skills

liderazgo para que, a través de sus prácticas de gestión, movilicen acciones que contribuyan a una educación inclusiva, equitativa y de calidad.	so that, through their management practices, they mobilize actions that contribute to inclusive, equitable and quality education.
Estas subactividades tienen como objetivo fortalecer las capacidades para promover el liderazgo inclusivo y el clima escolar.	These subactivities aim to strengthen the capabilities to promote inclusive leadership and school climate
El desafío durante los próximos seis años será movilizar y construir una visión compartida que involucre a toda la comunidad y aliente a diferentes sectores a trabajar juntos con plena conciencia de la urgencia del cambio para superar las expectativas individuales de las familias y las OSC comunitarias. En las comunidades receptoras urbanas, numerosas OSC locales han estado brindando servicios clave a las familias migrantes. Los socios principales, incluido Proantioquia, y los socios de recursos técnicos involucrarán y apoyarán a estas OSC para ampliar su capacidad y apoyar la coordinación entre ellas para servir mejor a la comunidad (Objetivo 3 u O3). Proantioquia, junto con los demás socios principales y técnicos, desarrollará planes de extensión en cada región para implementar gradualmente los esfuerzos de participación durante la vida de la actividad en función de las evaluaciones y necesidades locales (IR 3.3). En todos los sectores, JA está bien posicionada para involucrar efectivamente al sector privado en apoyo de los objetivos de la actividad. Con amplios vínculos con aliados del sector privado, Proantioquia liderará los esfuerzos de participación a través del director de Alianzas. La estrategia es involucrar a posibles socios/aliados iniciales de financiadores principalmente del sector privado y también comprometer a socios/aliados públicos a participar en la actividad para que puedan iniciar iniciativas de JA. Los socios y aliados apoyarán la replicación, expansión y, eventualmente, la sostenibilidad de muchas de las iniciativas de JA, y también contribuirán a posicionar la agenda de JA y fortalecer el ecosistema de JA.	The challenge over the next six years will be to mobilize and build a shared vision that involves the entire community and encourages different sectors to work together with full awareness of the urgency of change to exceed the individual expectations of families and community CSOs. In the urban receptor communities, numerous local CSOs have been providing key services to the migrant families. Core Partners, including Proantioquia, and technical resource partners will engage and support these CSOs to expand their capacity and support coordination among them to better serve the community (Objective 3 or O3). Proantioquia, together with the other Core and Technical Partners will develop outreach plans in each region to phase in engagement efforts during the life of the activity based on local assessments and needs (IR 3.3). Across sectors, JA is well poised to effectively engage the private sector in support of activity objectives. With extensive linkages to private sector allies, Proantioquia will be leading the engagement efforts through the Partnerships and Alliances Director. The strategy is to engage potential primarily private sector funders earlypartners/allies and commit public partners/allies to participate in the activity so they can JA initiatives. Partners and allies will support the replication, expansion, and eventually the sustainability of many of JA's initiatives, and they will also contribute positioning JA agenda and strengthening JA ecosystem.
Como parte de la estrategia de JA para incluir una participación significativa de los socios en las actividades, POA liderará el Comité Directivo, con Proantioquia y los otros Socios Principales también sirviendo como miembros del comité. El Comité Directivo brindará orientación, revisará el progreso y hará recomendaciones en apoyo de los objetivos de la actividad con reuniones trimestrales.	As part of JA's strategy to include meaningful activity partner participation, POA will lead the Steering Committee, with Proantioquia and the other Core Partners also serving as committee members. The Steering Committee will provide guidance, review progress, and make recommendations in support of activity objectives with quarterly meetings.

De acuerdo con la disponibilidad de recursos financieros y las necesidades del programa, el personal de Proantioquia realizará viajes de campo con diversos fines. Coordinarán los viajes del personal de campo para visitas al sitio y M&E; viajes para la agilización de los procesos de investigación escolar en las instituciones educativas; viajes para formación docente; viajes locales para el personal de campo; viajes para reuniones del Consejo Asesor (2 al año); viajes para Foros Anuales de Observatorios de Educación; viajar a reuniones presenciales de SMT en Bogotá; y viajar a la reunión anual presencial del Comité Directivo.	According to the availability of financial resources and the needs of the program, Proantioquia staff will engage in field travel for various purposes. They will coordinate field staff travel for site visits and M&E; travel for the streamlining of school research processes in educational institutions; travel for teaching training; local travel for field staff; travel for Advisory Board Meetings (2 annually); travel for Annual Forums for Education Observatories; travel to SMT in-person meetings in Bogotá; and travel to annual in-person Steering Committee Meeting.

Marco de resultados
 	
Juntos Aprendemos apoya el objetivo especial de la Estrategia de Cooperación para el Desarrollo de USAID/Colombia 2020-2025 "Estabilidad en áreas afectadas por la migración desde Venezuela", que requiere programación para promover la estabilidad mediante el fortalecimiento de los sistemas públicos y una mayor absorción en la educación y otros sistemas sociales. Se ajusta a la Política de Educación 2018 de USAID que apoya un sistema educativo que permite a todos los niños y jóvenes adquirir la educación y las habilidades necesarias para ser miembros productivos de la sociedad y promover la estabilidad, incluso frente a choques externos.
 	
Proantioquia, en asociación con POA y los otros socios principales, garantizará que sus esfuerzos se dirijan hacia el logro del Marco de Resultados para la actividad, comenzando con su objetivo general, aumentar la capacidad del sistema educativo colombiano para proporcionar educación de calidad sostenible e inclusiva en áreas afectadas por la migración. Cada socio principal encontrará los mejores métodos para alcanzar los objetivos del programa, de la siguiente manera:
 	
• Objetivo 1 – Mejorar la calidad de la educación
  o IR 1.1. - Mejores entornos de aprendizaje para que sean seguros, inclusivos y receptivos a las necesidades de los estudiantes retornados, de acogida y migrantes.
  o IR 1.2. - Fortalecimiento de la capacidad organizativa (coordinación, planificación de contingencias, divulgación y políticas) de los gobiernos nacionales y locales para
	Results Framework
	
	Juntos Aprendemos supports the special objective in the 2020-2025 USAID/Colombia Country Development Cooperation Strategy “Stability in areas impacted by migration from Venezuela” which requires programming to promote stability by strengthened public systems and increased absorption into education and other social systems. It fits within USAID’s 2018 Education Policy that supports an education system that enables all children and youth to acquire the education and skills needed to be productive members of society and promote stability, even in the face of external shocks.
	
	Proantioquia, in partnership with POA and the other Core Partners, will ensure that their efforts go toward achieving the Results Framework for the activity, starting with its overall goal, to increase the capacity of the Colombian education system to provide sustainable and inclusive quality education in areas impacted by migration. Each Core Partner will find the best methods to reach the program objectives, as follows:
	
	• Objective 1 – Improved quality of education
	  o IR 1.1. – Improved learning environments to be safe, inclusive, and responsive to the needs of returnee, host, and migrant learners.
	  o IR 1.2. - Strengthened organizational capacity (coordination, contingency planning, outreach, and policies) of national and local governments to provide quality education.
	  o IR 1.3. - Strengthened knowledge and skills of teachers and directors to deliver improved

proporcionar una educación de calidad. o IR 1.3.-Fortalecimiento del conocimiento y las habilidades de los maestros y directores para ofrecer una mejor instrucción en habilidades fundamentales, incluida la alfabetización, la aritmética y las habilidades sociales y emocionales. o IR 1.4. – Mejores planes curriculares para la instrucción tradicional y alternativa de alta calidad, incluida la enseñanza a distancia, la educación acelerada, la programación puente y la puesta al día. • Objetivo 2 – Mayor acceso a una educación de calidad o IR 2.1. - Mayor acceso de los estudiantes a oportunidades educativas apropiadas y seguras. o IR 2.2. - Mayor acceso a modalidades de educación flexible certificadas para niños y adolescentes. • Objetivo 3 – Fortalecimiento de la participación comunitaria en las oportunidades educativas o IR 3.1. - Mayor participación de los miembros y organizaciones de la comunidad local, incluidas las organizaciones juveniles, en la toma de decisiones educativas y la prestación de servicios. o IR 3.2. - Mayor participación de la familia y los cuidadores para apoyar el aprendizaje de los estudiantes. o IR 3.3. - Fortalecimiento de las redes sociales para apoyar el aprendizaje en las comunidades receptoras.	instruction in foundational skills, including literacy, numeracy and social and emotional skills. o IR 1.4. - Improved curricula for high quality traditional and alternative instruction, including distance learning, accelerated education, bridging and catch-up programming. • Objective 2 – Increased access to quality education o IR 2.1 - Increased student access to appropriate and safe education opportunities. o IR 2.2 - Increased access to certified flexible education modalities for children and adolescents. • Objective 3 – Strengthened community engagement in educational opportunities. o IR 3.1 - Increased participation from local community members and organizations, including youth organizations, in education decision making and service delivery. o IR 3.2 - Increased participation of family and caregivers to support student learning. o IR 3.3 - Strengthened social networks to support learning in receptor communities.
Objetivos de la actividad ProaAntioquia tendrá un papel sólido en todos los objetivos de la actividad. ProaAntioquia tendrá un papel protagonista en el diseño de materiales y recursos de formación docente, así como en la implementación de metodologías de formación presencial y digital. ProaAntioquia también liderará mesas redondas con organizaciones locales y socios potenciales y garantizará que la participación de la comunidad y las partes interesadas se incluya durante toda la vida de la actividad. Estas mesas redondas incluirán el diálogo con el sector privado local y actores públicos para construir temas estratégicos y lineamientos de políticas públicas. ProaAntioquia también participará activamente en	**Activity Objectives** Proantioquia will have a robust role across activity objectives. Proantioquia will play a leading role in the design of teacher training materials and resources, as well as in the implementation of in person and digital training methodologies. Proantioquia will also lead round tables with local organizations and potential partners and will ensure that community and stakeholder participation is included across the life of the activity. These round table discussions will include dialogue with the local private sector and public actors to build strategic themes and public policy guidelines. Proantioquia will also actively participate in Monitoring, Evaluation, and Learning

iniciativas de Monitoreo, Evaluación y Aprendizaje, incluida la recopilación de datos confiables, la creación de herramientas de recopilación de datos y el desarrollo de talleres de capacitación.	initiatives including the collection of reliable data, creation of data collection tools, and development of training workshops.
Objetivo 1 - Mejora de la calidad de la educación para niños y adolescentes en comunidades receptoras • Proantioquia cuenta con un conjunto diverso de metodologías e intervenciones que se utilizarán en entornos presenciales y virtuales con el fin de capacitar a directores y docentes para fortalecer las capacidades para promover el liderazgo y el clima escolar inclusivos. • Proantioquia cuenta con una variedad de intervenciones para posible uso en "rutas semiestandarizadas", comunidad de práctica para docentes que puede estar disponible tanto en formato presencial como digital. • Proantioquia colaborará en la creación de categorizaciones escolares y la selección de metodologías a utilizar en rutas semiestandarizadas.	**Objective 1 - Improved quality of education for children and adolescents in receptor communities** • Proantioquia has a diverse set of methodologies and interventions that will used in person and virtual settings in order to train principals and teachers to strengthen the capabilities to promote inclusive leadership and school climate. • Proantioquia has a variety of interventions for possible use in "semi-standardized routes", practice community for teachers which can be made available in both face-to-face and digital formats. • Proantioquia will assist in the creation of school categorization and the selection of methodologies to be used in semi-standardized routes.
Objetivo 2 - Mayor acceso a una educación de calidad para niños y adolescentes en comunidades receptoras • Proantioquia colaborará con el gobierno local, las OSC y el sector privado, principalmente con el sector privado y eventualmente con el sector público, incluidas las autoridades nacionales y locales, las OSC y las organizaciones internacionales, para apoyar iniciativas que faciliten la inscripción de niños y adolescentes migrantes en escuelas y programas educativos. . • Proantioquia trabajará con Core Partners y POA para establecer enlaces con otras organizaciones y socios de recursos técnicos para brindar servicios complementarios que ayudarán en la inscripción de estudiantes.	**Objective 2 - Increased access to quality education for children and adolescents in receptor communities** • Proantioquia will collaborate with local government, CSOs, and the private sectorprimarily with private sector and eventually with the public sector including national and local authorities, CSOs, international organizations, to support initiatives that facilitate enrollment of migrant children and adolescents in schools and educational programs. • Proantioquia will work with Core Partners and POA to liaise with other organizations and technical resource partners to provide complementary services that will aid in student enrollment.
Objetivo 3 - Fortalecimiento de la participación comunitaria en las oportunidades educativas • ProAntioquia utilizará su experiencia en comunidad para contribuir a la estrategia de participación de las comunidades.	**Objective 3 - Strengthened community engagement in educational opportunities** • ProAntioquia will use its expertise in community to contribute to the communites engagement strategy.
Metas para 2023	**Targets for 2023**

En 2023, ProaAntioquia trabajó en nueve ciudades (Bogotá, Medellín, Cali, Cúcuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta, Riohacha), a través de tres subactividades. La siguiente tabla presenta los objetivos definidos para 2023:	In 2023, Proantioquia worked in nine cities (Bogotá, Medellín, Cali, Cúcuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta, Riohacha), through three sub-activities. The following table presents the targets defined for 2023:

Sub-actividad	Alianzas	P-CC-156 (Fondos apalancados)	ES.1-6 (docentes capacitados)	ES.1-3 (alumnos en primaria)	ES.1-4 (alumnos en secundaria)	JA-04 (transferencia de conocimientos)
	Semestral	Trimestral	Anual	Anual	Anual	Trimestral
	Meta	Meta	Meta	Meta	Meta	Meta
Ser + Maestro			650	6.625	9.750	400
Directivos docentes	1					240
Impacto Colectivo						100
Juntos Aprendemos: gestión de alianzas y formación docente	1	$1.173.143.400*				

**This amount is the target until the end of the program.*

Metas para 2024, 2025 y 2026 En 2024, Proantioquia trabajará en ocho ciudades (Cali, Medellín, Cúcuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta y Riohacha), a través de tres subactividades. La siguiente tabla presenta los objetivos definidos para 2024 y la proyección para 2025-2026:	**Targets for 2024, 2025 and 2026** In 2024, Proantioquia will work in eight cities (Cali, Medellín, Cucuta, Bucaramanga, Cartagena, Barranquilla, Santa Marta y Riohacha), through three sub-activities. The following table presents the targets defined for 2024 and the projection for 2025-2026:

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Metas Programa Juntos Aprendemos - PROANTIOQUIA

#	Código	Nombre del Indicador	Unidad	Metas PR 2024	Metas 2025-206 (proyección)
Indicadores Globales					
1	CBLD-9	Porcentaje de organizaciones apoyadas por JA con desempeño mejorado	Porcentaje de Organizaciones	-	-
2	P-APP	Número de alianzas público-privadas creadas por JA	Número de alianzas	7	1
3	P-CC-156	Valor de los recursos apalancados por JA	COP $	57.447.259	114.894.519
Objetivo 1: Calidad de la educación mejorada para niños y jóvenes en comunidades receptoras					
IR 1.1 Entornos de aprendizaje mejorados, seguros, inclusivos y sensibles a las necesidades de los estudiantes migrantes y retornados					
4	ES. 1-51	Número de ambientes de aprendizaje apoyados por JA que han mejorado su seguridad	Número de ambientes de aprendizaje	-	-
IR 1.2 Capacidad organizativa fortalecida (coordinación, planificación de contingencias, divulgación y políticas) de los gobiernos nacionales y locales para brindar una educación					
5	ES.1-59	Sistema educativo fortalecido a través del apoyo de JA	Binario si (1) / no (0)	-	-
IR 1.3 Conocimientos y habilidades de los maestros y directores fortalecidas para brindar una mejor instrucción en las habilidades fundamentales, incluidas la alfabetización, la					
6	ES.1-6	Número de educadores apoyados por JA que completan actividades de desarrollo profesional	Número de educadores	450	76
IR 1.4 Planes de estudios mejorados para una instrucción tradicional y alternativa de alta calidad, incluido el aprendizaje a distancia y la educación acelerada					
7	Supp-9	Porcentaje de estudiantes apoyados por JA con habilidades sociales y emocionales mejoradas	Porcentaje de alumnos	-	-
8	ES-1.53	Número de estudiantes en pre-primaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	-	622
9	ES.1-3	Número de estudiantes en primaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	7.875	2.074
10	ES.1-4	Número de estudiantes en secundaria o entornos no escolares equivalentes alcanzados por JA	Número de alumnos	3.375	500
11	ES 1-48	Número de estudiantes apoyados por JA con un incremento de al menos un nivel de proeficiencia en lectura al final de grado segundo	Porcentaje de alumnos	-	-
Objetivo 2: Acceso incrementado a educación flexible para niños y jóvenes en comunidades receptoras					
IR 2.1 Acceso mejorado a oportunidades educativas apropiadas y seguras para niños y jóvenes					
12	JA-04	Número de personas apoyadas por JA, que participan en procesos de transferencia de conocimiento sobre el acceso a oportunidades educativas adecuadas y seguras para personas migrantes y retornadas.	Número de directores, educadores y autoridades educativas	-	1.340
IR 2.2 Acceso mejorado a modalidades educativas flexibles certificadas para niños y jóvenes					
13	JA-05	Número de alumnos apoyados por JA matriculados en modelos educativos flexibles	Número de alumnos	-	-
Objectivo 3: Fortalecimiento de la comunidad en oportunidades educativas					
IR 3.1 Participación incrementada de los miembros y organizaciones de la comunidad local, incluidas las organizaciones juveniles, en la toma de decisiones y la prestación de					
14	JA-06	Número de OSC y organizaciones de base (incluidas organizaciones de jóvenes y comunitarias) apoyadas por JA que participan en actividades educativas	Número de OSC y organizaciones de base	-	
15	ES.1-13	Número de asociaciones de padres y maestros o estructuras comunitarias de gobernanza escolar apoyadas por JA, que participan en educación primaria o secundaria	Número de asociaciones de padres o estructuras comunitarias de gobernanza	-	-
IR 3.2 Participación incrementada de las familias y los cuidadores para apoyar el aprendizaje de los estudiantes					
16	JA-07	Número de padres de familia/cuidadores apoyados por JA, que participan en asociaciones de padres de familia y/o talleres de crianza/escuelas de padres	Número de padres de familia/cuidadores	-	-

Los objetivos actualizados para cada año se incluirán en el Subacuerdo siguiendo la versión más reciente aprobada del Plan de Monitoreo, Evaluación y Aprendizaje de Actividades (AMELP).	The updated targets for each year will be included in the Sub-award following the most recent approved version of the Activity Monitoring, Evaluation and Learning Plan (AMELP).

Además de las metas cuantitativas, Proantioquia durante 2023 desarrolló dos productos importantes para el programa desde la gestión del conocimiento: • Con base en el aprendizaje obtenido en 2022, el equipo técnico creó una colección de textos completamente nueva para Ser + Maestro y rediseñó las actividades de los talleres de subactividades, para que ahora se acerquen más a los objetivos de JA. • En alianza con Fundación Nutresa, el equipo de formadores de formadores de Proantioquia, diseñó una subactividad para Directores Educativos de directivas escolares, enfocada en liderazgo inclusivo. Estos contenidos han sido diseñados para atender el cumplimiento de los directivos docentes, cumpliendo la misión propuesta por JA. Creación de capacidad.	In addition to the quantitative goals, Proantioquia during 2023 developed two important products for the program from knowledge management: • Based on the learning obtained in 2022, the technical team created a completely new collection of texts for Ser + Maestro and redesigned the activities of the sub-activity workshops, so nowthat they are closer to the objectives of JA. • In Alliance with Fundación Nutresa, the Proantioquia´s trainer team of trainers, designed a sub-activity for Teaching Directorsschool directives, focused on inclusive leadership. These contents have been designed to attend the fulfillment ofthe teaching directors, fulfilling the mission proposed by JA. Capacity building.
Creación de Capacidad **Comunidad de Aprendizaje Juntos Aprendemos** De acuerdo con el modelo de la Iniciativa de Nuevas Alianzas (NPI), POA servirá como mentor de Proantioquia y los otros socios principales facilitando un proceso de desarrollo organizacional. POA empleará un enfoque de Comunidad de Aprendizaje para fomentar el desarrollo de capacidades para todos los Socios Principales, así como para los Socios de Recursos Técnicos, incluido Proantioquia. La Comunidad de Aprendizaje se enmarcará bajo el modelo de Impacto Colectivo y se convertirá en un espacio y estructura para que las personas de los socios de Juntos Aprendemos se conecten y trabajen a través de los límites organizacionales. La Comunidad de Aprendizaje permitirá a las organizaciones participantes y a los individuos aprender unos de otros, compartir resultados y reflexionar sobre las lecciones aprendidas y los desafíos, mejorando así su capacidad para lograr un progreso significativo. Como parte de la Comunidad de Aprendizaje, POA llevará a cabo una Evaluación de Capacidad Organizacional (OCA) para evaluar conjuntamente las fortalezas organizacionales y programáticas de Proantioquia, determinar áreas de crecimiento y crear un plan de acción para la mejora de la capacidad. POA utilizará las herramientas del Laboratorio de Aprendizaje de USAID para guiar nuestros esfuerzos de evaluación. Proantioquia participará activamente en el desarrollo conjunto e implementación de planes y estrategias de desarrollo de capacidades.	**Capacity building** **Juntos Aprendemos Learning Community** According to the New Partnerships Initiative (NPI) model, POA will serve as mentor to Proantioquia and the other Core Partners facilitating a process of organizational development. POA will employ a Learning Community approach to foster capacity development for all Core Partners as well as Technical Resource Partners, including Proantioquia. The Learning Community will be framed under the Collective Impact model and will become a space and structure for people from Juntos Aprendemos' partners to connect and work across organizational boundaries. The Learning Community will enable participant organizations and individuals to learn from each other, share results, and reflect on lessons learned and challenges, thereby improving their ability to achieve significant progress. As part of the Learning Community, POA will conduct an Organizational Capacity Assessment (OCA) to jointly assess Proantioquia's organizational and programmatic strengths, determine areas of growth, and create a plan of action for capacity improvement. POA will use USAID's Learning Lab tools to guide our assessment efforts. Proantioquia will actively participate in the joint development and implementation of capacity building plans and strategies.

Fortalecimiento Institucional e Innovación Las actividades de desarrollo de capacidades no solo serán entre POA y cada socio principal, sino también entre socios principales, actores públicos locales y socios de recursos técnicos. El fortalecimiento institucional es un objetivo importante de Juntos Aprendemos y todos los socios principales desempeñan un papel importante en su logro. El aspecto de fortalecimiento institucional e innovación de la actividad busca aumentar la capacidad de las agencias gubernamentales asociadas como el Ministerio de Educación, las Secretarías de Educación, el ICBF y otras agencias gubernamentales nacionales, departamentales, municipales o locales para ayudarlos a cumplir su mandato de manera más efectiva y funcionar de manera más eficiente. Además, tiene como objetivo apoyar la coordinación entre las agencias y mejorar su capacidad para implementar, escalar e institucionalizar prácticas basadas en evidencia que fomenten el acceso a una educación de calidad. El componente de innovación tiene como objetivo crear un cambio positivo en el sector educativo, particularmente para las comunidades objetivo de la actividad. La innovación se basará en la creación, rediseño o adaptación de procesos, productos o estrategias que beneficien a la comunidad educativa y podrán o no involucrar tecnología. Las fortalezas de Proantioquia son variadas y se pondrán sobre la mesa para desarrollar las capacidades de otros socios locales. Desde una perspectiva institucional, Proantioquia aporta alta capacidad en estrategias de movilización de recursos, desarrollo asociativo y relacional, y políticas organizacionales internas. Desde una perspectiva técnica, ProaAntioquia tiene experiencia en evaluación de programas, procesos de capacitación y fortalecimiento de ambientes escolares.	**Institutional Strengthening and Innovation** Capacity building activities will not only be between POA and each Core Partner, but also among Core Partners, local public stakeholders, and Technical Resource Partners. Institutional strengthening is an important goal of Juntos Aprendemos and all Core Partners play an important role in achieving it. The institutional strengthening and innovation aspect of the activity seeks to increase the capacity of government partner agencies such as the Ministry of Education, Secretariats of Education, the ICBF and other national, departmental, municipal or local government agencies to help them carry out their mandate more effectively and function more efficiently. Further, it aims to support coordination among agencies and improve their capacity to implement, scale and institutionalize evidence-based practices that foster access to quality education. The innovation component aims to create positive change in the education sector, particularly for communities targeted by the activity. Innovation will be based on creation, re-design or adaptation of processes, products or strategies that benefit the education community and may or may not involve technology. Proantioquia's strengths are varied and will be brought to the table to build the capacities of other local partners. From an institutional perspective, Proantioquia brings high capacity in resource mobilizing strategies, partnership and relational development, and internal organizational policies. From a technical perspective, Proantioquia has expertise in program evaluation, training processes, and strengthening of school environments.
Colaboraciones y Alianzas Proantioquia, junto con los demás socios principales, tendrá la tarea de fortalecer las relaciones y coordinar actividades con el Ministerio de Educación, las SE y otras entidades públicas y privadas clave en cada región. Proantioquia también liderará la participación efectiva del sector privado. A través del director/a de Alianzas, Proantioquia involucrará a posibles financiadores del sector privado al principio del proyecto para que puedan apoyar la replicación, expansión y eventualmente la sostenibilidad de muchas de las iniciativas de JA, como se indicó anteriormente. En términos generales, JA también encontrará áreas de superposición con otras actividades de	**Partnerships and alliances** Proantioquia, together with the other Core Partners, will be tasked with strengthening relationships and coordinating activities with the MoE, SEs, and other key public and private entities in each region. Proantioquia will also lead effective engagement of the private sector. Through the Director of Partnerships and Alliances, Proantioquia will engage potential private sector funders early in the project so they can support the replication, expansion, and eventually the sustainability of many of JA's initiatives, as stated above. Broadly, JA will also find areas of overlap with other USAID activities, such as Leadership for Change (implemented by Enseña por Colombia) or Youth Resilience Activity (YRA)

USAID, como Liderazgo para el Cambio (implementada por Enseña por Colombia) o Actividad de Resiliencia Juvenil (YRA) (implementada por ACDI/VOCA), con el fin de encontrar áreas comunes de experiencia técnica. e intervención. El Consejo Asesor, que reúne a las principales partes interesadas de JA, servirá como mecanismo para involucrar a socios gubernamentales y del sector privado en la toma de decisiones y también revisará datos sobre indicadores clave de desempeño y buscará la alineación entre sectores en cuanto a las prioridades de actividad.	(implemented by ACDI/VOCA), in order to find common areas of technical expertise and intervention. The Advisory Board, which convenes JA's principal stakeholders, will serve as a mechanism to engage government and private sector partners in decision making and will also review data on key performance indicators and seek alignment across sectors on activity priorities.

END OF ANNEX A
FIN DEL ANEXO A

ANNEX B: DETAILED BUDGET

Name of Subawardee: ProAntioquia
USAID No. 7200AA21RFA00001

Line Items	*Year 1*			*Year 2*			*Year 3*			*Year 4*			*Year 5*			*Year 6*			*Total*	*Total*	*Grand*
	USAID	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*	*USAID*	*Leverage*	*Total*
Personnel	31.490	15.054	46.545	176.791	16.693	193.485	198.142	41.131	239.273	221.343	45.210	266.553	251.111	47.471	298.581	98.484	27.553	126.037	977.361	193.113	1.170.474
Fringe Benefits	11.993	4.598	16.591	69.759	5.095	74.854	90.940	10.924	101.864	106.388	15.579	121.967	114.415	16.358	130.773	78.486	8.766	87.252	471.981	61.320	533.301
Travel	7.005	0	7.005	89.804	0	89.804	59.542	0	59.542	50.694	0	50.694	2.859	0	2.859	2.252	0	2.252	212.155	0	212.155
Supplies	7.039	1.471	8.510	9.776	10.095	19.871	1.101	20.478	21.579	4.376	11.976	16.352	4.889	12.934	17.823	0	7.028	7.028	27.181	63.982	91.163
Contractual	0	0	0	16.135	0	16.135	12.449	0	12.449	16.148	0	16.148	0	0	0	0	0	0	44.732	0	44.732
Other Direct Costs	20.331	0	20.331	180.882	0	180.882	89.026	0	89.026	38.271	0	38.271	18.395	0	18.395	4.316	0	4.316	351.220	0	351.220
Total Direct Costs	**77.858**	**21.123**	**98.981**	**543.147**	**31.883**	**575.030**	**451.201**	**72.533**	**523.734**	**437.220**	**72.766**	**509.986**	**391.668**	**76.763**	**468.432**	**183.537**	**43.347**	**226.884**	**2.084.631**	**318.415**	**2.403.047**
Indirect Costs	**0**	**0**	**0**	**0**	**0**	**0**	**13.229**	**2.951**	**16.180**	**39.350**	**6.549**	**40.800**	**35.250**	**6.909**	**42.526**	**16.518**	**3.901**	**20.420**	**104.348**	**20.310**	**124.657**
Total	**77.858**	**21.123**	**98.981**	**543.147**	**31.883**	**575.030**	**464.430**	**75.484**	**539.914**	**476.570**	**79.314**	**550.786**	**426.919**	**83.672**	**510.958**	**200.055**	**47.249**	**247.304**	**2.188.979**	**338.725**	**2.527.704**

END OF ANNEX B
FIN DEL ANEXO B

ANNEX C: KEY PERSONNEL AND PROJECT STAFF

Proantioquia will propose a Partnerships and Alliances Director who will be responsible for leading stakeholder engagement with relevant public and private institutions, as well as streamlining partnerships between the project and key stakeholders for the successful implementation of activities. The Partnerships and Alliances Director will support the COP in the daily management of relationships with government, entities, private sector, NGOs, and broader stakeholders in receptor communities. The Director is considered key personnel, which means that the proposed candidate will have to be approved by POA and USAID. Proantioquia will hire additional staff to support the Director and JA in the design, implementation and monitoring of project activities.

NAME	***POSITION***	***CONTACT INFORMATION***
Natalia Currea Dereser	Partnerships and Alliances Director	ncurrea@proantioquia.org.co +57 3108059071

In addition to the Partnerships and Alliances Director, Proantioquia will have technical support personnel as part of the team working to fulfill Juntos Aprendemos' mission, as well as consultants for Technical Assistance for Activity Programming and Rapid Response Fund Consultant pool. POA shall be responsible for the approval of all consultancies, contracts, and purchase orders over USD $10,000.

END OF ANNEX C
FIN DEL ANEXO C

ANEXO D: CRONOGRAMA DE IMPLEMENTACIÓN PROGRAMÁTICA, REQUISITOS E INFORMES

I. Requisitos programáticos

1. **Informes y/o Planes Narrativos**: El Sub-adjudicatario es responsable de la presentación de informes programáticos narrativos mensuales y trimestrales a POA. POA proporcionará al Sub-adjudicatario todas las plantillas apropiadas. Los informes y planes deben presentarse a tiempo, como se describe en el ANEXO E.

   Favor de notar que POA facilitará los procesos para reflexionar en el progreso del sub-adjudicatario y los otros socios implementadores, así como los planes a futuro a ser reflejados en los Planes de Trabajo del proyecto. Estos procesos servirán como insumos para los informes y planes del sub-adjudicatario.

II. **Informes de prespupuesto**

2. **Solicitud de anticipos e Informes Financieros:** El Sub-adjudicatario debe enviar actualizaciones presupuestarias mensuales e informes de gastos detallados sobre las partidas detalladas en el ANEXO B, Presupuesto detallado, incluidas copias de todos los documentos de respaldo / recibos.
   Los informes de apalancamiento deberán enviarse trimestralmente.

ANNEX D: PROGRAMMATIC IMPLEMENTATION SCHEDULE,REQUIREMENTS AND REPORTS

I. Programmatic Requirements

- **Narrative Reports and/or Plans:** SUB-AWARDEE is responsible for the submission of monthly and quarterly narrative programmatic reports to POA. POA will provide SUB-AWARDEE with all appropriate templates. Reports and plans must be submitted on time, as outlined in ANNEX E.

  Note that POA will facilitate processes to reflect on progress made by the sub-recipient and by other implementing partners and plans for future work to be reflected on the project Annual Work Plan. These processes will serve as input for the sub-recipient's reports and plans.

II. Budget Reporting

- **Cash Flow request and Budget Reports**: SUB-AWARDEE must submit updated monthly cash flow request budget and detailed expense reports on the items detailed in ANNEX B, Detailed Budget, including copies of all supporting documents / receipts.
  Leverage reports must be submitted quarterly.

END OF ANNEX D
FIN DEL ANEXO D

ANNEX E: REPORT SUBMISSIONDATES

ANEXO E: FECHAS DE ENVÍO DE REPORTES

Submission Date	Report Type	Notes
Two months prior to the beginning of the implementation year	Annual Work Plan (AWP)	The subawardee will work with POA in developing an AWP which will contain a detailed project implementation schedule, resources to be used and summary budget associated with each project component and subcomponent broken down by week and/or by month. The AWP shall be aligned to the Monitoring, Evaluation and Learning Plan. The AWP will describe activities to be conducted at a greater level of detail than the Program Description in the subaward. All activities must be within the Program Description. The sub-recipient will work with POA and other implementing partners in the development of the AWP so it is the result of a collaborative process. POA will provide a template for this deliverable and will inform the subawardee of the detailed process for each AWP development, distribution, submission, and approval.
Up to the fifth (5th) business day of month following the end of the reporting period	Monthly/Quarterly Progress Reports	Monthly Progress Reports: The monthly progress report will follow a format prescribed by POA. Reports should summarize at least the following results and activities of each preceding month: a. Strategic goals and achievements; b. Highlight key accomplishments during the past month; c. Notable success stories (i/a); d. And any issues that are affecting the delivery of timing services provided by the sub-recipient. Quarterly reports: Quarterly reports will follow a format prescribed by POA. Reports should describe results and activities of each preceding three months. Reports shall describe progress made during the reporting period and assess overall progress to that date against: a) performance indicators agreed in the Monitoring and Evaluation Plan; b) the planned outputs established in the annual work plan for that period; c) highlight key accomplishments during the past month, notable success stories; and d) any issues that are affecting the delivery of timing services provided by the subawardee, steps taken or proposals being made to resolve issues. Quarterly reports will replace monthly progress reports in March, June, September, and December.
Up to the fifth (5th) business day of month following the end of the reporting period	Input for Annual Report	The sub-awardee is required to prepare and submit data and analysis of progress made towards the achievement of targets over the previous year. The format will be provided by POA and will be an input for JA Annual Report.
Up to the tenth (10th) business day of month following the end of the reporting	Monthly Financial Reporting	The sub-awardee is required to prepare and submit financial reports containing a detailed expenditure report, certification of expenses, and supporting documentation of all expenses valued at USD$25 or more.

period		
90 days before the completion date (May 31, 2026)	Close-out plan and timeline	The subawardee shall develop and implement a closeout plan, outlining plans to close project technical activities, administration, equipment, grants, finance, procurement, and management, as applicable. The plan shall include but not be limited to: C. Dates for final completion of proposed activities, with timeline; D. Plan to donate or dispose of all supplies and equipment purchased under the project; E. Review of contract files for audit purposes and final billing to POA; F. A schedule to address office leases, bank accounts, utilities, cell phones, personnel notifications, health insurance, outstanding travel, social payments, severance for local staff, vehicle leases/disposition, phone subscriptions, as applicable; G. Receipt of all final invoices and subaward performance reports; and H. Report on compliance with all local labor laws, tax clearances, etc.
30 days after completing all technical activities (June 30, 2026)	Final Technical Report covering all technical activities between August 2021 and May 31, 2026	The sub-awardee will submit a detailed Final Report, which includes the following: An overall description of the activities conducted and the significance of these activities; Summary of project accomplishments and impact as well as any unmet targets and the reason for them; Issues and problems that emerged during project implementation and the lessons learned in dealing with them; Comments and recommendations regarding unfinished work and/or future needs; Financial report detailing how funds were expended and leverage, by line item; and Other sections and information as agreed upon with the COP and/or the POA team. The format will be provided by POA and will be an input for JA Final Report.
Other reports communication products (success stories, case studies, etc), and/or plans will be requested on an ad hoc basis, including reports that will serve as input to inform USAID's Monitoring Management Information System (MONITOR). POA will provide necessary details about any ad hoc report or plan with as much time as possible and will work with the subawardee to ensure any deliverable is clearly explained and/or templates are provided.		

END OF ANNEX E
FIN DEL ANEXO E

ANNEX F –PARTNERS OF THE AMERICAS (POA) STANDARD PROVISIONS
ANEXO F - PARTNERS OF THE AMERICAS (POA) DISPOSICIONES ESTÁNDAR

I. DISPOSICIONES DE ANTICORRUPCIÓN
II. COMUNICACIÓN CON POA, DONANTES, CLIENTES
III. RESOLUCIÓN DE CONFLICTOS
IV. DIVULGACIONES
V. DIVULGACIÓN OBLIGATIORIA
VI. CONTRATISTA INDEPENDIENTE – NINGUN JOINT VENTURE
VII. INDEMNIZACIÓN/COMPENSACIÓN
VIII. NOMBRE Y MARCA– POA OF THE AMERICAS
IX. PROPIEDAD DEL TRABAJO
X. COSTOS PERMTIDOS
XI. COSTOS NO AUTORIZADOS
XII. CONTABILIDAD Y REGISTROS
XIII. RETENCIÓN Y REQUISITOS DE ACCESO A LOS REGISTROS
XIV. SUB-CONCESIONES Y CONTRATOS
XV. FINALIZACIÓN Y SUSPENSIÓN DEL CONTRATO
XVI. NORMAS DE POA PARA LA ADQUISICIÓN DE BIENES Y SERVICIOS
XVII. CONDUCTA DEL RECEPTOR Y DEL EMPLEADO
XVIII. EXCLUSIÓN Y SUSPENSIÓN
XIX. PREVENCIÓN DEL FINANCIAMIENTO DEL TERRORISMO
XX. TRAFICO/TRATA DE PERSONAS
XXI. ACUERDOS CON ORGANIZACIONES BASADAS EN LA FE Y EN LA COMUNIDAD
XXII. NO DISCRIMINACIÓN
XXIII. PROGRAMA PILOTO PARA EL MEJORAMIENTO DE LAS PROTECCION DE GARANTÍAS DE LOS TRABAJADORES
XXIV. ACUERDOS DE CONFIDENCIALIDAD O DECLARACIÓN
XXV. SALVAGUARDIA INFANTIL
XXVI. PROHIBICIÓN DE ACTIVIDADES RELACIONADAS CON EL ABORTO

XXVII. PROHIBICIÓN DE ASISTENCIA A LOS TRAFICANTES DE DROGAS
XXVIII. PROHIBICIÒN DEL USO DE FONDOS ANTI-TRÁFICO PARA PROMOVER, APOYAR O ABOGAR LA LEGALIZACIÓN O PRÁCTICA DE LA PROSTITUCIÓN

A menos que se indique lo contrario en el acuerdo, estas disposiciones no se sustituyen.

1. **DISPOSICIONES DE ANTICORRUPCIÓN**

   Aplicable a todos

a) El RECEPTOR llevará a cabo todas las actividades relacionadas con este compromiso demanera justa, honesta y transparente.
b) EL RECEPTOR representa, garantiza y certifica que el RECEPTOR rechaza la corrupción en todas sus formas, incluido el soborno, el pago de facilitación o cualquierley prohibida.
c) El RECEPTOR representa las garantías y certifica que el RECEPTOR es consciente de que el soborno es un delito en virtud de una serie de estatutos anticorrupción, incluida laLey de soborno, la Ley del Código Penal, la FCPA y estatutos similares y, por lo tanto, está estrictamente prohibido, independientemente de la jurisdicción o circunstancia.
d) El RECEPTOR no debe cometer o intentar, directa o indirectamente, ningún ActoProhibido, incluido el soborno o realizar un Pago de Facilitación.
e) El RECEPTOR representa las garantías y certifica que EL RECEPTOR ha leído y comprendido el Código de conducta de POA. El RECEPTOR acepta regirse por el Código de Conducta de POA y operar de manera consistente y coherente con laletra y el espíritu de dicho Código de Conducta.
f) El RECEPTOR representa las garantías y certifica que el RECEPTOR ha adoptado unapolítica para prevenir la corrupción en la conducción de negocios y hace cumplir dicha política. El RECEPTOR además representa, garantiza y certifica que el RECEPTOR hainformado a sus empleados, agentes, contratistas, subcontratistas, proveedores y otras personas o entidades con las que el RECEPTOR hace negocios de su política anticorrupción. El RECEPTOR acepta y se compromete a proporcionar una copia de dicha política a POA.
g) El RECEPTOR debe informar de inmediato a POA si el RECIPIENTE se entera de cualquier información que indique que un acto prohibido ha sido cometido o ha sido solicitado o sugerido por cualquier persona, incluido un funcionario público o un individuo privado, en relación con este compromiso.
h) A menos que se divulgue lo contrario por escrito a POA, el RECEPTOR representa, garantiza y certifica que ni el RECEPTOR, las personas empleadas por el RECEPTOR, ni los miembros de la familia inmediata de la misma, son funcionarios públicos. El RECEPTOR notificará inmediatamente a POA por adelantado que el RECEPTOR, cualquier persona empleada por el RECEPTOR o cualquier miembro de sufamilia inmediata que se convierta en un funcionario público.
i) El RECEPTOR deberá incluir estas, o sustancialmente similares, disposiciones de anticorrupción en todos los subcontratos u otros acuerdos que el RECEPTOR realice en relación con este compromiso.

[FIN DE LA PROVISIÓN]

2. **COMUNICACIÓN CON POA, DONANTES, CLIENTES.**

Aplicable a todos

El RECEPTOR no propondrá ni recomendará a ningún funcionario o empleado de la organización de contraparte, a ninguna agencia donante, ninguna actividad o curso de acciónconcon impacto directo en PARTNERS a menos que PARTNERS lo acuerde previamente por escrito. Cualquier trabajo con PARTNERS para el cual el RECEPTOR sea elegible se organizará a través de POA con la aprobación del RECEPTOR. El RECEPTOR no se comunicará directamente con un donante sobre su trabajo en PARTNERS sin el consentimiento por escrito del líder del programa de POA.

[FIN DE LA PROVISIÓN]

3. **RESOLUCIÓN DE CONFLICTOS**

Aplicable a todos

Las Partes primero intentarán resolver cualquier disputa que surja en virtud del presente Acuerdo mediante discusiones informales entre las Partes, con sujeción a excepciones de causa justificada, incluidas, entre otras, las disputas que una de las Partes determine que requieren un alivio inmediato (es decir, circunstancias que pueden dar lugar a un conflicto demalversación de fondos federales). Cualquier disputa que no haya sido resuelta mediante discusiones informales entre las Partes dentro de los 15 días hábiles, después de que las partes puedan decidir proceder según las reglas de la Asociación Americana de Arbitraje ("AAA"). En tal caso, se deberá dar instrucciones a la AAA para que designe al Árbitro dentro de los treinta (30) días de haber recibido la notificación de los Socios o Subgrupos quedicha parte quisiera someter la disputa a arbitraje. Se deberá instruir al Árbitro para que haga todo lo posible para concluir el arbitraje dentro de los treinta (30) días posteriores a su nombramiento. No obstante, lo anterior, ninguna de las partes será excluida de iniciar un litigio en ningún tribunal de jurisdicción competente.

[FIN DE LA PROVISIÓN]

4. **DIVULGACIONES**

Aplicable a todos

El RECEPTOR se compromete a seguir todas las reglas y políticas de PARTNERS con respecto a la conducta y la confidencialidad. El RECEPTOR acepta reconocer y firmar las políticas de confidencialidad y anti-acoso de PARTNERS. El RECEPTOR no deberá divulgar ningún asunto de carácter confidencial en el que pueda estar o sea privado como resultado de este Acuerdo. Al vencimiento o terminación de este Acuerdo, el RECEPTOR entregará a PARTNERS todo el material confidencial relacionado con PARTNERS en su poder, de cualquier origen e incluyendo, sin limitación, duplicados, facsímiles, modelos, prototipos y notas relacionadas con los mismos. El RECEPTOR dirigirá sin demora todas lasconsultas relacionadas con información confidencial y de propiedad del público (ya sea de unindividuo, una agencia gubernamental o funcionario, los medios

de comunicación u otras fuentes) a PARTNERS. Este Artículo sobrevivirá a cualquier terminación o expiración de este Acuerdo.

El RECEPTOR acepta firmar y devolver a PARTNERS los siguientes documentos:

a) Declaración de Confidencialidad de Asuntos Corporativos
b) Código de Conducta de Partners of the Americas
c) Política de no discriminación / acción afirmativa
d) Política de acoso.

[FIN DE LA PROVISIÓN]

5. **DIVULGACIÓN OBLIGATIORIA.**

Aplicable a todos los beneficiarios y sub-beneficiarios.

El sub-concesionario debe divulgar, de manera oportuna, por escrito a la agencia federal de otorgamiento, a la OIG y al destinatario principal (entidad de transferencia) todas las violaciones de la ley penal federal que involucren fraude, soborno o propinas ilegales que puedan afectar potencialmente el premio federal. No hacer las revelaciones requeridas puederesultar en cualquiera de los remedios descritos en 2 CFR 200.338 "Remedios para el incumplimiento", incluida la suspensión o la inhabilitación.

[FIN DE LA PROVISIÓN]

6. **CONTRATISTA INDEPENDIENTE – NINGUN JOINT VENTURE**

Aplicable solo a acuerdos de destinatarios

Nada de lo aquí establecido crea una empresa conjunta (joint venture), agencia o sociedad entre PARTNERS y el RECEPTOR, y ninguna de las partes tendrá el poder o facultad de obligar o vincular a PARTNERS de ninguna manera, a excepción que se estipule específicamente en este documento. El RECEPTOR es un contratista independiente y no es un empleado, socio o empresa conjunta de, o en cualquier otra relación de servicio con,PARTNERS. La manera en que se presten los servicios del RECEPTOR estará bajo el exclusivo control y la discreción del RECEPTOR.

[FIN DE LA PROVISIÓN]

7. **INDEMNIZACIÓN/COMPENSACIÓN**

Aplicable a todos

El RECEPTOR indemnizará y eximirá de responsabilidad a PARTNERS y sus funcionarios, directores, empleados, agentes y representantes legales, de y contra cualquier reclamo, demanda, responsabilidad, gastos (incluidos los honorarios y desembolsos razonables de abogados, costas judiciales, juicios, acuerdos y multas), ya sea por omisión o comisión, que puedan ser cometidas o sufridas en relación con el cumplimiento de este Acuerdo por parte del RECEPTOR o las operaciones comerciales generales de los RECEPTORES. Este párrafosobrevivirá a la terminación o expiración de este Acuerdo.

[FIN DE LA PROVISIÓN]

8. **NOMBRE Y MARCA– PARTNERS OF THE AMERICAS**

Aplicable a todos

PARTNERS y el RECEPTOR usarán el nombre de PARTNERS o las marcas solo para las actividades autorizadas por PARTNERS por escrito. Todos los demás usos se considerarán infracciones de la marca registrada PARTNERS, incluidas, entre otras, todas las políticas demarca relacionadas con el programa dentro de PARTNERS.

[FIN DE LA PROVISIÓN]

9. **PROPIEDAD DEL TRABAJO**

Aplicable a todos a menos que se especifique lo contrario en el acuerdo.

POA deberá, única y exclusivamente, poseer todos los derechos en cualquier trabajocreado por el RECEPTOR en relación con este Acuerdo, incluidos todos los datos, documentos, información, derechos de autor, patentes, marcas comerciales, secretos comerciales u otros derechos de propiedad en y para el trabajo. Al firmar este Acuerdo, el RECEPTOR transfiere expresamente todos los derechos a POA. Cualquier trabajo creado por el RECEPTOR a continuación será un trabajo de alquiler según se define en la Ley de Marcas de los Estados Unidos. El RECEPTOR respetará la confidencialidad de los materiales que se le proporcionaron a lo largo de este proyecto y devolverá todos los bienes de POA al finalizar el programa y tomará todas las medidas necesarias para protegerlos intereses de la información de propiedad de POA.

[FIN DE LA PROVISIÓN]

10. **COSTOS PERMTIDOS**

Aplicable solo a contratos / acuerdos con reembolso de costos

El beneficiario será reembolsado por los costos incurridos en llevar a cabo los propósitos de este acuerdo, en conformidad con los términos del mismo. Es responsabilidad del receptor asegurarse de que los costos incurridos sean (1) razonables: los costos que generalmente se reconocen como ordinarios y necesarios, y que serían incurridos por una persona prudente enla realización de sus actividades normales; (2) asignables: incurridos específicamente para este acuerdo; y (3) admisible:

cumplir con las limitaciones de esta adjudicación. PARTNERSse reserva el derecho de tomar una determinación final sobre la admisibilidad de los costos.

[FIN DE LA PROVISIÓN]

11. COSTOS NO AUTORIZADOS

Aplicable a las concesiones y sub-concesiones

Significa los gastos generales o centralizados de la Sub-concesión que no son costos administrativos permisibles para ser financiados con este Acuerdo. Aplicables solamente aContratos / acuerdos

a. Bebidas alcohólicas. Costos de las bebidas alcohólicas.
b. Deuda mala. Deuda incobrable, incluidas las pérdidas (ya sean reales o estimadas),debido a las cuentas incobrables de los clientes y otras reclamaciones, los costos relacionados con la cobranza y los costos legales relacionados, que surgen de otros asuntos de la Sub-concesión.
c. Comisiones y honorarios de contingencia. Comisiones, porcentajes, corretaje u honorarios de contingencia para personas o grupos contratados para solicitar contratos, amenos que la persona o el grupo sea un agente comercial o vendedor de buena fe mantenido por la Sub-concesión con el fin de asegurar el negocio.
d. Compensación.
    i. Compensación que constituya una distribución de utilidades, o
    ii. Bonificaciones e incentivos de compensación pagados en stock fuera de la políticade compensación normal de la Sub-concesión.
e. Contribución (a otras entidades). Contribuciones y donaciones por parte del Sub-concesionario a otros.
f. Contingencias. Las contribuciones a una reserva de contingencia o cualquier provisión similar hecha para eventos cuya ocurrencia no se puede predecir con certeza en cuanto al tiempo, la intensidad o la seguridad de su ocurrencia, son inadmisibles. El término "reserva de contingencia" excluye las reservas de auto-seguro, los fondos de pensiones ylas reservas para la indemnización por despido normal.
g. Costo de las valoraciones de activos resultantes de las combinaciones de negocios. Cuando se utiliza el método de compra para contabilizar una combinación de negocios, la amortización permisible, el costo del dinero y la depreciación se limitarán al total de los montos que se hubieran permitido si la combinación no hubiera tenido lugar.
h. Pagos de dividendos. Esta es una distribución de ganancias y no está permitida como ungasto del proyecto.
i. Multas y Sanciones. El costo de las multas y sanciones resultantes de infracciones o fallasdel Sub-concesionario para cumplir con las leyes y regulaciones de los EE. UU. O del país anfitrión.
j. Buena voluntad. Un activo intangible no identificable que se origina bajo el método de compra para contabilizar una combinación de negocios cuando el precio pagado por la compañía adquirente excede la suma de los activos individuales identificables adquiridosmenos los pasivos asumidos, en base a sus valores razonables. El exceso se conoce comúnmente como buena voluntad. La buena voluntad puede surgir de la adquisición de una empresa en su totalidad o de una parte de ella. Cualquier costo por amortización, gasto, cancelación o amortización de la plusvalía es inadmisible.

k. Intereses y otros costos financieros. Intereses sobre préstamos (sin embargo representados), bonos de descuentos, costo de operaciones de financiamiento y refinanciamiento, honorarios legales y profesionales pagados en relación con la preparación de un folleto, costos de preparación y emisión de derechos de acciones ycargos financieros relacionados, excepto los intereses evaluados por las autoridades tributarias estatales o locales de los EE. UU. distintas de las descritas en el artículo Hanterior.

l. Costos de cabildeo. Los costos asociados con las siguientes actividades con respecto alGobierno de los EE. UU. (USG) y sus subdivisiones políticas no son admisibles:

   i. Intentos de influir en los resultados de cualquier elección, referéndum, iniciativa o procedimiento similar, a través de contribuciones en especie o en efectivo, avales, publicidad o actividades similares;

   ii. Establecer, administrar, contribuir o pagar los gastos de un partido político, campaña, comité de acción política u otra organización establecida con el propósito de influir en los resultados de las elecciones;

   iii. Cualquier intento de influir en (i) la introducción de legislación, o (ii) la promulgación o modificación de cualquier legislación pendiente a través de la comunicación con cualquier miembro o empleado de la legislatura (incluidos losesfuerzos para influir en los funcionarios para que participen en actividades de cabildeo similares), o con cualquier funcionario gubernamental o empleado en relación con una decisión de firmar o vetar una legislación inscrita;

   iv. Cualquier intento de influir en (i) la introducción de legislación, o (ii) la promulgación o modificación de cualquier legislación pendiente mediante la preparación, distribución o uso de publicidad o propaganda, o instando a los miembros del público en general o cualquier segmento de la misma a contribuirpara o participar en cualquier manifestación masiva, marcha, movilización de recaudación de fondos, campaña de cabildeo o redacción de cartas o campañas telefónicas;

   v. Actividades de enlace legislativo, incluida la asistencia a sesiones legislativas o audiencias de comités, la recopilación de información sobre la legislación y el análisis del efecto de la legislación, cuando dichas actividades se llevan a cabo enapoyo o al conocimiento de la preparación para un esfuerzo por participar en actividades inadmisibles; o

   vi. Intentos de influenciar de manera incorrecta, directa o indirectamente, a un empleado o funcionario del Poder Ejecutivo del Gobierno Federal para consideraro actuar en relación con un asunto regulatorio o de contrato.

      1. Las siguientes actividades están exentas de las restricciones anteriores sobre lapermisibilidad de los costos de cabildeo:

      2. Proporcionar una presentación técnica y objetiva de información sobre un tema directamente relacionado con la ejecución del Acuerdo a través de escuchar testimonios, declaraciones o cartas a una legislatura, subdivisión, miembro o miembro del personal con conocimiento de causa, en respuesta a una solicitud documentada (incluyendo un aviso de registro del Congreso solicitando testimonios o declaraciones para el registro en una audiencia programada regularmente realizada por el miembro receptor, cuerpo legislativo o subdivisión, o un miembro del personal que tenga conocimiento de ello; siempre que dicha información se pueda obtener fácilmente y se pueda poner fácilmente en forma de entrega; y además, siempre que los costosen virtud de esta sección para el transporte, el alojamiento o las comidas sean inadmisibles, a menos que se incurra con el propósito de ofrecer testimonio enuna audiencia legislativa programada regularmente de conformidad con una solicitud por escrito hecha por el Presidente

o Miembro Minoritario de Clasificación del Comité o Subcomité que lleva a cabo dicha audiencia.

3. Cualquier cabildeo no permitido por el artículo 3 de esta subsección para influir en la legislación estatal o local con el fin de reducir directamente el costo del Acuerdo, o para evitar el deterioro material de la autoridad del Sub-concesionario para ejecutar el contrato.
4. Cualquier actividad autorizada específicamente por los estatutos de USG a realizarse con fondos del Acuerdo.

m. Pérdidas en la disposición de plantas, equipos u otros activos de capital. Pérdidas de cualquier naturaleza que surjan de la venta o el intercambio de plantas, equipos u otros activos de capital, incluida la venta o el intercambio de inversiones a corto o largo plazo.

n. Pérdidas en otros contratos. Un exceso de los costos sobre los ingresos en virtud de cualquier otro contrato (incluida la porción aportada por el Subgrupo en virtud de loscontratos de costos compartidos).

o. Costos de organización. Gastos relacionados con la planificación o ejecución de la organización o reorganización en la estructura corporativa de una empresa, incluidas las fusiones y adquisiciones, o la obtención de capital. Dichos gastos incluyen, entre otros, honorarios de incorporación y costo de abogados, contadores, corredores, promotores y organizadores, consultores de gestión y asesores, sean o no empleados del Sub- concesionario.

p. Retainer Fees. Retainer fees not supported by evidence that specific bona fide services were furnished. Cuotas de Retenedor. Las tarifas de los retenedores no están respaldadas por la evidencia de que se proporcionaron servicios específicos de buena fe.

q. Impuestos.
   i. Impuestos sobre la renta y el exceso de ganancias pagados por el Sub-concesionario a cualquier organismo gubernamental soberano
   ii. Partners no financiará otros impuestos, aranceles, gravámenes o imposiciones identificables según las leyes del país anfitrión colocadas contra un Sub- concesionario (o cualquiera de sus empleados). Sin embargo, los impuestos delIVA están permitidos en el caso de que el Sub-concesionario no esté exento deimpuestos.

r. Gastos de viaje. Tarifa aérea de primera clase cuando el servicio de menos de la primeraclase está disponible y puede satisfacer las necesidades del proyecto, como se detalla enel Acuerdo.

[FIN DE LA PROVISIÓN]

12. CONTABILIDAD Y REGISTROS

Aplicable a todos

El destinatario debe mantener registros financieros, documentos de respaldo, registros estadísticos y todos los demás registros, para respaldar el desempeño y los cargos de este acuerdo. Dichos registros deben cumplir con los principios de contabilidad generalmente aceptados en los EE. UU., los del país cooperante o el Consejo de Normas Internacionales deContabilidad (una subsidiaria de la Fundación de Normas Internacionales de Información Financiera). Los registros contables y la documentación de respaldo deben ser, como mínimo, adecuados para mostrar todos los costos incurridos en virtud de este adjudicación; recepción y uso de los bienes y servicios adquiridos en virtud de esta adjudicación; los costosdel programa suministrado por otras fuentes; y el progreso general del programa. A menos que PARTNERS notifique lo contrario, los registros del destinatario

y los registros de sub- receptor que pertenecen a esta adjudicación deben conservarse por un período de tres años a partir de la fecha de presentación del informe final de gastos.

[FIN DE LA PROVISIÓN]

13. RETENCIÓN Y REQUISITOS DE ACCESO A LOS REGISTROS

Aplicable a todos

Los funcionarios autorizados por POA, el donante, o cualquiera de sus representantesdebidamente autorizados tienen el derecho de acceso oportuno y sin restricciones a cualquierlibro, documento, documento u otro registro que sea pertinente al premio, para realizar auditorías, exámenes, extractos, transcripciones, y copias de dichos documentos. Este derecho también incluye el acceso oportuno y razonable al personal con el propósito de realizar entrevistas y debatir sobre dichos documentos. Los derechos de acceso en este párrafo no se limitan al período de retención requerido, sino que deben durar mientras se conserven los registros.

[FIN DE LA PROVISIÓN]

14. SUB-CONCESIONES Y CONTRATOS

Aplicable a todos

Sub-adjudicatarios y contratistas no tienen ninguna relación con el Donante en virtud de los términos de este acuerdo.

Sin perjuicio de cualquier otro término de esta adjudicación, los subcontratados y contratistasno tienen ningún derecho a presentar reclamos directamente al Donante y el Donante no asume ninguna responsabilidad por cualquier reclamo de terceros contra el destinatario.

[FIN DE LA PROVISIÓN]

15. FINALIZACIÓN Y SUSPENSIÓN DEL CONTRATO

Aplicable a todos

a) El Donante o PARTNERS pueden darle fin a este acuerdo en cualquier momento, en su totalidad o en parte, se necesita previa notificación por escrito a la otra parte. El aviso de terminación debe contener la (s) razón (es) para la terminación; la fecha de vigencia y, enel caso de una terminación parcial, la parte a ser terminada. Si la terminación se basa en el incumplimiento, tenga en cuenta que esta decisión de terminación puede ser considerada en la selección para futuras adjudicaciones.

b) En caso de que se descubra que el destinatario o cualquiera de sus empleados, sub-beneficiarios o contratistas han sido declarados culpables y condenados por un delito de

narcóticos o han estado involucrados en el tráfico de drogas como se define a continuación, PARTNERS se reserva el derecho de rescindir este acuerdo, en su totalidado en parte, o tomar cualquier otra medida apropiada que incluye, sin limitación, reembolso o retiro de cualquier monto de la adjudicación. Además, el destinatario debe hacer un esfuerzo de buena fe para mantener un lugar de trabajo libre de drogas y PARTNERS se reserva el derecho de terminar o suspender este acuerdo si el receptor nolo hace materialmente.

c) Procedimientos de terminación y suspensión. Al recibir un aviso de terminación o suspensión por parte PARTNERS según lo especificado anteriormente, el destinatariodebe tomar medidas inmediatas para minimizar todos los gastos y, en caso de finalización, cancelar todas las obligaciones financiadas por este acuerdo en la mayormedida posible. El destinatario no tiene derecho a los costos incurridos después de la fecha de vigencia de la terminación, a menos que PARTNERS otorgue aprobación previa.

d) Dentro de los 30 días calendario posteriores a la fecha de vigencia de dicha terminación,el receptor debe devolver a PARTNERS todos los fondos de Donantes no utilizados de esta adjudicación a partir de la fecha de vigencia de la terminación, que no están obligados por una transacción legal no cancelable aplicable a esta adjudicación.

e) El destinatario debe, en la mayor medida posible, incluir una disposición en todos los sub-contratos, incluidos los sub-contratos y los contratos, otorgando al destinatario el derecho de rescindir el sub-artículo en caso de que PARTNERS o el Donante rescindan este laudo, incluido el requisito de devolución del párrafo D.

[FIN DE LA PROVISIÓN]

16. NORMAS DE PARTNERS PARA LA ADQUISICIÓN DE BIENESY SERVICIOS

Aplicable solo cuando el contrato / acuerdo incluye la adquisición de bienes y servicios

PARTNERS espera competencia en todas las adquisiciones de bienes y servicios en la mayormedida posible. Para transacciones valuadas en USD $10,000 o más, la Organización esperala competencia en las adquisiciones de bienes y servicios sea lo más practica posible. La Organización requiere que se utilice un proceso competitivo apropiado y que esté completamente documentado (por ejemplo, estudios de mercado para productos básicos / artículos disponibles en el mercado; tres presupuestos para valores esperados más bajos; competencia / licitación completa y abierta para valores más altos esperados, etc.). Como mínimo, para una transacción de adquisición adecuada de USD$10,000 o superior, PARTNERS requiere:

A. Especificaciones, alcance del trabajo o requisitos técnicos para los productos o serviciosque se comprarán.

B. Un criterio definido para seleccionar un bien o un proveedor de servicio (por ejemplo, precio, capacidad para entregar a tiempo, calidad de salida, rendimiento pasado cuandocorresponda, etc.).

C. Aprobación del donante para hacer la compra cuando sea necesario.

D. Solicitudes de tres (3) cotizaciones o solicitud de propuestas de un grupo de proveedores ocandidatos calificados.

   1. En ausencia de tres cotizaciones propuestas enviadas, debe preparar y enviar una nota clara y documentada para justificar que demuestre que se realizaron esfuerzos para obtener tres

presupuestos o propuestas como parte de la documentación de lacontratación.

B. Una nota que documente claramente la oferta / propuesta aprobada y el análisis que documenta la "historia de adquisición" detrás de cómo se seleccionó el proveedor preferido y cómo se utilizaron los criterios de evaluación.

Los proveedores no elegibles son todas las empresas o personas que no cumplan con los requisitos de "Exclusión y suspensión" y "Prevención del financiamiento del terrorismo" nodeben utilizarse para proporcionar productos o servicios financiados por esta adjudicación.

[FIN DE LA DISPOSICIÓN]

17. CONDUCTA DEL RECEPTOR Y DEL EMPLEADO

Aplicable a todos los sub-contratos

El destinatario debe contar con políticas y procedimientos escritos para evitar conflictos de interés personales y para evitar que sus funcionarios, empleados o agentes utilicen sus puestos para obtener beneficios personales o presenten la apariencia de un conflicto de interés personal. Un conflicto de intereses personal es una situación en la que un funcionario,empleado o agente del destinatario tiene un interés financiero, actividad personal o relación que podría perjudicar la capacidad del empleado para actuar imparcialmente cuando se desempeña bajo este acuerdo. La política escrita del destinatario debe indicar que un empleado, funcionario o agente del destinatario o cualquier miembro de la familia inmediata de un empleado no puede recibir una subvención o tener un interés financiero o de otro tipo en la entidad seleccionada para un subdelegado sin revelar el conflicto y sin seguir las políticas y procedimientos escritos del destinatario para mitigar el conflicto. Además, la política escrita debe establecer que los funcionarios, empleados y agentes del destinatario no deben solicitar ni aceptar propinas, favores ni nada de valor monetario por parte de los sub-beneficiarios o sub-receptores potenciales. Cualquier trato comercial externo de los empleados del destinatario debe ser legal y no entrar en conflicto de ninguna manera con este acuerdo. Las relaciones comerciales externas incluyen, entre otras, inversiones, préstamos, empleo o propiedad comercial por parte de los empleados del beneficiario, que no seantrabajos que se realizarán bajo esta adjudicación.

En el caso de que la conducta de cualquier empleado receptor no esté de acuerdo con esta disposición o esta adjudicación, el receptor debe coordinar con Partners para resolver la situación con respecto a dicho empleado, incluido, si es necesario, la terminación del empleado.

[FIN DE LA DISPOSICIÓN]

18. EXCLUSIÓN Y SUSPENSIÓN

Aplicable a todos

El destinatario no debe realizar transacciones o realizar negocios en virtud de este acuerdo con ninguna persona o entidad que tenga una exclusión activa en el Sistema de Gestión de Adjudicaciones (SAM) (www.sam.gov). La lista contiene las personas y entidades que el gobierno

de EE. UU. ha suspendido o inhabilitado debido a una conducta indebida o una determinación del gobierno de los EE. UU. de que no se puede confiar en la persona o entidad para salvaguardar los fondos. Si el destinatario tiene alguna pregunta sobre las listasen el sistema, estas se deben dirigir a PARTNERS.

PARTNERS pueden rechazar costos, anular o rescindir la transacción, excluir o suspender al destinatario, o tomar otros remedios según corresponda, si el destinatario infringe esta disposición. Aunque esto no es automático, PARTNERS pueden rescindir este premio si un destinatario o cualquiera de sus directores cumplen con alguna de las condiciones enumeradas a continuación. Si surge una situación así, PARTNERS considerarán la totalidad de las circunstancias, incluida la respuesta del receptor a la situación y cualquier información adicional presentada, cuando PARTNERS determinen su respuesta.

El destinatario debe notificar a PARTNERS inmediatamente después de enterarse de que él o cualquiera de sus principales, en cualquier momento antes o durante la vigencia de este acuerdo:

a. Actualmente están excluidos o descalificados de hacer negocios con los EE. UU.;
b. Haber sido declarado culpable o encontrado responsable dentro de los últimos tres años por cometer cualquier ofensa que indique falta de integridad comercial o honestidad comercial, como fraude, malversación, robo, falsificación, soborno o mentira;
c. Actualmente están acusados o cargados penal o civilmente por alguna entidad gubernamental por cualquiera de los delitos; o
d. Han tenido uno o más acuerdos rescindidos por causa o por incumplimiento dentro de lostres años anteriores.

Principales Significa-

A. Un oficial, director, propietario, socio, investigador principal u otra persona dentro de unparticipante con responsabilidades administrativas o de supervisión relacionadas con unatransacción cubierta; o
B. Un destinatario u otra persona, sea o no empleado por el participante o pagado con fondos de donantes, quien-
    a. Está en posición de manejar fondos;
    b. Está en posición de influir o controlar el uso de esos fondos; o
    c. Ocupa una posición técnica o profesional capaz de influenciando sustancialmente eldesarrollo o el resultado de una actividad requerida para realizar la transacción cubierta.

[FIN DE LA DISPOSICIÓN]

19. PREVENCIÓN DEL FINANCIAMIENTO DEL TERRORISMO

Aplicable a todos

El destinatario no debe involucrarse en transacciones con, o proporcionar recursos o apoyo a individuos y organizaciones asociadas con el terrorismo, incluidas aquellas personas o entidades que aparecen en la lista de personas especialmente designadas y personas bloqueadas mantenidas por la Tesorería de EE. UU. (En línea en: http://www.treasury.gov/resource-center/sanctions/SDN-

List/Pages/default.aspx) o la lista de designación de seguridad de las Naciones Unidas (en línea en: http://www.un.org/sc/committees/1267/aq_sanctions_list.shtml).

[FIN DE LA DISPOSICIÓN]

20. TRAFICO/TRATA DE PERSONAS

Aplicable a todos a menos que se defina de otra manera a continuación

El destinatario, sub-adjudicatario o contratista, de cualquier nivel, o sus empleados, reclutadores de mano de obra, corredores de bolsa u otros agentes, no deben participar en:

a. Trata de personas (según se define en el Protocolo para prevenir, reprimir y sancionar la trata de personas, especialmente mujeres y niños, complementando la Convención de las Naciones Unidas contra la Delincuencia Organizada Transnacional) durante el período deeste contrato.
b. Adquisición de un acto sexual comercial durante el período de este contrato;
c. Uso de trabajo forzado en el desempeño de este contrato;
d. Actos que apoyan o promueven directamente la trata de personas, incluidos los siguientesactos:
    i. Destruir, ocultar, confiscar o de otra manera negarle a un empleado el acceso a la identidad o documentos de inmigración de ese empleado;
    ii. No proporcionar transporte de retorno o pagar los costos de transporte de regreso a un empleado de un país fuera de los Estados Unidos al país desde el cual elempleado fue contratado al finalizar el empleo si así lo solicita el empleado, a menos que:
        1. el empleado es víctima de la trata de personas quien busca servicios para víctimas o reparación legal en el país de empleo o un testigo en una acción deaplicación de la trata de personas;
e. Solicitar a una persona con el propósito de empleo u ofrecer empleo, por medio de pretensiones, representaciones o promesas materialmente falsas o fraudulentas con respecto a ese empleo;
f. Cobro de tarifas de contratación de empleados; o
g. Proporcionar u organizar viviendas que no cumplan con las normas de seguridad yvivienda del país de acogida.

En el caso de una violación de esta disposición, PARTNERS está autorizado a rescindir este laudo, sin penalización, y también está autorizado para llevar a cabo cualquier otra medida correctiva según sea necesario.

Definiciones

- Para efectos de este término de adjudicación:
    - "Empleado" significa:
        - Una persona empleada por usted o un sub-receptor que participa en eldesempeño del proyecto o programa bajo este premio; o
        - Otra persona comprometida en el desempeño del proyecto o programa bajo esta adjudicación y no compensada por usted, incluyendo, pero no limitado a,un voluntario o individuo cuyos servicios son aportados

por un tercero como una contribución en especie para compartir costos o cumplir los requisitos.

- "Trabajo forzoso" significa mano de obra obtenida por cualquiera de los siguientes métodos: reclutamiento, refugio, transporte, provisión u obtención de una persona para trabajo o servicios, mediante el uso de la fuerza, fraude o coacción con el propósito de someterse involuntariamente servidumbre, peonaje, servidumbre por deudas o esclavitud.

[FIN DE LA DISPOSICIÓN]

21. ACUERDOS CON ORGANIZACIONES BASADAS EN LA FE Y EN LA COMUNIDAD

Aplicable a todos los sub-adjudicatarios

En consecuencia, al proporcionar servicios respaldados en su totalidad o parcialmente por este acuerdo o en sus actividades de divulgación relacionadas con dichos servicios, la entidadno puede discriminar a los beneficiarios actuales o futuros del programa por motivos de religión, creencia religiosa, rehusarse a una creencia religiosa, o a asistir o participar en una práctica religiosa. Si la entidad otorga subvenciones en virtud de este acuerdo, las organizaciones religiosas deber ser elegidas para participar de la misma manera que otras organizaciones, y no deben ser discriminadas por su carácter religioso o afiliación.

La entidad debe asegurarse de que su personal tenga en cuenta en su trabajo las consideraciones reflejadas en la Ley Internacional de Libertad Religiosa sobre las condiciones específicas del país, el derecho a la libertad de religión, los métodos de persecución religiosa practicados en el extranjero y las distinciones aplicables dentro de unpaís entre la naturaleza y el tratamiento de diversas prácticas religiosas y el creyente.

[FIN DE LA DISPOSICIÓN]

22. NO DISCRIMINACIÓN

Aplicable a todos

Nadie será excluido de la participación, se le negarán los beneficios de, ni se lo discriminarápor motivos de raza, color, nacionalidad, edad, discapacidad o sexo en virtud de ningún programa o actividad financiados por este premio.

Además, PARTNERS se compromete a lograr y mantener una fuerza laboral diversa y representativa y un lugar de trabajo libre de discriminación. PARTNERS prohíbe la discriminación, incluido el acoso, en su propio lugar de trabajo por motivos de raza, color, religión, sexo (incluido el embarazo y la identidad de género), origen nacional, discapacidad, edad, estado del veterano, orientación sexual, información genética, estado civil, parental estado, afiliación política y cualquier otra conducta que no afecte negativamente el desempeño del empleado. Además, PARTNERS alienta encarecidamente a sus beneficiarios y sub-beneficiarios y proveedores (en todos los niveles), tanto en EE. UU. como en el extranjero, a desarrollar y aplicar políticas integrales de no discriminación

para sus lugares de trabajo que incluyan protección para todos sus empleados en estas bases ampliadas, el tema ala ley aplicable.

Además, PARTNERS requiere que el receptor no discrimine a ningún beneficiario en la implementación de este contrato, como, pero no limitado a, reteniendo, afectando adversamente, o negando el acceso equitativo a los beneficios provistos a través de este contrato sobre la base de cualquier factor no expresamente declarado en el mismo. Esto incluye, por ejemplo, raza, color, religión, sexo (incluida la identidad de género, orientaciónsexual y embarazo), origen nacional, discapacidad, edad, información genética, estado civil,estado parental, afiliación política o estado de veterano. Nada en esta disposición tiene la intención de limitar la capacidad del destinatario para dirigir las actividades hacia las necesidades de asistencia de ciertas poblaciones como se define en la adjudicación.

[FIN DE LA DISPOSICIÓN]

23. PROGRAMA PILOTO PARA EL MEJORAMIENTO DE LAS PROTECCIÓN DE GARANTÍAS DE LOS TRABAJADORES

Aplicable a todos

PARTNERS declara que un empleado de un concesionario no puede ser despedido, degradado o discriminado de otro modo como represalia por "denuncias de irregularidades". Además, las protecciones de denunciantes no pueden ser eximidas por ningún acuerdo, política, forma o condición de empleo.

La denuncia de irregularidades se define como hacer una divulgación "que el empleado cree razonablemente" es evidencia de cualquiera de los siguientes:

a) Mala administración bruta de los fondos;
b) Un gran desperdicio de fondos;
c) Un abuso de autoridad relacionado con un contrato o concesión;
d) Un peligro sustancial y específico para la salud o seguridad pública; o
e) Una violación de la ley, regla o regulación relacionada con un contrato o concesión

Cualquier inquietud debe dirigirse a PARTNERS o a la autoridad legal correspondiente.

[FIN DE LA DISPOSICIÓN]

24. ACUERDOS DE CONFIDENCIALIDAD O DECLARACIÓN

Aplicable a todos

La información confidencial, según se usa en esta Disposición, significa:

A. Información o datos de carácter personal sobre un individuo que, de ser divulgados, constituiría una invasión claramente injustificada de la privacidad personal.

Además de los tipos de información confidencial descritos anteriormente, la información que puede requerir una consideración especial con respecto al momento de su divulgación puede derivar de estudios o investigaciones, durante los cuales la divulgación pública de hallazgos preliminares invalidados puede crear conclusiones erróneas que pueden amenazarla salud pública o seguridad si se actúa sobre ellos.

"Acuerdo o declaración de confidencialidad interna" significa un acuerdo de confidencialidad o cualquier otra declaración escrita que el destinatario requiera que sus empleados o sub-beneficiarios firmen con respecto a la no divulgación de información deldestinatario, excepto que no incluye acuerdos de confidencialidad derivados de litigios civiles o acuerdos de confidencialidad que firman los empleados receptores o sub- beneficiarios.

El destinatario no debe exigir a sus empleados, beneficiarios secundarios o contratistas que firmen o cumplan con acuerdos de confidencialidad internos o declaraciones que prohíban ode otra manera restrinjan a los empleados, beneficiarios intermedios o contratistas informar legalmente de desperdicio, fraude o abuso relacionado con el desempeño de una adjudicación a PARTNERS.

El destinatario debe notificar a los empleados actuales y sub-beneficiarios que las prohibiciones y restricciones de cualquier acuerdo de confidencialidad interna preexistenteo, en la medida en que tales prohibiciones y restricciones sean inconsistentes con las prohibiciones de esta disposición, ya no están vigentes.

[FIN DE LA DISPOSICIÓN]

25. SALVAGUARDIA INFANTIL

Aplicable si el contrato / acuerdo puede involucrar a niños

Debido a que las actividades que se financiarán con este acuerdo pueden involucrar a niños, oel personal involucrado en la implementación del acuerdo puede entrar en contacto con ellos, estas actividades podrían aumentar el riesgo de abuso, explotación o negligencia de los niños dentro de los programas de Donantes. La organización se compromete a cumplir con los siguientes principios básicos de protección infantil:

a) Asegurar el cumplimiento con la legislación de bienestar y protección infantil del país anfitrión o normas internacionales, lo que otorgue mayor protección, y con la ley de los Estados Unidos cuando corresponda;
b) Prohibir a todo el personal involucrarse en abuso infantil, explotación o negligencia;
c) Considerar la salvaguarda de los niños en la planificación e implementación del proyecto para determinar los riesgos potenciales para los niños que están asociados conlas actividades y operaciones del proyecto;
d) Aplicar medidas para reducir el riesgo de abuso, explotación o abandono infantil, que

incluyen, entre otros, la limitación de las interacciones no supervisadas con los niños; prohibir la exposición a la pornografía; y cumplir con las leyes, regulaciones o costumbres aplicables con respecto a la fotografía, filmación u otras actividades de generación de imágenes de niños;

e) Promover procedimientos de evaluación seguros para niños para el personal, particularmente el personal cuyo trabajo los pone en contacto directo con los niños; y

f) Tener un procedimiento para garantizar que el personal y otros reconozcan el abuso, la explotación o el abandono infantil; exigiendo que el personal y otros denuncien alegaciones; investigar y manejar acusaciones; y tomar las medidas apropiadas en respuesta a tales alegatos, que incluyen, pero no se limitan a, el despido de personal.

Las siguientes definiciones se aplican a los fines de esta disposición:

A. Niño: un niño o niños se definen como personas que no han cumplido los 18 años de edad.
B. Abuso, explotación o negligencia infantil: Constituye cualquier forma de abuso físico;maltrato emocional; abuso sexual; abandono o supervisión insuficiente; tráfico o explotación comercial, transaccional, laboral u otra que resulte en un daño real o potencial a la salud, el bienestar, la supervivencia, el desarrollo o la dignidad del niño.

Incluye, pero no se limita a: cualquier acto o falta de acción que resulte en la muerte,daño físico o emocional grave a un niño, o un acto o falta de acción que presente un riesgo inminente de daño grave a un niño.

C. Abuso físico: Constituye actos o fallas de acción que resultan en lesiones (no necesariamente visibles), dolor innecesario o injustificado o sufrimiento sin causar daño, daño o riesgo de daño a la salud o bienestar de un niño o muerte. Tales actos pueden incluir, entre otros: puñetazos, golpes, patadas, mordiscos, sacudidas, lanzamientos, puñaladas, estrangulamientos o golpes (independientemente del objetoutilizado) o quemaduras. Estos actos se consideran abuso independientemente de si fueron destinados a lastimar al niño.
D. Abuso sexual: Constituye acariciar los genitales de un niño, la penetración, el incesto,la violación, la sodomía, la exposición indecente y la explotación a través de la prostitución o la producción de materiales pornográficos.
E. Abuso emocional o maltrato: Constituye un daño a la capacidad psicológica o estabilidad emocional del niño causada por actos, amenazas de actos o tácticas coercitivas. El abuso emocional puede incluir, entre otros, humillación, control, aislamiento, retención de información o cualquier otra actividad deliberada que haga que el niño se sienta disminuido o avergonzado.
F. Explotación: Constituye el abuso de un niño cuando se trata de alguna forma de remuneración o por el cual los perpetradores se benefician de alguna manera. La explotación representa una forma de coerción y violencia que es perjudicial para lasalud física o mental del niño, su desarrollo, educación o bienestar.
G. Abandono: Constituye una falla al no satisfacer las necesidades básicas de un niño dentro de las actividades financiadas, que son responsables del cuidado de un niño enausencia del padre o tutor del niño.

[FIN DE LA DISPOSICIÓN]

26. PROHIBICIÓN DE ACTIVIDADES RELACIONADAS CON EL ABORTO

Aplicable a todos

El Receptor acepta que ninguno de los fondos provistos por este acuerdo se utilizará paraemitir fondos de la subvención para cabildear a favor o en contra del aborto. El receptor acepta que

ninguno de los fondos proporcionados por este premio se usará para pagar el aborto como método de planificación familiar o para motivar o forzar a cualquier persona apracticar abortos.

[FIN DE LA DISPOSICIÓN]

27. **PROHIBICIÓN DE ASISTENCIA A LOS TRAFICANTES DE DROGAS**

Aplicable a todos

PARTNERS se reserva el derecho de suspender la asistencia o tomar otras medidas apropiadas con respecto a cualquier participante que se determine que ha sido condenado porun delito de narcóticos o que haya estado involucrado en el tráfico de drogas.

[FIN DE LA DISPOSICIÓN]

28. **PROHIBICIÓN DEL USO DE FONDOS ANTI-TRÁFICO PARA PROMOVER, APOYAR O ABOGAR LA LEGALIZACIÓN O PRÁCTICA DE PROSTITUCIÓN**

Aplicable a todos

"Formas severas de trata de personas" significa

a) Tráfico sexual en el que un acto sexual comercial es inducido por la fuerza, el fraude o la coacción, o en el que la persona inducida a realizar tal acto no ha alcanzado los 18 años de edad; o
b) El reclutamiento, refugio, transporte, provisión u obtención de una persona para trabajo o servicios, mediante el uso de la fuerza, fraude o coacción con el propósito de someterse ala servidumbre involuntaria, peonaje, servidumbre por deudas o esclavitud.

Ninguno de los fondos disponibles bajo este acuerdo se puede usar para promover, apoyar oabogar por la legalización o práctica de la prostitución. Sin embargo, esta prohibición no excluye la asistencia destinada a aliviar el sufrimiento o los riesgos para la salud de las víctimas mientras son víctimas de la trata o después de que se encuentren fuera de la situación que provocó el tráfico de esas víctimas.

[FIN DE LA DISPOSICIÓN]

29. **CUMPLIMIENTO DE LAS NORMAS.**

Aplicable para todos los fondos de USG

El Sub-concesionario debe cumplir con todas las leyes, reglas, procedimientos y regulaciones concernientes a las subvenciones del Gobierno de los EE. UU. Y los acuerdo Prime, según se apliquen a este Acuerdo, incluyendo pero no limitando a 2 CFR Parte 200 - Requisitos administrativos uniformes, principios de costos

y auditoría Requisitos para los Contratos/Acuerdo Federales (también conocidos como Guía Unificada sobre Subvenciones y Acuerdos); 2 CFR Parte 200 Sub-parte E – Costos principales; y aplicable a la disposición estándar de USG con la agencia federal correspondiente

[FIN DE LA DISPOSICIÓN]

30. **RECURSOS POR INCUMPLIMIENTO.**

Aplicable a todos

Si un Sub-concesionario no cumple con los estatutos, reglamentos o los términos y condiciones federales de un Contrato/Acuerdo federal (consulte las Normas Uniformes del 2 CFR 200: https://www.gpo.gov/fdsys/granule/CFR-2014-title2- vol1 / CFR-2014-title2-vol1- part200 / content-detail.html), la agencia de otorgamiento federal o entidad de paso puede imponer condiciones adicionales, como se describe en 2 CFR 200.207: https://www.ecfr.gov/cgi-bin / text-idx? node = se2.1.200_1207 & rgn = div8 Condiciones específicas. Si la agencia de adjudicación federal o la entidad de paso determina que el incumplimiento no puede remediarse mediante la imposición de condiciones adicionales, la agencia de adjudicación o la entidad de paso federal puede tomar una o más de las siguientes acciones, según corresponda en las circunstancias:

a) Retener temporalmente los pagos en efectivo a la espera de la corrección de la deficiencia por parte del Sub-concesionario o una acción de cumplimiento más severa porparte de la agencia de otorgamiento federal o entidad de paso.
b) Rechazar (es decir, denegar tanto el uso de los fondos como cualquier crédito que corresponda) para todo o parte del costo de la actividad o acción que no cumpla.
c) Suspender total o parcialmente o terminar el premio del sub-concesionario.
d) Iniciar procedimientos de suspensión o inhabilitación según lo autorizado en 2 CFRparte 180 y los reglamentos de la agencia de adjudicación federal (o, en el caso de una entidad de transferencia, recomendar que tal procedimiento sea iniciado por una agencia de adjudicación federal).
e) Retener otros acuerdos Subvencionados para el proyecto o programa.
f) Tomar otros recursos que puedan estar legalmente disponibles.

[FIN DE LA DISPOSICIÓN]

END OF ANNEX F
FIN DEL ANEXO F

"ANNEX G – OTHER MANDATORY PROVISIONS (USAID) ANEXO G – OTRAS DISPOSICIONES OBLIGATORIAS (USAID)

Las disposiciones contenidas en el Anexo G desde este subacuerdo son tomadas del Anexo C del Acuerdo de Cooperación (Cooperative Agreement) No. 7200AA21CA00003 suscrito entre POA y USAID.

Standard Provisions for Non-U.S. Nongovernmental Organizations
Mandatory Reference for ADS 303

https://www.usaid.gov/sites/default/files/documents/303mab.pdf

C.1 APPLICABILITY OF 2 CFR 200 and 2 CFR 700 (NOVEMBER 2020)

All provisions of 2 CFR 200 and 2 CFR 700 in effect on the date of this award, and all Standard Provisions attached to this agreement are applicable to the recipient and to subrecipients that meet the definition of "Non-Federal Entity" in part 2 CFR 200.1, unless a section specifically excludes a subrecipient from coverage. The recipient must assure that subrecipients have copies of all the attached standard provisions.

For any subawards made with Non-U.S. subrecipients the recipient must include the applicable "Standard Provisions for Non-US Nongovernmental Organizations." Recipients are required to ensure compliance with monitoring procedures in accordance with 2 CFR 200 and 2 CFR 700.

C.2 INELIGIBLE COUNTRIES (MAY 1986)

Unless otherwise approved by the USAID Agreement Officer, funds will only be expended for assistance to countries eligible for assistance under the Foreign Assistance Act of 1961, as amended, or under acts appropriating funds for foreign assistance.

C.3 NONDISCRIMINATION (JUNE 2012)

No U.S. citizen or legal resident shall be excluded from participation in, be denied the benefits of, or be otherwise subjected to discrimination on the basis of race, color, national origin, age, disability, or sex under any program or activity funded by this award when work under the grant is performed in the U.S. or when employees are recruited from the U.S.

Additionally, USAID is committed to achieving and maintaining a diverse and representative workforce and a workplace free of discrimination. Based on law, Executive Order, and Agency policy, USAID prohibits discrimination, including harassment, in its own workplace on the basis of race, color, religion, sex (including pregnancy and gender identity), national origin, disability, age, veteran's status, sexual orientation, genetic information, marital status, parental status, political affiliation, and any other conduct that does not adversely affect the performance of the employee.

In addition, the Agency strongly encourages its recipients and their subrecipients and vendors (at all tiers), performing both in the U.S. and overseas, to develop and enforce comprehensive nondiscrimination policies for their workplaces that include protection for all their employees on these expanded bases, subject to applicable law.

C.4 AMENDMENT OF AWARD (JUNE 2012)

This award may only be amended in writing, by formal amendment or letter, signed by the Agreement Officer (AO), and in the case of a bilateral amendment, by the AO and an authorized official of the recipient.

C.5 NOTICES (JUNE 2012)

Any notice given by USAID or the recipient is sufficient only if in writing and delivered in person, mailed or e-mailed as follows:

To the USAID Agreement Officer, at the address specified in this award; or

To the recipient, at the recipient's address shown in this award, or to such other address specified in this award.

C.6 SUBAWARDS AND CONTRACTS (DECEMBER 2022)
Subrecipients and contractors have no relationship with USAID under the terms of this award. All required USAID approvals must be directed through the recipient to USAID.
Notwithstanding any other term of this award, subrecipients and contractors have no right to submit claims directly to USAID and USAID assumes no liability for any third party claims against the recipient.

C.7 OMB APPROVAL UNDER THE PAPERWORK REDUCTION ACT (DECEMBER 2022

The Paperwork Reduction Act of 1980 (44 U.S.C. chapter 35) imposes a requirement on Federal agencies to obtain approval from the Office of Management and Budget (OMB) before collecting information from ten or more members of the public. The information collection and recordkeeping requirements contained in ADS Chapter 303 and its mandatory references have been approved under OMB approval number 0412- 0510; the current expiration date is 09/30/2025.

Standard Provision	Burden Estimate
Accounting, Audit, and Records	4 hours
Debarment, Suspension, and Other Responsibility Matters	4 hours
Travel and International Air Transportation	4 hours
Ocean Shipment of Goods	4 hours
Trafficking in Persons	8 hours
USAID Implementing Partner Notices (IPN) Portal Assistance	4 hours
Mandatory Disclosures	40 hours
Conflict of Interest	8 hours
Negotiated Indirect Cost Rates – Predetermined	40 hours
Negotiated Indirect Cost Rates – Provisional (Nonprofit)	40 hours
Indirect Costs – Negotiated Indirect Cost Rate Agreement (NICRA)	40 hours
Fly America Act Restrictions	4 hours
Voluntary Population Planning Activities – Supplemental Requirements	8 hours
Title to and Care of Property (Cooperating Country Title)	16 hours
Investment Promotion	8 hours
Reporting Host Government Taxes	8 hours
Cost Share	24 hours
Protection of Human Research Subjects	24 hours
Patent Reporting Procedures	16 hours

C.8 USAID ELIGIBILITY RULES FOR GOODS AND SERVICES (MAY 2020)

a. This provision is not applicable to commodities or services that the recipient provides with private funds as part of a cost-sharing requirement, or with Program Income generated under this award.

b. Ineligible and Restricted Commodities and Services:

1. Ineligible Commodities and Services. The recipient must not, under any circumstances, procure any of the following under this award:

i. Military equipment,
ii. Surveillance equipment,
iii. Commodities and services for support of police or other law enforcement activities,
iv. Abortion equipment and services,
v. Luxury goods and gambling equipment, or
vi. Weather modification equipment.

2. Ineligible Suppliers. Any firms or individuals that do not comply with the requirements in Standard Provision, "Debarment, Suspension and Other Responsibility Matters" and Standard Provision, "Preventing Transactions with, or the Provision of Resources or Support to, Sanctioned Groups and Individuals" must not be used to provide any commodities or services funded under this award.

3. Restricted Commodities. The recipient must obtain prior written approval of the Agreement Officer (AO) or comply with required procedures under an applicable waiver, as provided by the AO when procuring any of the following commodities:

i. Agricultural commodities,
ii. Motor vehicles,
iii. Pharmaceuticals,
iv. Pesticides,
v. Used equipment,
vi. U.S. Government-owned excess property, or
vii. Fertilizer.

c. Source and Nationality:

Except as may be specifically approved in advance by the AO, all commodities and services that will be reimbursed by USAID under this award must be from the authorized geographic code specified in this award and must meet the source and nationality requirements set forth in 22 CFR 228. If the geographic code is not specified, the authorized geographic code is 937. When the total value of procurement for commodities and services during the life of this award is valued at $250,000 or less, the authorized geographic code for procurement of all goods and services to be reimbursed under this award is code 935. For a current list of countries within each geographic code, see: http://www.usaid.gov/ads/policy/300/310.

d. Guidance on the eligibility of specific commodities and services may be obtained from the AO. If USAID determines that the recipient has procured any commodities or services under this award contrary to the requirements of this provision, and has received payment for such purposes, the AO may require the recipient to refund the entire amount of the purchase.

e. This provision must be included in all subawards and contracts which include procurement of commodities or services.

C.9 DEBARMENT, SUSPENSION, AND OTHER RESPONSIBILITY MATTERS (JUNE 2012)

The recipient agrees to notify the Agreement Officer (AO) immediately upon learning that it or any of its principals:

Are presently excluded or disqualified from covered transactions by any Federal department or agency;
Have been convicted within the preceding three-year period preceding this proposal; been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, receiving stolen property, making false claims, or obstruction of justice; commission of any other offense indicating a lack of business integrity or business honesty that seriously and directly affects your present responsibility;
Are presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State, or local) with commission of any of the offenses enumerated in paragraph a.2; and
Have had one or more public transactions (Federal, State, or local) terminated for cause or default within the preceding three years.

The recipient agrees that, unless authorized by the AO, it will not knowingly enter into any subawards or contracts under this award with a person or entity that has an active exclusion on the System for Award Management (SAM) (www.sam.gov). The recipient further agrees to include the following provision in any subawards or contracts entered into under this award:

DEBARMENT, SUSPENSION, INELIGIBILITY, AND VOLUNTARY EXCLUSION (JUNE 2012)

The recipient/contractor certifies that neither it nor its principals is presently excluded or disqualified from participation in this transaction by any Federal department or agency.

The policies and procedures applicable to debarment, suspension, and ineligibility under USAID-financed transactions are set forth in Subpart C of 2 CFR Section 180, as supplemented by 2 CFR 780.

C.10 DRUG-FREE WORKPLACE (JUNE 2012)

The recipient must comply with drug-free workplace requirements in subpart B (or subpart C, if the recipient is an individual) of 2 CFR 782, which adopts the Government-wide implementation (2 CFR part 182) of sec. 5152–5158 of the Drug-Free Workplace Act of 1988 (Pub. L. 100–690, Title V, Subtitle D; 41 U.S.C. 701–707).

C.11 EQUAL PARTICIPATION BY FAITH-BASED ORGANIZATIONS (JUNE 2016)

a. Faith-Based Organizations Encouraged

Faith-based organizations are eligible, on the same basis as any other organization, to participate in any USAID program for which they are otherwise eligible. Neither USAID nor entities that make and administer subawards of USAID funds shall discriminate for or against an organization on the basis of the organization's religious character or affiliation. Additionally, religious organizations shall not be disqualified from participating in USAID programs because such organizations are motivated or influenced by religious faith to provide social services, or because of their religious character or affiliation.

Decisions about awards of USAID financial assistance must be free from political interference or even the appearance of such interference. Awards must be made on the basis of merit, not the basis of the religious affiliation of an applicant, or lack thereof. A faith-based organization may continue to carry out its mission, including the definition, development, practice, and expression of its religious beliefs, within the limits contained in this provision. For more information, see the USAID Faith- Based and Community Initiatives Web site and 22 CFR 205.1.

b. Explicitly Religious Activities Prohibited.

Explicitly religious activities include activities that involve overt religious content such as worship, religious instruction, prayer, or proselytization.

The recipient must not engage in explicitly religious activities as part of the programs or services directly funded with financial assistance from USAID. If the recipient engages in explicitly religious activities, the activities must be offered separately, in time or location, from any programs or services directly funded by this award, and participation must be voluntary for beneficiaries of the programs or services funded with USAID assistance.
These restrictions apply equally to religious and secular organizations. All organizations that participate in USAID programs, as recipients or subawardees, including religious ones, must carry out eligible activities in accordance with all program requirements and other applicable requirements governing USAID- funded activities.
Notwithstanding the restrictions of b.1 and b.2, a religious organization that participates in USAID-funded programs or services:

May retain its independence and may continue to carry out its mission, including the definition, development, practice, and expression of its religious beliefs, provided that it does not use direct financial assistance from USAID to support or engage in any explicitly religious activities or in any other manner prohibited by law;
May use space in its facilities, without removing religious art, icons, scriptures, or other religious symbols; and
May retain its authority over its internal governance, and may retain religious terms in its organization's name, select its board members on a religious basis, and include religious references in its organization's mission statements and other governing documents.
Implementation in accordance with the Establishment Clause: Nothing in this provision shall be construed as authorizing the use of USAID funds for activities that are not permitted by Establishment Clause jurisprudence or otherwise by law.
Discrimination Based on Religion Prohibited: The recipient must not, in providing services, discriminate against a program beneficiary or potential program beneficiary on the basis of religion or religious belief, refusal to hold a religious belief, or a refusal to attend or participate in a religious practice.
A religious organization's exemption from the Federal prohibition on employment discrimination on the basis of religion, set forth in Sec. 702(a) of the Civil Rights Act of 1964, 42 U.S.C. 2000e–1 is not forfeited when the organization receives financial assistance from USAID.
The Secretary of State may waive the requirements of this section in whole or in part, on a case-by-case basis, where the Secretary determines that such waiver is necessary to further the national security or foreign policy interests of the United States.
This provision must be included in all subawards under this award.

PREVENTING TRANSACTIONS WITH, OR THE PROVISION OF RESOURCES OR SUPPORT TO, SANCTIONED GROUPS AND INDIVIDUALS (MAY 2020)

In carrying out activities under this award, except as authorized by a license issued by the Office of Foreign Assets Control (OFAC) of the U.S. Department of Treasury, the recipient will not engage in transactions with, or provide resources or support to, any individual or entity that is subject to sanctions administered by OFAC or the United Nations (UN), including any individual or entity that is included on the Specially Designated Nationals and Blocked Persons List maintained by OFAC (https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx) or on the UN Security Council consolidated list (https://www.un.org/securitycouncil/content/un-sc-consolidated-list).

b. Any violation of the above will be grounds for unilateral termination of the agreement by USAID.
c. The Recipient must include this provision in all subawards and contracts issued under this award.

MARKING AND PUBLIC COMMUNICATIONS UNDER USAID-FUNDED ASSISTANCE (DECEMBER 2014)

The USAID Identity is the official marking for USAID, comprised of the USAID logo and brandmark with the tagline "from the American people," unless amended by USAID to include additional or substitute use of a logo or seal and tagline representing a presidential initiative or other high level interagency initiative. The USAID Identity (including any required presidential initiative or related identity) is on the USAID Web site at

www.usaid.gov/branding. Recipients must use the USAID Identity, of a size and prominence equivalent to or greater than any other identity or logo displayed, to mark the following:

Programs, projects, activities, public communications, and commodities partially or fully funded by USAID;

Program, project, or activity sites funded by USAID, including visible infrastructure projects or other physical sites;

Technical assistance, studies, reports, papers, publications, audio-visual productions, public service announcements, Web sites/Internet activities, promotional, informational, media, or communications products funded by USAID;

Commodities, equipment, supplies, and other materials funded by USAID, including commodities or equipment provided under humanitarian assistance or disaster relief programs; and

Events financed by USAID, such as training courses, conferences, seminars, exhibitions, fairs, workshops, press conferences and other public activities. If the USAID Identity cannot be displayed, the recipient is encouraged to otherwise acknowledge USAID and the support of the American people.

The recipient must implement the requirements of this provision following the approved Marking Plan in the award.

The AO may require a preproduction review of program materials and "public communications" (documents and messages intended for external distribution, including but not limited to correspondence; publications; studies; reports; audio visual productions; applications; forms; press; and promotional materials) used in connection with USAID-funded programs, projects or activities, for compliance with an approved Marking Plan.

The recipient is encouraged to give public notice of the receipt of this award and announce progress and accomplishments. The recipient must provide copies of notices or announcements to the Agreement Officer's Representative (AOR) and to USAID's Office of Legislative and Public Affairs in advance of release, as practicable. Press releases or other public notices must include a statement substantially as follows:

"The U.S. Agency for International Development administers the U.S. foreign assistance program providing economic and humanitarian assistance in more than 80 countries worldwide."

Any "public communication" in which the content has not been approved by USAID must contain the following disclaimer:

"This study/report/audio/visual/other information/media product (specify) is made possible by the generous support of the American people through the United States Agency for International Development (USAID). The contents are the responsibility of [insert recipient name] and do not necessarily reflect the views of USAID or the United States Government."

The recipient must provide the USAID AOR with two copies of all program and communications materials produced under this award.
The recipient may request an exception from USAID marking requirements when USAID marking requirements would:

Compromise the intrinsic independence or neutrality of a program or materials where independence or neutrality is an inherent aspect of the program and materials;

Diminish the credibility of audits, reports, analyses, studies, or policy recommendations whose data or findings must be seen as independent;

Undercut host-country government "ownership" of constitutions, laws, regulations, policies, studies, assessments, reports, publications, surveys or audits, public service announcements, or other communications;

4. Impair the functionality of an item;

5. Incur substantial costs or be impractical;

6. Offend local cultural or social norms, or be considered inappropriate; or

7. Conflict with international law.

The recipient may submit a waiver request of the marking requirements of this provision or the Marking Plan, through the AOR, when USAID-required marking would pose compelling political, safety, or security concerns, or have an adverse impact in the cooperating country.

Approved waivers "flow down" to subawards and contracts unless specified otherwise. The waiver may also include the removal of USAID markings already affixed, if circumstances warrant.

USAID determinations regarding waiver requests are subject to appeal by the recipient, by submitting a written request to reconsider the determination to the cognizant Assistant Administrator.

The recipient must include the following marking provision in any subawards entered into under this award:

"As a condition of receipt of this subaward, marking with the USAID Identity of a size and prominence equivalent to or greater than the recipient's, subrecipient's, other donor's, or third party's is required. In the event the recipient chooses not to require marking with its own identity or logo by the subrecipient, USAID may, at its discretion, require marking by the subrecipient with the USAID Identity."

C.14 REGULATIONS GOVERNING EMPLOYEES (DECEMBER 2022)

While working overseas, the recipient's employees who are not citizens of the cooperating country must maintain private status and may not rely on local U.S. Government offices or facilities for support while under this award.

The sale of personal property or automobiles by the recipient's non-cooperating country citizen employees and their dependents in the foreign country to which they are assigned is subject to the same limitations and prohibitions that apply to direct-hire USAID personnel employed by the Mission, including the rules contained in 22 CFR 136, except as this may conflict with host government regulations.

Other than work to be performed under this award for which an employee is assigned by the recipient, employees of the recipient who are not citizens of the cooperating country must not engage directly or indirectly, either in the individual's own name or in the name or through an agency of another person, in any business, profession, or occupation in the foreign countries to which the individual is assigned. In addition, the individual must not make loans or investments to or in any business, profession, or occupation in the foreign countries to which the individual is assigned.

The recipient's employees who are not citizens of the cooperating country, while in a foreign country, are expected to show respect for its conventions, customs, and institutions, to abide by its applicable laws and regulations, and not to interfere in its internal political affairs.

In accordance with the internal control requirements in 2 CFR 200.303, which require the recipient to establish standards of conduct for its employees, the recipient must ensure that all its employees adhere to these standards of conduct in a manner consistent with the standards for United Nations (UN) employees in Section 3 of the UN Secretary-General's Bulletin - Special Measures for Protection from Sexual Exploitation and Sexual Abuse (ST/SGB/2003/13).

If the recipient determines that the conduct of any recipient employee is not in accordance with the preceding paragraphs, the recipient's Chief of Party must consult with the Agreement Officer, the Agreement Officer's Representative, the USAID Mission Director, and the employee involved, and must recommend to the recipient a course of action with regard to such employee.

The parties recognize the rights of the U.S. Ambassador to direct the removal from a country of any U.S. citizen, or the discharge from this award of any individual (U.S., third-country, or cooperating-country national) when, in the discretion of the Ambassador, the interests of the United States so require.

If it is determined, under paragraph (f) or (g) above, that the services of such employee should be terminated, the recipient must use its best efforts to cause the return of such employee to the United States or third-country point of origin, as appropriate, and replace the employee with an acceptable substitute at no cost to USAID.
Any matters relating to subrecipients, including the employees of subrecipients, must be coordinated through the recipient's Chief of Party.

CONVERSION OF UNITED STATES DOLLARS TO LOCAL CURRENCY (NOVEMBER 1985)

Upon arrival in the cooperating country, and from time to time as appropriate, the recipient's chief of party must consult with the Mission Director who must provide, in writing, the procedure the recipient and its employees must follow in the conversion of United States dollars to local currency. This may include, but is not limited to, the conversion of currency through the cognizant United States Disbursing Officer or Mission Controller, as appropriate.

C.16 USE OF POUCH FACILITIES (AUGUST 1992)

Use of diplomatic pouch is controlled by the Department of State. The Department of State has authorized the use of pouch facilities for USAID recipients and their employees as a general policy, as detailed in items 1. through 6. below. However, the final decision regarding use of pouch facilities rest with the Embassy or USAID Mission. In consideration of the use of pouch facilities, the recipient and its employees agree to indemnify and hold harmless, the Department of State and USAID for loss or damage occurring in pouch transmission:

Recipients and their employees are authorized use of the pouch for transmission and receipt of up to a maximum of .9 kgs per shipment of correspondence and documents needed in the administration of assistance programs.

U.S. citizen employees are authorized use of the pouch for personal mail up to a maximum of .45 kgs per shipment (but see a.3 below).

Merchandise, parcels, magazines, or newspapers are not considered to be personal mail for purposes of this standard provision and are not authorized to be sent or received by pouch.

Official and personal mail pursuant to a.1 and a.2 above sent by pouch should be addressed as follows:

Not Applicable -
Use of Pouch Facility by Implementing Partners is not allowed by USAID/Guatemala

Mail sent via the diplomatic pouch may not be in violation of U.S. Postal laws and may not contain material ineligible for pouch transmission.

Recipient personnel are NOT authorized use of military postal facilities (APO/FPO). This is an Adjutant General's decision based on existing laws and regulations governing military postal facilities and is being enforced worldwide.

The recipient is responsible for advising its employees of this authorization, these guidelines, and limitations on use of pouch facilities.

Specific additional guidance on grantee use of pouch facilities in accordance with this standard provision is available from the Post Communication Center at the Embassy or USAID Mission.

C.17 TRAVEL AND INTERNATIONAL AIR TRANSPORTATION (DECEMBER 2014)

a. TRAVEL COSTS

All travel costs must comply with the applicable cost principles and must be consistent with those normally allowed in like circumstances in the recipient's non-USAID-funded activities. Costs incurred by employees and officers for travel, including air fare, costs of lodging, other subsistence, and incidental expenses, may be considered reasonable and allowable only to the extent such costs do not exceed reasonable charges normally allowed by the recipient in its regular operations as the result of the recipient organization's written travel policy and are within the limits established by the applicable cost principles.

In the absence of a reasonable written policy regarding international travel costs, the standard for determining the reasonableness of reimbursement for international travel costs will be the Standardized Regulations (Government Civilians, Foreign Areas), published by the U.S. Department of State, as from time to time amended. The most current Standardized Regulations on international travel costs may be obtained from the AO. In the event that the cost for air fare exceeds the customary standard commercial airfare (coach or equivalent) or the lowest commercial discount airfare, the recipient must document one of the allowable exceptions from the applicable cost principles.

b. FLY AMERICA ACT RESTRICTIONS

The recipient must use U.S. Flag Air Carriers for all international air transportation (including personal effects) funded by this award pursuant to the Fly America Act and its implementing regulations to the extent service by such carriers is available.

In the event that the recipient selects a carrier other than a U.S. Flag Air Carrier for international air transportation, in order for the costs of such international air transportation to be allowable, the recipient must document such transportation in accordance with this provision and maintain such documentation pursuant to the Standard Provision, "Accounting, Audit and Records." The documentation must use one of the following reasons or other exception under the Fly America Act:

The recipient uses a European Union (EU) flag air carrier, which is an airline operating from an EU country that has signed the US-EU "Open Skies" agreement (http://www.state.gov/e/eb/rls/othr/ata/i/ic/170684.htm).

Travel to or from one of the following countries on an airline of that country when no city pair fare is in effect for that leg (see http://apps.fas.gsa.gov/citypairs/search/):
(A) Australia on an Australian airline,
(B) Switzerland on a Swiss airline, or
(C) Japan on a Japanese airline;

Only for a particular leg of a route on which no US Flag Air Carrier provides service on that route;

For a trip of 3 hours or less, the use of a US Flag Air Carrier at least doubles the travel time;

If the US Flag Air Carrier offers direct service, use of the US Flag Air Carrier would increase the travel time by more than 24 hours; or

vi. If the US Flag Air Carrier does not offer direct service,

Use of the US Flag Air Carrier increases the number of aircraft changes by 2 or more,
(B) Use of the US Flag Air Carrier extends travel time by 6 hours or more, or
Use of the US Flag Air Carrier requires a layover at an overseas interchange of 4 hours or more.

c. DEFINITIONS

The terms used in this provision have the following meanings:

"Travel costs'' means expenses for transportation, lodging, subsistence (meals and incidentals), and related expenses incurred by employees who are on travel status on official business of the recipient for any travel outside the country in which the organization is located. "Travel costs" do not include expenses incurred by employees who are not on official business of the recipient, such as rest and recuperation (R&R) travel offered as part of an employee's benefits package that are consistent with the recipient's personnel and travel policies and procedures.

"International air transportation" means international air travel by individuals (and their personal effects) or transportation of cargo by air between a place in the United States and a place outside thereof, or between two places both of which are outside the United States.

"U.S. Flag Air Carrier" means an air carrier on the list issued by the U.S. Department of Transportation at http://ostpxweb.dot.gov/aviation/certific/certlist.htm. U.S. Flag Air Carrier service also includes service provided under a code share agreement with another air carrier when the ticket, or documentation for an electronic ticket, identifies the U.S. flag air carrier's designator code and flight number.

For this provision, the term "United States" includes the fifty states, Commonwealth of Puerto Rico, possessions of the United States, and the District of Columbia.

d. SUBAWARDS AND CONTRACTS

This provision must be included in all subawards and contracts under which this award will finance international air transportation.

C.18 OCEAN SHIPMENT OF GOODS (JUNE 2012)

Prior to contracting for ocean transportation to ship goods purchased or financed with USAID funds under this award, the recipient must contact the office below to determine the flag and class of vessel to be used for shipment:

U.S. Agency for International Development, Bureau for Management
Office of Acquisition and Assistance, Transportation Division 1300 Pennsylvania Avenue, NW
USAID Annex
Washington, DC 20523
Email: oceantransportation@usaid.gov

b. This provision must be included in all subawards and contracts.

VOLUNTARY POPULATION PLANNING ACTIVITIES – MANDATORY REQUIREMENTS (MAY 2006)

Requirements for Voluntary Sterilization Programs

Funds made available under this award must not be used to pay for the performance of involuntary sterilization as a method of family planning or to coerce or provide any financial incentive to any individual to practice sterilization.

Prohibition on Abortion-Related Activities:

No funds made available under this award will be used to finance, support, or be attributed to the following activities: (i) procurement or distribution of equipment intended to be used for the purpose of inducing abortions as a method of family planning; (ii) special fees or incentives to any person to coerce or motivate them to have abortions; (iii) payments to persons to perform abortions or to solicit persons to undergo abortions; (iv) information,

education, training, or communication programs that seek to promote abortion as a method of family planning; and (v) lobbying for or against abortion. The term "motivate," as it relates to family planning assistance, must not be construed to prohibit the provision, consistent with local law, of information or counseling about all pregnancy options.

No funds made available under this award will be used to pay for any biomedical research which relates, in whole or in part, to methods of, or the performance of, abortions or involuntary sterilizations as a means of family planning. Epidemiologic or descriptive research to assess the incidence, extent or consequences of abortions is not precluded.

C.20 TRAFFICKING IN PERSONS (APRIL 2016)

The recipient, subawardee, or contractor, at any tier, or their employees, labor recruiters, brokers or other agents, must not engage in:

Trafficking in persons (as defined in the Protocol to Prevent, Suppress, and Punish Trafficking in Persons, especially Women and Children, supplementing the UN Convention against Transnational Organized Crime) during the period of this award;

2. Procurement of a commercial sex act during the period of this award;
3. Use of forced labor in the performance of this award;
4. Acts that directly support or advance trafficking in persons, including the following acts:

Destroying, concealing, confiscating, or otherwise denying an employee access to that employee's identity or immigration documents;

Failing to provide return transportation or pay for return transportation costs to an employee from a country outside the United States to the country from which the employee was recruited upon the end of employment if requested by the employee, unless:

exempted from the requirement to provide or pay for such return transportation by USAID under this award; or
the employee is a victim of human trafficking seeking victim services or legal redress in the country of employment or a witness in a human trafficking enforcement action;

Soliciting a person for the purpose of employment, or offering employment, by means of materially false or fraudulent pretenses, representations, or promises regarding that employment;

iv. Charging employees recruitment fees; or

Providing or arranging housing that fails to meet the host country housing and safety standards.

In the event of a violation of section (a) of this provision, USAID is authorized to terminate this award, without penalty, and is also authorized to pursue any other remedial actions authorized as stated in section 1704(c) of the National Defense Authorization Act for Fiscal Year 2013 (Pub. L. 112-239, enacted January 2, 2013).

If the estimated value of services required to be performed under the award outside the United States exceeds $500,000, the recipient must submit to the Agreement Officer, the annual "Certification regarding Trafficking in Persons, Implementing Title XVII of the National Defense Authorization Act for Fiscal Year 2013" as required prior to this award, and must implement a compliance plan to prevent the activities described above in section (a) of this provision. The recipient must provide a copy of the compliance plan to the Agreement Officer upon request and must post the useful and relevant contents of the plan or related materials on its website (if one is maintained) and at the workplace.

The recipient's compliance plan must be appropriate to the size and complexity of the award and to the nature and scope of the activities, including the number of non-United States citizens expected to be employed. The plan must include, at a minimum, the following:

An awareness program to inform employees about the trafficking related prohibitions included in this provision, the activities prohibited and the action that will be taken against the employee for violations.
A reporting process for employees to report, without fear of retaliation, activity inconsistent with the policy prohibiting trafficking, including a means to make available to all employees the Global Human Trafficking Hotline at 1-844-888-FREE and its e-mail address at help@befree.org.
A recruitment and wage plan that only permits the use of recruitment companies with trained employees, prohibits charging of recruitment fees to the employee, and ensures that wages meet applicable host-country legal requirements or explains any variance.
A housing plan, if the recipient or any subawardee intends to provide or arrange housing. The housing plan is required to meet any host-country housing and safety standards.
Procedures for the recipient to prevent any agents or subawardee at any tier and at any dollar value from engaging in trafficking in persons activities described in section a of this provision. The recipient must also have procedures to monitor, detect, and terminate any agents or subawardee or subawardee employees that have engaged in such activities.

If the Recipient receives any credible information regarding a violation listed in section a.1-4 of this provision, the recipient must immediately notify the cognizant Agreement Officer and the USAID Office of the Inspector General; and must fully cooperate with any Federal agencies responsible for audits, investigations, or corrective actions relating to trafficking in persons.

The Agreement Officer may direct the Recipient to take specific steps to abate an alleged violation or enforce the requirements of a compliance plan.

For purposes of this provision, "employee" means an individual who is engaged in the performance of this award as a direct employee, consultant, or volunteer of the recipient or any subrecipient.

The recipient must include in all subawards and contracts a provision prohibiting the conduct described in section a.1-4 by the subrecipient, contractor, or any of their employees, or any agents. The recipient must also include a provision authorizing the recipient to terminate the award as described in section b of this provision.

SUBMISSIONS TO THE DEVELOPMENT EXPERIENCE CLEARINGHOUSE AND PUBLICATIONS (JUNE 2012)

a. Submissions to the Development Experience Clearinghouse (DEC).
The recipient must provide the Agreement Officer's Representative one copy of any Intellectual Work that is published, and a list of any Intellectual Work that is not published.
In addition, the recipient must submit Intellectual Work, whether published or not, to the DEC, either on-line (preferred) or by mail. The recipient must review the DEC Web site for submission instructions, including document formatting and the types of documents to submit. Submission instructions can be found at: http://dec.usaid.gov.
For purposes of submissions to the DEC, Intellectual Work includes all works that document the implementation, evaluation, and results of international development assistance activities developed or acquired under this award, which may include program and communications materials, evaluations and assessments, information products, research and technical reports, progress and performance reports required under this award (excluding administrative financial information), and other reports, articles and papers prepared by the recipient under the award, whether published or not. The term does not include the recipient's information that is incidental to award administration, such as financial, administrative, cost or pricing, or management information.
Each document submitted should contain essential bibliographic information, such as 1) descriptive title; 2) author(s) name; 3) award number; 4) sponsoring USAID office; 5) development objective; and 6) date of publication.

The recipient must not submit to the DEC any financially sensitive information or personally identifiable information, such as social security numbers, home addresses and dates of birth. Such information must be removed prior to submission. The recipient must not submit classified documents to the DEC.

In the event award funds are used to underwrite the cost of publishing, in lieu of the publisher assuming this cost as is the normal practice, any profits or royalties up to the amount of such cost must be credited to the award unless the schedule of the award has identified the profits or royalties as program income.

C.22 LIMITING CONSTRUCTION ACTIVITIES (AUGUST 2023)

a) Construction is not eligible for reimbursement under this award unless specifically identified in paragraph d) below**.**

b) Construction means —construction, alteration, or repair (including dredging and excavation) of buildings, structures, or other real property and includes, without limitation, improvements, renovation, alteration and refurbishment. The term includes, without limitation, roads, power plants, buildings, bridges, water treatment facilities, and vertical structures. The term does not include emplacement and removal of prefabricated structures and humanitarian shelters that are designed and constructed to be readily moved, erected, disassembled, stored, and reused (i.e., "relocatable buildings"), unless the emplacement and removal of the relocatable building requires site preparation work that otherwise meets the definition of construction.

c) **"**Improvements, renovation, alteration and refurbishment" means – any betterment or change to an existing property to allow its continued or more efficient use within its designed purpose (renovation), or for the use of a different purpose or function (alteration). Improvements also include improvements to or upgrading of primary mechanical, electrical, or other building systems. "Improvements, renovation, alteration, and refurbishment" does NOT include non-structural, cosmetic work, including painting, floor covering, wall coverings, window replacement that does not include changing the size of the window opening, replacement of plumbing or conduits that does not affect structural elements, and non-load bearing walls or fixtures (e.g., shelves, signs, lighting, etc.). It also does NOT include repairs used in humanitarian assistance which constitute minor fixes to physical elements of a currently serviceable structure, if those repairs do not significantly impact or change the primary mechanical, electrical, or structural elements of the real property.

d) Agreement Officers will not approve any subawards or procurements by recipients for construction activities that are not listed in paragraph e) below. USAID will reimburse allowable costs for only the construction activities listed in this provision not to exceed the amount specified in the construction line item of the award budget. The recipient must receive prior written approval from the AO to transfer funds allotted for construction activities to other cost categories, or vice versa, with the exception of increases or decreases directly associated with currency fluctuations.

e) <u>Description</u>
Construction is not eligible for reimbursement under this award.

f) The recipient must include this provision in all subawards and procurements and make vendors providing services under this award and subrecipients aware of the restrictions of this provision.

USAID IMPLEMENTING PARTNER NOTICES (IPN) PORTAL FOR ASSISTANCE (JULY 2014)

a. Definitions

"USAID Implementing Partner Notices (IPN) Portal for Assistance ("IPN Portal)" means the single point where USAID posts proposed universal bilateral amendments for USAID awards, which can be accessed electronically by registered USAID recipients. The IPN Portal is located at https://sites.google.com/site/usaidipnforassistance/. Universal amendments are those which affect all assistance awards or a designated class of awards as specified in each amendment by the IPN Portal Administrator.

"IPN Portal Administrator" means the USAID official designated by the Director, M/OAA, who has overall responsibility for managing the USAID Implementing Partner Notices Portal for Assistance.

"Universal bilateral amendment" means those amendments with revisions or new requirements or provisions that affect all awards or a designated class of awards, as specified in the Agency notification of such revisions or new requirements.

By submission of an application and execution of an award, the Applicant/Recipient acknowledges the requirement to:

Register with the IPN Portal if awarded an assistance award resulting from this solicitation, and

2. Receive universal bilateral amendments to this award and general notices via the IPN Portal.

c. Procedure to register for notifications.

Go to https://sites.google.com/site/usaidipnforassistance/ and click the "Register" button at the top of the page. Recipient representatives must use their official organization email address when subscribing, not personal email addresses.

d. Processing of IPN Portal Amendments

The Recipient may access the IPN Portal at any time to review all IPN Portal amendments; however, the system will also notify the Recipient by email when the USAID IPN Portal Administrator posts a universal bilateral amendment for Recipient's review and signature. Proposed USAID IPN Portal amendments distributed via the IPN Portal are applicable to all awards, unless otherwise noted in the proposed amendment.

Within 15 calendar days from receipt of the notification email from the IPN Portal, the Recipient must do one of the following:

i. verify applicability of the proposed amendment for their award(s) per the instructions provided with each amendment;
download the amendment and incorporate the following information on the amendment form: award number, organization name, and organization mailing address as it appears in the basic award; (c) sign the hardcopy version; and (d) send the signed amendment (by email or hardcopy) to the AO for signature. The Recipient must not incorporate any other changes to the IPN Portal amendment. Bilateral amendments provided through the IPN Portal are not effective until the both the Recipient and the AO sign the amendment;

Notify the AO in writing if the amendment requires negotiation of additional changes to terms and conditions of the award; or

3. Notify the AO that the Recipient declines to sign the amendment.

Within 30 calendar days of receipt of a signed amendment from the Recipient, the AO must provide the fully executed amendment to the Recipient or initiate discussions with the Recipient.

C.24 ENHANCEMENT OF RECIPIENT EMPLOYEE WHISTLEBLOWER PROTECTIONS (DECEMBER 2022)

The requirement to comply with and inform all employees of the " Enhancement of Contractor Employee Whistleblower Protections" is retroactively effective for all assistance awards and subawards (including subcontracts) issued beginning July 1, 2013.

The Recipient must:

1. Inform its employees working under this award in the predominant native language of the workforce that they are afforded the employee whistleblower rights and protections provided under 41 U.S.C. § 4712; and
2. Include such requirement in any subaward or contract made under this award.

41 U.S.C. § 4712 states that an employee of a grantee may not be discharged, demoted, or otherwise discriminated against as a reprisal for "whistleblowing." In addition, whistleblower protections cannot be waived by any agreement, policy, form, or condition of employment. The parties agree that this prohibition extends to cooperative agreements in addition to grants.

Whistleblowing is defined as making a disclosure "that the employee reasonably believes" is evidence of any of the following:

- Gross mismanagement of a Federal contract or grant;
- A gross waste of Federal funds;
- An abuse of authority relating to a Federal contract or grant;
- A substantial and specific danger to public health or safety; or
- A violation of law, rule, or regulation related to a Federal contract or grant (including the competition for, or negotiation of, a contract or grant).

To qualify under the statute, the employee's disclosure must be made to:

- A Member of the U.S. Congress, or a representative of a U.S. Congressional Committee;
- A cognizant U.S. Inspector General;
- The U.S. Government Accountability Office;
- A Federal employee responsible for contract or grant oversight or management at the relevant agency; A U.S. court or grand jury; or,
- A management official or other employee of the Recipient who has the responsibility to investigate, discover, or address misconduct.

SUBMISSION OF DATASETS TO THE DEVELOPMENT DATA LIBRARY (OCTOBER 2014)

a. Definitions. For the purpose of submissions to the DDL:

“Dataset” is an organized collection of structured data, including data contained in spreadsheets, whether presented in tabular or non-tabular form. For example, a Dataset may represent a single spreadsheet, an extensible mark-up language (XML) file, a geospatial data file, or an organized collection of these. This requirement does not apply to aggregated performance reporting data that the recipient submits directly to a USAID portfolio management system or to unstructured data, such as email messages, PDF files, PowerPoint presentations, word processing documents, photos and graphic images, audio files, collaboration software, and instant messages. Neither does the requirement apply to the recipient’s information that is incidental to award administration, such as financial, administrative, cost or pricing, or management information. Datasets submitted to the DDL will generally be those generated with USAID resources and created in support of Intellectual Work that is uploaded to the Development Experience Clearinghouse (DEC) (See M21. SUBMISSIONS TO THE DEVELOPMENT EXPERIENCE CLEARINGHOUSE AND PUBLICATIONS (JUNE 2012).

“Intellectual Work” includes all works that document the implementation, monitoring, evaluation, and results of international development assistance activities developed or acquired under this award, which may include program and communications materials, evaluations and assessments, information products, research and technical reports, progress and performance reports required under this award (excluding administrative financial information), and other reports, articles and papers prepared by the recipient under the award, whether published or not. The term does not include the recipient’s information that is incidental to award administration, such as financial, administrative, cost or pricing, or management information.

b. Submissions to the Development Data Library (DDL)

The recipient must submit to the Development Data Library (DDL) at www.usaid.gov/data, in a machine-readable, non-proprietary format, a copy of any Dataset created or obtained in performance of this award, including Datasets produced by a subawardee or a contractor at any tier. The submission must include supporting documentation describing the Dataset, such as code books, data dictionaries, data gathering tools, notes on data quality, and explanations of redactions.

Unless otherwise directed by the Agreement Officer (AO) or the Agreement Officer Representative (AOR), the recipient must submit the Dataset and supporting documentation to the DDL within thirty (30) calendar days after the Dataset is first used to produce an Intellectual Work or is of sufficient quality to produce an Intellectual Work. Within thirty (30) calendar days after award completion, the recipient must submit to the DDL any Datasets and supporting documentation that have not previously been submitted to the DDL, along with an index of all Datasets and Intellectual Work created or obtained under the award. The recipient must also provide to the AOR an itemized list of any and all DDL submissions.

The recipient is not required to submit the data to the DDL, when, in accordance with the terms and conditions of this award, Datasets containing results of federally funded scientific research are submitted to a publicly accessible research database. However, the recipient must submit a notice to the DDL by following the instructions at www.usaid.gov/data, with a copy to the agreement officer representative, providing details on where and how to access the data. The direct results of federally funded scientific research must be reported no later than when the data are ready to be submitted to a peer-reviewed journal for publication, or no later than five calendar days prior to the conclusion of the award, whichever occurs earlier.

The recipient must submit the Datasets following the submission instructions and acceptable formats found at www.usaid.gov/data.

The recipient must ensure that any Dataset submitted to the DDL does not contain any proprietary or personally identifiable information, such as social security numbers, home addresses, and dates of birth. Such information must be removed prior to submission.

The recipient must not submit classified data to the DDL.

PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (MAY 2017)

a. Definitions.
"Contract" has the meaning given in 2 CFR Part 200.
"Contractor" means an entity that receives a contract as defined in 2 CFR Part 200.

"Internal confidentiality agreement or statement" means a confidentiality agreement or any other written statement that the recipient requires any of its employees or subrecipients to sign regarding nondisclosure of recipient information, except that it does not include confidentiality agreements arising out of civil litigation or confidentiality agreements that recipient employees or subrecipients sign at the behest of a Federal agency.

"Subaward" has the meaning given in 2 CFR Part 200. "Subrecipient" has the meaning given in 2 CFR Part 200.

The recipient must not require its employees, subrecipients, or contractors to sign or comply with internal confidentiality agreements or statements that prohibit or otherwise restrict employees, subrecipients, or contractors from lawfully reporting waste, fraud, or abuse related to the performance of a Federal award to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (for example, the Agency Office of the Inspector General).

The recipient must notify current employees and subrecipients that prohibitions and restrictions of any preexisting internal confidentiality agreements or statements covered by this provision, to the extent that such prohibitions and restrictions are inconsistent with the prohibitions of this provision, are no longer in effect.

The prohibition in paragraph (b) of this provision does not contravene the requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015, (Pub. L. 113-235), and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions) use of funds appropriated (or otherwise made available) is prohibited, if the Government determines that the recipient is not in compliance with the requirements of this provision.

The recipient must include the substance of this provision, including this paragraph (f), in subawards and contracts under such awards.

C.27 CHILD SAFEGUARDING (JUNE 2015)

Because the activities to be funded under this award may involve children, or personnel engaged in the implementation of the award may come into contact with children, these activities could raise the risk of child abuse, exploitation, or neglect within USAID-funded programs. The organization agrees to abide by the following child safeguarding core principles:

Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;

2. Prohibit all personnel from engaging in child abuse, exploitation, or neglect;

Consider child safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations;

Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image- generating activities of children;

Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children; and

Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel.

The organization must also include in their code of conduct for all personnel implementing USAID-funded activities the child safeguarding principles in a.1 through a.6.

c. The following definitions apply for purposes of this provision:

1. Child: A child or children are defined as persons who have not attained 18 years of age.

Child abuse, exploitation, or neglect: Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: any act or failure to act which results in death, serious physical or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child.

Physical abuse: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm or risk of harm to a child's health or welfare, or death.

Such acts may include, but are not limited to: punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the child.

Sexual Abuse: Constitutes fondling a child's genitals, penetration, incest, rape, sodomy, indecent exposure, and exploitation through prostitution or the production of pornographic materials.

Emotional abuse or ill treatment: Constitutes injury to the psychological capacity or emotional stability of the child caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: humiliation, control, isolation, withholding of information, or any other deliberate activity that makes the child feel diminished or embarrassed.

Exploitation: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being.

Neglect: Constitutes failure to provide for a child's basic needs within USAID- funded activities that are responsible for the care of a child in the absence of the child's parent or guardian.

d. The recipient must insert the provisions in a and b in all subawards under this award.

C.28 MANDATORY DISCLOSURES (JUNE 2023)

Consistent with 2 CFR §200.113, applicants and recipients must disclose, in a timely manner, in writing to the USAID Office of the Inspector General, with a copy to the cognizant Agreement Officer, all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the Federal award. Subrecipients and contractors must disclose, in a timely manner, in writing to the USAID Office of the Inspector General and to the prime recipient (pass through entity) all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the Federal award.

Failure to make required disclosures can result in any of the remedies described in 2 CFR §200.339 Remedies for noncompliance, including suspension or debarment (See 2 CFR 180, 2 CFR 780 and 31 U.S.C. 3321).

The recipient must include this mandatory disclosure requirement in all subawards and contracts under this award.

C.29 NONDISCRIMINATION AGAINST BENEFICIARIES (NOVEMEMBER 2016)

a. USAID policy requires that the recipient not discriminate against any beneficiaries in implementation of this award, such as, but not limited to, by withholding, adversely impacting, or denying equitable access to the benefits provided through this award on the basis of any factor not expressly stated in the award. This includes, for example, race, color, religion, sex (including gender identity, sexual orientation, and pregnancy), national origin, disability, age, genetic information, marital status, parental status, political affiliation, or veteran's status. Nothing in this provision is intended to limit the ability of the recipient to target activities toward the assistance needs of certain populations as defined in the award.

b. The recipient must insert this provision, including this paragraph, in all subawards and contracts under this award.

C.30 CONFLICT OF INTEREST (AUGUST 2018)

A conflict of interest in the award, administration, or monitoring of subawards arises when an employee, officer, or agent, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of these parties, has a financial or other interest in, or a tangible personal benefit from, a

subrecipient considered for a subaward. The officers, employees, and agents of the recipient may neither solicit nor accept gratuities, favors, or anything of monetary value from subrecipients or parties to subawards. However, recipients may set standards for situations in which the financial interest is not substantial or the gift is an unsolicited item of nominal value.

The recipient must maintain written standards of conduct covering conflicts of interest and governing the actions of its employees engaged in the selection, award, and administration of subawards. The standards must prohibit employees from using their positions for a purpose that constitutes or presents the appearance of a conflict of interest. The standards of conduct must provide for disciplinary actions to be applied for violations of such standards by officers, employees, or agents of the recipient.

The recipient must also maintain written standards of conduct covering organizational conflicts of interest. Organizational conflicts of interest means a situation in which the recipient is unable or appears to be unable to be impartial in conducting a subaward action involving a related organization because of relationships with a parent company, affiliate, or subsidiary organization.
The recipient must have a system or systems in place to identify, address, resolve, and disclose to USAID any conflicts of interest as described in this provision that affect any subaward, regardless of the amount of funding.

The recipient must disclose any conflict of interest, including organizational conflicts of interest, and the recipient's approach for resolving the conflict of interest to the cognizant Agreement Officer for the award within ten (10) calendar days of the discovery of the conflict of interest.

Upon notice from the recipient of a potential conflict of interest and the approach for resolving it, the Agreement Officer will make a determination regarding the effectiveness of the recipient's actions to resolve the conflict of interest within thirty (30) calendar days of receipt of the recipient's notice, unless the Agreement Officer advises the recipient that a longer period is necessary.

The recipient must not request payment from USAID for costs for transactions subject to the conflict of interest pending notification of USAID's determination. The recipient's failure to disclose a conflict of interest may result in cost disallowances by USAID.

For conflicts of interest, including organizational conflicts of interest, involving contracts, the recipient must follow 2 CFR 200.318, general procurement standards.

The recipient must insert the substance of this provision, including paragraph i, in all subawards under this award, at any subaward tier.

C.31 PROHIBITION ON CERTAIN TELECOMMUNICATION AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (DECEMBER 2022)

a. In accordance with the cost principles in 2 CFR § 200.471, obligating or expending costs for covered telecommunications and video surveillance services or equipment or services as described in 2 CFR § 200.216 are unallowable. Recipients and subrecipients are prohibited from using award funds, including direct and indirect costs, cost share and program income, for such covered telecommunications and video surveillance services or equipment. This provision implements temporary waivers granted to USAID under Section 889(d)(2) that allow the recipient to use award funds for costs for covered telecommunications and video surveillance services or equipment incurred on or after October 1, 2022, through September 30, 2028, only if the recipient has determined that there is no available alternate eligible source for the covered telecommunications and video surveillance services or equipment.
b. After September 30, 2028, in accordance with 2 CFR § 200.471 costs of all covered telecommunications and video surveillance services or equipment as specified in 2 CFR § 200.216 will be unallowable.
c. The Recipient must include this provision in all subawards and contracts issued under this award.

C.32 USAID DISABILITY POLICY - ASSISTANCE (DECEMBER 2022)

a. The objectives of the USAID Disability Policy are (1) to enhance the attainment of United States foreign assistance program goals by promoting the participation and equalization of opportunities of individuals with disabilities in USAID policy, country and sector strategies, activity designs and implementation; (2) to increase awareness of issues of people with disabilities both within USAID programs and in host countries; (3) to engage other U.S. Government agencies, host country counterparts, governments, implementing organizations and other donors in fostering a climate of nondiscrimination against people with disabilities; and (4) to support international advocacy for people with disabilities.

b. USAID therefore requires that the recipient not discriminate against people with disabilities in the implementation of USAID funded programs and that it make every effort to comply with the objectives of the USAID Disability Policy in performing the program under this grant or cooperative agreement. To that end and to the extent it can accomplish this goal within the scope of the program objectives, the recipient should demonstrate a comprehensive and consistent approach for including men, women, and children with disabilities.

C.33 AWARD TERM AND CONDITION FOR RECIPIENT INTEGRITY AND PERFORMANCE MATTERS (DECEMBER 2022)

A. Reporting of Matters Related to Recipient Integrity and Performance

1. General Reporting Requirement If the total value of the recipient's currently active grants, cooperative agreements, and procurement contracts from all Federal awarding agencies exceeds $10,000,000 for any period of time during the period of performance of this Federal award, then the recipient during that period of time must maintain the currency of information reported to the System for Award Management (SAM) that is made available in the designated integrity and performance system (currently the Federal Awardee Performance and Integrity Information System (FAPIIS)) about civil, criminal, or administrative proceedings described in paragraph 2 of this award term and condition. This is a statutory requirement under section 872 of Public Law 110-417, as amended (41 U.S.C. 2313). As required by section 3010 of Public Law 111-212, all information posted in the designated integrity and performance system on or after April 15, 2011, except past performance reviews required for Federal procurement contracts, will be publicly available.

2. Proceedings About Which the Recipient Must Report Submit the information required about each proceeding that:

a. Is in connection with the award or performance of a grant, cooperative agreement, or procurement contract from the Federal Government;

b. Reached its final disposition during the most recent five-year period; and

c. Is one of the following:
(1) A criminal proceeding that resulted in a conviction, as defined in paragraph 5 of this award term and condition;

(2) A civil proceeding that resulted in a finding of fault and liability and payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more;

(3) An administrative proceeding, as defined in paragraph 5. of this award term and condition, that resulted in a finding of fault and liability and the recipient's payment of either a monetary fine or penalty of $5,000 or more or reimbursement, restitution, or damages in excess of $100,000; or

(4) Any other criminal, civil, or administrative proceeding if:
(i) It could have led to an outcome described in paragraph 2.c.(1), (2), or (3) of this award term and condition;

(ii) It had a different disposition arrived at by consent or compromise with an acknowledgment of fault on the recipient's part; and

(iii) The requirement in this award term and condition to disclose information about the proceeding does not conflict with applicable laws and regulations.

3. Reporting Procedures Enter in the SAM Entity Management area the information that SAM requires about each proceeding described in paragraph 2 of this award term and condition. The recipient does not need to submit the information a second time under assistance awards received if the recipient already provided the information through SAM because it was required to do so under Federal procurement contracts it was awarded.

4. Reporting Frequency During any period of time when the recipient is subject to the requirement in paragraph 1 of this award term and condition, it must report proceedings information through SAM for the most recent five-year period, either to report new information about any proceeding(s) not reported previously or affirm that there is no new information to report. Recipients that have Federal contract, grant, and cooperative agreement awards with a cumulative total value greater than $10,000,000 must disclose semiannually any information about the criminal, civil, and administrative proceedings.

5. Definitions
For purposes of this award term and condition:

a. Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative proceedings, Civilian Board of Contract Appeals proceedings, and Armed Services Board of Contract Appeals proceedings). This includes proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include audits, site visits, corrective plans, or inspection of deliverables.

b. Conviction, for purposes of this award term and condition, means a judgment or conviction of a criminal offense by any court of competent jurisdiction, whether entered upon a verdict or a plea, and includes a conviction entered upon a plea of nolo contendere.

c. Total value of currently active grants, cooperative agreements, and procurement contracts includes—
(1) Only the Federal share of the funding under any Federal award with a recipient cost share or match; and

(2) The value of all expected funding increments under a Federal award and options, even if not yet exercised.

B. [Reserved]

C.34 EXCHANGE VISITORS VISA REQUIREMENTS (DECEMBER 2022)

For any Exchange Visitor Invitational Travel activities, the recipient must comply with this provision (see ADS 252 for more information on USAID's policies and internal procedures for Exchange Visitor visa requirements).

a. Definitions:

An **Exchange Visitor (EV)** is any foreign national who is traveling to or is already in the United States as a beneficiary (not provider) of USAID development assistance for any purpose, including invitational travel, and is financed in whole or in part, directly or indirectly, by USAID. All USAID-sponsored EVs must obtain, use, and abide by the terms of the J-1 visa exclusively even if they already have a valid nonimmigrant visa (e.g., B-1/B-2). All individuals traveling under Invitational Travel (see ADS 522) must also travel on a J-1 visa as a USAID-sponsored EV. Foreign government officials and their immediate family members who qualify for an A diplomatic visa having recognized diplomatic titles, privileges, and immunities are not included in this definition.

Training and Exchanges Automated Management System (TEAMS) is USAID's data system for the reporting of information on all USAID Exchange Visitor activities. TEAMS is USAID's single repository of EV data. TEAMS is a web-based application that helps Missions, contractors, recipients, and contractor/recipient systems at various locations to collaborate in approving and reporting EVs. The system serves as USAID's data interface with the Department of Homeland Security (DHS) Student and Exchange Visitor Information System (SEVIS).

b. Visa Compliance Requirement: In accordance with 22 C.F.R. Part 62, the Department of State has designated USAID as a sponsor for exchange visitor programs. This award constitutes the written agreement between the recipient and USAID that authorizes the recipient to act on behalf of USAID in the conduct of any exchange visitor activities in the Program Description of this award. The recipient must ensure that any EV-sponsored under the award must obtain, use, and abide by the terms of the J-1 visa even if the EV already has a valid non-immigrant visa (e.g., B-1/B-2).

Any exception to the requirement for an EV to obtain, use, and abide by a J-1 visa must be approved by the Mission Director or USAID/W Office Director in accordance with the procedures in ADS 252.

c. Program Monitoring and Data Reporting: The recipient must monitor EVs' progress during their program and ensure that problems are identified and resolved quickly. The Agreement Officer's Representative (AOR) will arrange for the TEAMS helpdesk (TEAMS@usaid.gov) to provide the recipient with access to and instructions for using USAID's TEAMS, where the recipient will report and manage EV data.

d. Health and Accident Insurance: The recipient must enroll EVs in health and accident insurance coverage that meets or exceeds Department of State and USAID minimum coverage requirements as set forth in 22 CFR 62.14 and ADS 252, Visa Compliance for Exchange Visitors. Any dependent(s) must provide proof of health insurance.

e. Immigration Requirements: The recipient must ensure that all EVs obtain, use, and comply with the terms of the J-1 visa, issued in conjunction with a USAID-issued Certificate of Eligibility for J-1 Visa Status (DS-2019).

f. Language Proficiency: The recipient must verify that an EV is proficient in English if the individual will undertake a U.S.-based Exchange Visitor program that is conducted in English. Even if accompanied by an interpreter, the EV must have sufficient English language skills to understand and respond to basic questions at the U.S. port of entry. USAID cannot waive this external requirement of English language proficiency determination (see **22 CFR 62.10(a)(2)**). Language competency can be verified through a variety of means including proficiency assessments of interviews, publications, presentations, education conducted in English, and formal testing.

g. Pre-arrival Orientation: The recipient must ensure that EVs receive pre-arrival orientation to prepare them for their trip to the United States. Pre-arrival orientation as set forth in 22 CFR 62.10(b) covers program

objectives, administrative and policy review, cultural aspects, and training/learning methods, and USAID's conditions of sponsorship.

h. Conditions of Sponsorship: The recipient must ensure that all EVs read and sign the Conditions of Sponsorship for U.S.-Based Activities form (AID Form 252-1). The recipient immediately must report to the Responsible Officer any known violations by EVs. The Responsible Officer is the designated official in charge of maintaining USAID's official designation as an EV program sponsor (see ADS 252).

i. Fly America: If applicable, the recipient must comply with the Fly America Act requirements for international air travel and transportation required for EVs and any authorized dependents under this award.

C.35 NEGOTIATED INDIRECT COST RATES - PROVISIONAL (Nonprofit) (NOVEMBER 2020)

a. Provisional indirect cost rates must be established for each of the recipient's accounting periods during the term of this award. Pending establishment of revised provisional or final rates, allowable indirect costs must be reimbursed at the rates, on the bases, and for the periods shown in the schedule of the award.

b. Organizations that have previously established indirect cost rates must submit a new indirect cost proposal to the cognizant agency for indirect costs within six months after the close of each fiscal year. Except as otherwise provided in §200.414 Indirect (F&A) costs paragraph (e) and (f), a nonprofit organization which has not previously established an indirect cost rate with a Federal agency must submit its initial indirect cost proposal immediately after the organization is advised that a Federal award will be made and, in no event, later than three months after the effective date of the Federal award.

If USAID is the cognizant agency or no cognizant agency has been designated, the recipient must submit four copies of the audit report, along with the proposed final indirect cost rates and supporting cost data, to the Overhead, Special Costs, and Closeout Branch, Office of Acquisition and Assistance, USAID, Washington, DC 20523-7802. The proposed rates must be based on the recipient's actual cost experience during that fiscal year. Negotiations of final indirect cost rates must begin soon after receipt of the recipient's proposal. No proposal to establish indirect (F&A) cost rates will be acceptable unless such costs have been certified by the non-profit organization using the Certificate of Indirect (F&A) Costs set forth in 2 CFR 200, Appendix IV, Section j. The certificate must be signed on behalf of the organization by an individual at a level no lower than vice president or chief financial officer for the organization.

c. Allowability of costs and acceptability of cost allocation methods must be determined in accordance with the applicable cost principles.

d. The results of each negotiation must be set forth in a written indirect cost rate agreement signed by both parties. Such agreement is automatically incorporated into this award and must specify (1) the agreed upon final rates, (2) the bases to which the rates apply, and (3) the fiscal year for which the rates apply. The agreement must not change any monetary ceiling, award obligation, or specific cost allowance or disallowance provided for in this award.

e. Pending establishment of final indirect cost rate(s) for any fiscal year, the recipient must be reimbursed either at negotiated provisional rates or at billing rates acceptable to the Agreement Officer, subject to appropriate adjustment when the final rates for the fiscal year are established. To prevent substantial overpayment or underpayment, the provisional rate may be adjusted by the cognizant agency for indirect costs during the institution's fiscal year.

f. If a dispute arises in a negotiation of an indirect cost rate between the cognizant agency for indirect costs and the nonprofit organization, the dispute must be resolved in accordance with the appeals procedures of the cognizant agency for indirect costs.

C.36 PROHIBITION OF ASSISTANCE TO DRUG TRAFFICKERS (JUNE 1999)

USAID reserves the right to terminate assistance to, or take other appropriate measures with respect to, any participant approved by USAID who is found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined in 22 CFR 140.
b.
For any loan over $1,000 made under this agreement, the recipient must insert a clause in the loan agreement stating that the loan is subject to immediate cancellation, acceleration, recall, or refund by the recipient if the borrower or a key individual of a borrower is found to have been convicted of a narcotics offense or to have been engaged in drug trafficking as defined in 22 CFR 140.

Upon notice by USAID of a determination under section (1) and at USAID's option, the recipient agrees to immediately cancel, accelerate, or recall the loan, including refund in full of the outstanding balance. USAID reserves the right to have the loan refund returned to USAID.

c.
The recipient agrees not to disburse, or sign documents committing the recipient to disburse, funds to a subrecipient designated by USAID ("Designated Subrecipient") until advised by USAID that: (i) any United States Government review of the Designated Subrecipient and its key individuals has been completed; (ii) any related certifications have been obtained; and (iii) the assistance to the Designated Subrecipient has been approved. Designation means that the subrecipient has been unilaterally selected by USAID as the subrecipient. USAID approval of a subrecipient, selected by another party, or joint selection by USAID and another party is not designation.

The recipient must insert the following clause, or its substance, in its agreement with the Designated Subrecipient:

"The recipient reserves the right to terminate this [Agreement/Contract] or take other appropriate measures if the [Subrecipient] or a key individual of the [Subrecipient] is found to have been convicted of a narcotic offense or to have been engaged in drug trafficking as defined in 22 CFR 140."

C.37 REPORTING HOST GOVERNMENT TAXES (DECEMBER 2014)

a. By April 16 of each year, the recipient must submit a report containing:

1. Contractor/recipient name.

2. Contact name with phone, fax and e-mail.

3. Agreement number(s).

4. The total amount of value-added taxes and customs duties (but not sales taxes) assessed by the host government (or any entity thereof) on purchases in excess of $500 per transaction of supplies, materials, goods or equipment, during the 12 months ending on the preceding September 30, using funds provided under this contract/agreement.

5. Any reimbursements received by April 1 of the current year on value- added taxes and customs duties reported in 4.

6. Reports are required even if the recipient did not pay any taxes or receive any reimbursements during the reporting period.

7. Cumulative reports may be provided if the recipient is implementing more than one program in a foreign country.

b. Submit the reports to: Financial Management Office as appropriate and copy the AOR, AO and the A&A Specialist.

c. Host government taxes are not allowable where the Agreement Officer provides the necessary means to the recipient to obtain an exemption or refund of such taxes, and the recipient fails to take reasonable steps to obtain such exemption or refund. Otherwise, taxes are allowable in accordance with the Standard Provision, "Allowable Costs," and must be reported as required in this provision.

d. The recipient must include this reporting requirement in all applicable subawards and contracts.

C.38 UNIVERSAL IDENTIFIER (UEI) AND SYSTEM FOR AWARD MANAGEMENT (SAM) (DECEMBER 2022)

a. Requirement for System for Award Management (SAM). Unless exempted from this requirement under 2 CFR 25.110, the recipient must maintain current information in the SAM. This includes information on the recipient's immediate and highest-level owner and subsidiaries, as well as on all of its predecessors that have been awarded a Federal contract or Federal financial assistance within the last three years, if applicable, until the recipient submits the final financial report required under this Federal award or receive the final payment, whichever is later. The recipient must review and update the information at least annually after the initial registration, and more frequently, if required by changes in its information or another Federal award term.

b. Requirement for Unique Entity Identifier. If authorized to make subawards under this Federal award, the recipient:
(1) Must notify potential subrecipients that no entity (see definition in paragraph c. of this award term) may receive a subaward under this award until the entity has provided its Unique Entity Identifier.
(2) May not make a subaward to an entity unless the entity has provided its Unique Entity Identifier to the recipient. Subrecipients are not required to obtain an active SAM registration but must obtain a Unique Entity Identifier.

c. Definitions. For purposes of this term:
(1) System for Award Management (SAM) means the Federal repository into which a recipient must provide information required for the conduct of business as a recipient. Additional information about registration procedures may be found at the SAM Internet site (currently at https://www.sam.gov).
(2) Unique Entity Identifier (UEI) means the identifier assigned by SAM to uniquely identify business entities.
(3) Entity includes non-Federal entities as defined in 2 CFR 200.1 and also includes all of the following, for purposes of this part:
a. A foreign organization;
b. A foreign public entity;
c. A domestic for-profit organization; and
d. A Federal agency.
(4) Subaward has the meaning given in 2 CFR 200.1.
(5) Subrecipient has the meaning given in 2 CFR 200.1.

d. Exceptions for subawards. The requirements of this provision to obtain a UEI do not apply at the subaward level to:
(1) Awards to individuals.
(2) Awards less than $25,000 to foreign organizations to be performed outside the United States when the AO makes a determination on a caseby-case basis using a risk-based approach that registration is impracticable.
(3) Awards where the USAID Assistant Administrator or Mission Director determines, in writing, that the Agency must protect entity information from disclosure due to national security or foreign policy interests of the United States or that these requirements would cause personal safety concerns.

d. This provision does not need to be included in subawards.

C.39 REPORTING SUBAWARDS AND EXECUTIVE COMPENSATION (DECEMBER 2022)

a. Reporting of first-tier subawards.

(1) Applicability. Unless exempt as provided in paragraph d. of this award term, the recipient must report each action that equals or exceeds $30,000 in Federal funds for a subaward to a non-Federal entity or Federal agency (see definitions in paragraph e. of this award term).

(2) Where and when to report.
(i) The non-Federal entity or Federal agency must report each obligating action described in paragraph a.(1) of this award term to www.fsrs.gov.

(ii) For subaward information, report no later than the end of the month following the month in which the obligation was made. (For example, if the obligation was made on November 7, 2010, the obligation must be reported by no later than December 31, 2010.)
(3) What to report. The recipient must report the information about each obligating action that the submission instructions posted at www.fsrs.gov specify.

b. Reporting total compensation of recipient executives for non-Federal entities.
(1) Applicability and what to report. The recipient must report total compensation for each of its five most highly compensated executives for the preceding completed fiscal year, if –
(i) The total Federal funding authorized to date under this Federal award equals or exceeds $30,000 as defined in 2 CFR 170.320;

(ii) In the preceding fiscal year, the recipient received— (A) 80 percent or more of its annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); and (B) $25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); and

(iii) The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at www.sec.gov/answers/execomp.htm.)

(2) Where and when to report. The recipient must report executive total compensation described in paragraph b.(1) of this award term:

(i) As part of its registration profile at www.sam.gov.

(ii) By the end of the month following the month in which this award is made, and annually thereafter.

c. Reporting of Total Compensation of Subrecipient Executives.

(1) Applicability and what to report. Unless the recipient is exempt as provided in paragraph d. of this award term, for each first-tier non-Federal entity subrecipient under this award, it must report the names and total compensation of each of the subrecipient's five most highly compensated executives for the subrecipient's preceding completed fiscal year, if–

(i) In the subrecipient's preceding fiscal year, the subrecipient received—

(A) 80 percent or more of its annual gross revenues from Federal procurement contracts (and subcontracts) and Federal financial assistance subject to the Transparency Act, as defined at 2 CFR 170.320 (and subawards); and

(B) $25,000,000 or more in annual gross revenues from Federal procurement contracts (and subcontracts), and Federal financial assistance subject to the Transparency Act (and subawards); and

(ii) The public does not have access to information about the compensation of the executives through periodic reports filed under section 13(a) or 15(d) of the Securities Exchange Act of 1934 (15 U.S.C. 78m(a), 78o(d)) or section 6104 of the Internal Revenue Code of 1986. (To determine if the public has access to the compensation information, see the U.S. Security and Exchange Commission total compensation filings at www.sec.gov/answers/execomp.htm.)

(2) Where and when to report. The recipient must report subrecipient executive total compensation described in paragraph c.(1) of this award term:

(i) To the recipient.

(ii) By the end of the month following the month during which the recipient makes the subaward. For example, if a subaward is obligated on any date during the month of October of a given year (for example, between October 1 and 31), you must report any required compensation information of the subrecipient by November 30 of that year.

d. Exemptions. If, in the previous tax year, the recipient had gross income, from all sources, under $300,000, it is exempt from the requirements to report:

(1) Subawards, and

(2) The total compensation of the five most highly compensated executives of any subrecipient.

e. Definitions. For purposes of this award term:

(1) Federal Agency means a Federal agency as defined at 5 U.S.C. 551(1) and further clarified by 5 U.S.C. 552(f).

(2) Non-Federal entity means all of the following, as defined in 2 CFR 25:

(i) A governmental organization, which is a State, local government, or Indian tribe;

(ii) A foreign public entity;

(iii) A domestic or foreign nonprofit organization; and

(iv) A domestic or foreign for-profit organization.

(3) Executive means officers, managing partners, or any other employees in management positions.

(4) Subaward:

(i) This term means a legal instrument to provide support for the performance of any portion of the substantive project or program for which the recipient received this award and awarded to an eligible subrecipient.

(ii) The term does not include the procurement of property and services needed to carry out the project or program (for further explanation, see 2 CFR 200.331). (iii) A subaward may be provided through any legal agreement, including an agreement that the recipient or a subrecipient considers a contract. (5) Subrecipient means a non-Federal entity or Federal agency that: (i) Receives a subaward from the recipient under this award; and (ii) Is accountable to the recipient for the use of the Federal funds provided by the subaward. (6) Total compensation means the cash and noncash dollar value earned by the executive during the recipient's or subrecipient's preceding fiscal year and includes the following (for more information see 17 CFR 229.402(c)(2)): (i) Salary and bonus. (ii) Awards of stock, stock options, and stock appreciation rights. Use the dollar amount recognized for financial statement reporting purposes with respect to the fiscal year in accordance with the Statement of Financial Accounting Standards No. 123 (Revised 2004) (FAS 123R), Shared Based Payments. (iii) Earnings for services

under nonequity incentive plans. This does not include group life, health, hospitalization, or medical reimbursement plans that do not discriminate in favor of executives and are available generally to all salaried employees. (iv) Change in pension value. This is the change in present value of defined benefit and actuarial pension plans. (v) Above-market earnings on deferred compensation which is not taxqualified. (vi) Other compensation, if the aggregate value of all such other compensation (for example, severance, termination payments, value of life insurance paid on behalf of the employee, perquisites or property) for the executive exceeds $10,000.

C.40 DEFENSE BASE ACT (DBA) WORKERS' COMPENSATION INSURANCE FOR PROCUREMENT CONTRACT (DECEMBER 2022)

All contracts made by the recipient under this award for services to be performed overseas must contain the following provision, as applicable.

Workers' Compensation Insurance (Defense Base Act)

(a) The Contractor must--

(1) Before commencing performance under this contract, establish provisions to provide for the payment of disability compensation and medical benefits to covered employees and death benefits to their eligible survivors, by purchasing Defense Base Act (DBA) insurance pursuant to the terms of the contract between USAID and USAID's DBA insurance carrier unless the Contractor qualifies as a self-insurer under the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 932) as extended by the Defense Base Act (42 U.S.C. 1651, et seq.), or has an approved retrospective rating agreement for DBA. The Contractor must continue to maintain these provisions to provide such Defense Base Act benefits until contract performance is completed.

(2) If USAID or the Contractor has secured a waiver of DBA coverage for contractor's employees who are not citizens of, residents of, or hired in the United States, the contractor agrees to provide such employees with worker's compensation benefits as required by the laws of the country in which the employees are working, or by the laws of the employee's native country, whichever offers greater benefits. See AIDAR 728.305-70(a) for more information on DBA waivers. The Department of Labor has granted partial blanket waivers of DBA coverage applicable to USAID-financed contracts performed in countries listed in the DEFENSE BASE ACT (DBA) WAIVER LIST.

(3) Within ten days of an employee's injury or death or from the date the Contractor has knowledge of the injury or death, submit Form LS-202 (Employee's First Report of Injury or Occupational Illness) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 930(a), 20 CFR 702.201 to 702.203).

(4) Pay all compensation due for disability or death within the timeframes required by the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914, 20 CFR 702.231 and 703.232).

(5) Provide for medical care as required by the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 907, 20 CFR 702.402 and 702.419).

(6) If controverting the right to compensation, submit Form LS-207 (Notice of Controversion of Right to Compensation) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914(d), 20 CFR 702.251).

(7) Immediately upon making the first payment of compensation in any case, submit Form LS-206 (Payment of Compensation Without Award) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914(c), 20 CFR 702.234).

(8) When payments are suspended or when making the final payment, submit Form LS-208 (Notice of Final Payment or Suspension of Compensation Payments) to the Department of Labor in accordance with the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 914 (c) and (g), 20 CFR 702.234 and 702.235).

(9) Adhere to all other provisions of the Longshore and Harbor Workers' Compensation Act as extended by the Defense Base Act, and Department of Labor regulations at 20 CFR Parts 701 to 704.

For additional information on the Longshore and Harbor Workers' Compensation Act requirements see http://www.dol.gov/owcp/dlhwc/lsdba.htm.

The Contractor must insert the substance of this clause including this paragraph (a), in all subcontracts to which the Defense Base Act applies.

END OF ANNEX G – OTHER MANDATORY PROVISIONS (USAID)

FIN DEL ANEXO G – OTRAS DISPOSICIONES OBLIGATORIAS (USAID)

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ANNEX H: BRANDING AND MARKING PLAN

ANEXO H: PLAN DE BRANDING Y MARKING

Partners of the Americas (POA) presents the following Branding Strategy and Marking Plan for USAID *Juntos Aprendemos.*

1. Background Information

Program Name in English: USAID's Together We Learn Program
Program Name in Spanish: Programa Juntos Aprendemos de USAID
Funding Opportunity Number: 7200AA21RFA00001
Effective date: TBD
Responsible for Monitoring Marking Plan: POA

POA in alliance with Fundación Carvajal, Fundación Proantioquia, and Parque Explora, will implement USAID's Together We Learn Program to increase the capacity of the Colombian education system to provide sustainable and inclusive quality education in areas impacted by migration. The program will focus on the following levels of schooling: 1. pre-primary (ages 3-5); 2. primary (ages 6-12); and 3. secondary (ages 12-17). Through its activities, the program aims to achieve the following results:

1. Improved quality of education for children and youth in receptor communities
2. Increased access to quality education for children and youth in receptor communities
3. Strengthened community engagement in educational opportunities.

2. Proposed Branding Strategy

The USAID *Juntos Aprendemos* team understands that branding is more than ensuring the USAID Identity is placed on a report or displayed appropriately at a seminar. It is a partnership between USAID and the implementing organization(s) to set the highest standard for development assistance, and for publicizing those efforts in the most secure, realistic, and professional manner. POA's Branding Implementation Plan will ensure that we tell the story of USAID's work and highlight its achievements, especially to local partners and the Colombian citizens with whom we will work. The Branding Strategy will flow down and apply to all implementing partners and subawardees.

POA fully endorses USAID's efforts to build a consistent brand to identify that the Activity is "From the American People." POA's home office communications team will prepare policies and templates to brand all USAID *Juntos Aprendemos* activities, public communications, and commodities with the USAID "Standard Graphic Identity" (or "USAID Identity"). The home office communications team will assist USAID *Juntos Aprendemos* personnel by reviewing and designing communications strategies for in-housedocuments, external reports, and project activities.

Additional ideas to increase awareness that the American people support this project include: all trainers and facilitators of project activities will be instructed to include in each presentation or training session a statement at the beginning that the technical assistance they provide, and project services are "From the American People." USAID *Juntos Aprendemos* will follow specific procedures for including the Branding Implementation Plan requirements as stated in the mandatory internal reference Branding and Marking in USAID.

Direct Contracting in the Automated Directives System, Chapter 320.3.2 and 320.3.3. The Branding Strategy will follow the requirements as outlined broadly in 22.C.F.R. 226.91. Additional details may bedetermined after the award is signed but POA and all sub-awardees will follow the required Branding Strategy.

3. Positioning

The name of the program to be implemented is *"Programa Juntos Aprendemos de USAID."* The full name will be used when possible, usually written as the *"Programa Juntos Aprendemos de USAID"* or the *"Programa Juntos Aprendemos iniciado por USAID e implementado por Partners of the Americas."* The short version of the name is *Programa Juntos Aprendemos de USAID.*

It is not anticipated that a unique logo will be developed for *Juntos Aprendemos.* Rather, the project willbrand the work by using the project name, the USAID Standard Graphic Identity, also called the USAIDIdentity, and implementer identities or logos. The primary USAID Identity options that will be used arebelow (English and Spanish).

USAID FROM THE AMERICAN PEOPLE

USAID DEL PUEBLO DE LOS ESTADOS UNIDOS DE AMÉRICA

The logos for POA and the core partners *Fundaci6n Carvajal, Fundaci6n ProAntiaquia,* and *ParqueExplora,* are:

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

Fundación Carvajal

PROANTIOQUIA
Fundación para el desarrollo

parque explora

Juntos Aprendemos will feature the USAID Identity in full color (2-color) when feasible but in black- only or white in some settings, following the USAID Graphic Standards Manual and the USAID PartnerCo-Branding Guide.

4. Program Communications and Publicity

There are multiple audiences for *Juntos Aprendemos* program materials and information, both primary and secondary. The primary audience are children in the following levels of schooling: pre-primary; 2. primary; and 3. Secondary. Secondary audiences are USAID/Colombia, teachers, parents, community members, and national and local authorities.

The goal of *Juntos Aprendemos* is to increase the capacity of the Colombian education system to providesustainable and inclusive quality education in areas impacted by migration.

Program beneficiaries will be reached through program materials and there will be promotion of theprogram to potential beneficiaries through the following modes including, but not limited to:

I. Launch of project activities in target communities jointly with local authorities along with announcements of scheduled activities
II. Educational materials developed by the project for both children and educators
Trainings (in person and virtual)
III. Workshops, talks, panels, information sessions (parents, community members, and local authorities)
IV. Content library with learning bundles including audiovisuals to support teachers and students
V. Learning kits for teachers
VI. Communication/outreach/awareness raising campaigns (including radio spots, social media, andmaterials)
VII. Infographics including project goals and objectives
VIII. Case studies for training schools, parents, and government entities
IX. Press releases in local newspapers and online news sources

In any publications (infographics, educational materials), media events (articles, press releases) and other meetings to promote and communicate information about the program, the message that this aid is "from the American people" or "through the generous support of the American people" will be incorporated. POA will primarily use the USAID-approved Spanish tagline, "Del Pueblo de los Estados Unidos de America." This will not just be through the USAID Identity, which states it directly, but willalso be incorporated in other text, language, or descriptions to increase awareness.

POA and USAID will discuss what type of program launch event, press, or publicity will be most appropriate for the initiation of *Juntos Aprendemos*. The program budget has limited funds, but a plancan be discussed and agreed upon jointly.

5. Acknowledgements

Juntos Aprendemos will collaborate with a number of in-country institutions, including host country government ministries, particularly the Ministry of Education, the Ministry of Technology, the Colombian Family Welfare Institute (ICBF), Interagency Group on Mixed Migration Flows (GIFMM, *Grupo Interagencial sabre Flujos Migratorios Mixtos* in Spanish) and Secretariats of Education. These collaborations can be on a broad scale or on a specific activity. POA believes it is important to recognize collaborators when applicable and the collaborating institutions' logos or name may be used on materials and/or events developed jointly. The USAID, POA, and *Fundaci6n Carvajal, ProAntioquia,* and *Parque Explora,* logos/identities would remain the main featured ones but will also feature other collaborators as appropriate. POA's Chief of Party (COP) will seek concurrence from USAJD on a case-by-case basis and will ensure that the USAID Identity or logo is as large as and as prominently as any other logos or identities used.

6. Budget

Type	Estimated Cost
Stickers/Plaques for office equipment	USD$2/each - $5/each
Vehicle marking	USD$25
USB with marking	USD$2.50/each
Posters	USD$90
T-Shirts/Other apparel with marking	USD$15/item
Event signs, banners, and exhibition booth materials	USD$200 per sign/banner USD$50/event for exhibition materials
Business cards	USD$20/stack of 200 cards
Design and printing of training materials and workshop supplies	USD$50-$2,000/workshop or training

7. Proposed Marking Plan

POA anticipates that the following materials may be produced under this program funded by USAJD and where appropriate, they are included in the proposed budget: press releases; case studies and/or success stories; PowerPoint presentations; training materials; and an end-of- program publication. In addition, POA anticipates holding the following types of events, also included in the proposed budget: training courses; stakeholder meetings; seminars and workshops; and media events. Some specific technical materials and reports may be developed as needed. Purchasing of commodities and equipment will not be a major part of the *Juntos Aprendemos* Program but some items may be procured and will be marked according to the table below. Other equipment purchases in the proposed budget are for the useof program staff.

For all these activities, publications, and printed materials associated with the *Juntos Aprendemos* Program and funded by USAID, POA will mark each with the USAID Identity, of a size and prominence equivalent to or greater than POA's, other donor's, or any other third party's identity or logo. In cases where logos are not used, POA will include in the narrative information about USAID and its funding of the *Juntos Aprendemos* Program.

POA will include the USAJD-approved marking provision in any funded sub-award of the *Juntos Aprendemos* Program: *"As a condition of receipt of this sub-award, marking with the USAID Identity of a size and prominence equivalent to or greater than the recipient's, sub-recipient's, other donor's or third party's is required. In the event the recipient chooses not to require marking with its own identity or logo by the sub-recipient, USAID may, at its discretion, require marking by the sub-recipient with the USAID Identity."*

Any 'public communication' of the *Juntos Aprendemos* Program in which the content has not been approved by USAJD will contain the following disclaimer:

"This study/report/audio/visual/other information/media product (specify) is made possible by the generous support of the United States Agency for international Development (USAID). The contents are the responsibility of Partners of the Americas and do not necessarily reflect the views of USAID or the United States Government."

Below is a table detailing the anticipated program deliverables and the type of marking.

Program Deliverables	Type of USAID Marking	When the program deliverables will be marked	Where the marking will be placed
Printed or Digital Materials			
Press Releases	USAID Identity, POA/Carvajal/ ProAntioquia/Parque Explora	Through the life of program	Header/Top of Page
PowerPoint Presentations	USAID Identity, POA/Carvajal/ ProAntioquia/Parque Explora	Will be developed as needed	USAID and POA/Carvajal/ ProAntioquia/Parque Explora identities will appear on the title page of each presentation

Educational Materials and Monitoring Manuals	USAID Identity, POA/Carvajal/ ProAntioquia/Parque Explora logos	To be developed in Years 1 and 2, or as needed	Design to be determined; at a minimum, logos will be on the title page
End-of-Program Publication	USAID Identity, POA/Carvajal/ ProAntioquia/ParqueExplora logos	To be developed in year 4 of the program	Design to be determined; USAID Identity will be displayed of a size and prominence equivalent to or greater than other logos
Technical Reports	USAID Identity, POA/Carvajal/ ProAntioquia/Parque Explora logos	Written as needed	On title page
Other Documents or Publications	USAID Identity, POA/Carvajal/ ProAntioquia/ParqueExplora logos	As developed, published or planned	Will depend on the document or publication; will be discussed with AOTR as appropriate
Website/blog descriptions and/or stories	USAID Identity and/or description, POA/Carvajal/ ProAntioquia/ParqueExplora logos	Through the life of program	Location will depend on the layout; USAID Identity will be displayed of a size and prominence equivalent to or greater than other logos
Events			
Stakeholder Meetings	USAID Identity and/or description	As needed through the life of program	USAID Identity and POA/Carvajal/ProAntioquia/Parque Explora logos will be displayed on any event promotional materials, training materials or other items such as agendas, participant lists, banners, etc. Where logos are not used, a narrative description/acknowledgement of USAID sponsorship of the program will be included
Seminars and Workshops	USAID Identity and/or description	As needed through the life of program	
Media Events	USAID Identity and/or description	As needed through the life of program	
Training Courses	USAID Identity and/or description	As needed through the life of program	

Table of Project Supplies and Equipment

Supply/ Equipment	**Type of Marking**	**here Marking Placed**
Computers	USAID and POA identifying sticker or label	On front of monitor and/or onCPU or laptop body
Printer	USAID and POA identifying sticker or label	On top of Printer
Other project equipment	USAID and POA identifying sticker or label	Will depend on the equipment; will be discussed with POA asappropriate

8. Items That Will Not be Marked

The items listed that are produced or procured as part of the Juntos Aprendemos Program will

not bear the USAID identity.

- Newspaper articles and features, as POA cannot mandate that print or online newspapers publish all the USAID and partner logos.
- Memoranda of Understanding (MOUs) that do not require signature by a USAID representative.
- Minor consumable items.

Subrecipient: As specified in the standard provisions, the marking requirements will "flow down" to sub-recipients or sub-awards and will include the USAID-approved marking provision in all USAID funded sub-awards, as follows: "As a condition of receipt of this sub-award, marking with USAID identity of a size and prominence equivalent to or greater that the recipient's, sub-recipient's, other donor's or third party's is required."

END OF ATTACHMENT H
FIN DEL ANEXO H

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For Internal Use Only/Solo para uso interno

Agreement Approval Cover Sheet/Portada de la aprobación del acuerdo

This form is to be filled out with the proper approvals and submitted for ALL agreements. The final approved form should be included with all payment requests in lieu of full agreement./ Este formulario debe rellenarse con las aprobaciones adecuadas y presentarse para TODOS los acuerdos. El formulario final aprobado debe incluirse con todas las solicitudes de pago en lugar del acuerdo completo.

Requesting Department/ Departamento solicitante: CPU

Date/ Fecha: 26/06/2024

Urgent/Urgente: ☐

V.A.

Petitioner/Solicitante: Vanessa Ardila López

Contractor/Grantor/Grantee* Name/Contratista/Subvencionador/Subvencionado* Nombre: Fundación para el Desarrollo de Antioquia. Antioquia por Colombia. (ProAntioquia)

* Contractor is vendor, organization or individual receiving agreement/* El contratista es el proveedor, la organización o el individuo que recibe el acuerdo

Contractor/Grantor/Grantee Contact Name/Nombre de contacto del contratista/concesionario:

Financial Obligation Total/Total de la obligación financiera:

Price
$0

Agreement Dates/Fechas del acuerdo:

Start/inicio: 08 / 16 / 2021

End/finalización: 10 / 31 / 2025

Addendum Dates/Fechas de la adición:

Start/inicio: 08 / 16 / 2021

End/finalización: 08 / 31 / 2026

Current Agreement Purpose/Objetivo del acuerdo: The purpose of this Sub-Agreement is to provide support for the program described in Annex A of this agreement entitled "Program Description and Objectives".
Proantioquia, in partnership with POA and the other Core Partners, will ensure that their efforts go toward achieving the Results Framework for the project, starting with its overall goal, to increase the capacity of the Colombian education system to provide sustainable and inclusive quality education in areas impacted by migration. Each Core Partner will find the best methods to reach the program objectives.

This modification No. 8 is made to reflect the following:
A. Modify ARTICLE 4. Sub-Agreement Type: Increase the ceiling amount by USD$ 55,000 from USD $2,133,979 to USD $2,188,979, due to changes in the project structure.
B. Modify ARTICLE 6. Amount of Award, Estimated Cost, Obligated Cost and approved Budget:
● Paragraph 6.1, to increase the ceiling amount of the subaward by USD $55,000 from USD $2,133,979 to USD $2,188,979. This addition is due to changes in the project structure since Proantioquia will oversee the Project's GESI Professional and one of the Migration professionals, which implies an increase in Personnel and Fringe budget's items; the new total is sufficient to ensure the operation and achieve successfully the goals approved in the work plan.
● Paragraph 6.3, to modify the Budget.
6.3.4 Modify the approved Sub-Award budget by realigning the original awarded budget and increasing the total amount.
C. Modify "ANNEX A: PROGRAM DESCRIPTION AND OBJECTIVES", to update the targets defined for 2024 and the projection for 2025-2026.

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D. Delete in its entirety "ANNEX B: DETAILED BUDGET" and replace with "ANNEX B: DETAILED BUDGET" included in this modification #8, to realign the budget according with the needs and goals of JA.

Agreement Type/Tipo de acuerdo: Cost Reimbursable Subaward/Subgrant

Funding sources and % or $ breakdown/Fuentes de financiación y desglose en % o en dólares: 100% USAID800

(List out all sources and breakdown to cover cost of contract)/(Enumere todas las fuentes y el desglose para cubrir el coste del contrato)

Has Partners worked with this contractor in the past/ Ha trabajado Partners con este contratista en el pasado? Yes/Si ☑ No ☐

Include SharePoint link to Procurement Package/Incluir el enlace de SharePoint al paquete de adquisiciones:
ProAntioquia Procurement & Negotiation Memo.pdf
Budget Narrative

Home Office Director/COP/PD/DCO /Aprobación del director:

Alejandro Torres Perico

Alejandro Torres
Deputy Chief of Party

☑ M.O.

Associate Director HO-CPU

Home Office Director/COP/PD/DCO /Aprobación del director:

Ana Rubi

Ana Rubi
Director of Education

Vice President/Country Office Director (as applicable)/Vicepresidente/Director de la Oficina del Colombia (según corresponda):
VP/COD Name
VP/COD Title

By signing above, I certify that I have read and understand the terms of this agreement and have appropriate authority to submit this agreement on behalf of my department. I further certify that the agreement is complete and includes all exhibits, attachments and pages.

Contracts Check/control de contratos: ☑ **Compliance Team Check/control de cumplimiento:** ☑

President & CEO Approval/ Aprobación del Presidente:

John McPhail, President & CEO
Name & Title/Nombre y titulo

Signature Certificate

Reference number: BUJUD-KGCSJ-N23NJ-D6ZRR

Signer	Timestamp	Signature
Alejandro Torres Perico Email: atorres@partners.net		Alejandro Torres Perico
Sent:	26 Jun 2024 14:53:48 UTC	
Viewed:	26 Jun 2024 20:28:48 UTC	
Signed:	26 Jun 2024 21:01:33 UTC	
Recipient Verification:		IP address: 201.244.168.73
✔Email verified	26 Jun 2024 20:28:48 UTC	Location: Bogotá, Colombia
Ana Rubi Email: arubi@partners.net		Ana Rubi
Sent:	26 Jun 2024 14:53:48 UTC	
Viewed:	03 Jul 2024 15:38:18 UTC	
Signed:	03 Jul 2024 15:41:05 UTC	
Recipient Verification:		
✔Email verified	03 Jul 2024 15:38:18 UTC	IP address: 152.230.82.155
Maria Bibiana Botero Email: presidencia@proantioquia.org.co		María Bibiana Botero
Sent:	26 Jun 2024 14:53:48 UTC	
Viewed:	05 Jul 2024 16:56:44 UTC	
Signed:	05 Jul 2024 16:57:25 UTC	
Recipient Verification:		IP address: 181.143.77.114
✔Email verified	05 Jul 2024 16:56:44 UTC	Location: Medellín, Colombia

Document completed by all parties on:
05 Jul 2024 16:57:25 UTC

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